



A COMMUNITY OF CHOICE

Planning and Development Department
2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: Big Hole Cooperative Management Plan
Date: September 26, 2022

The item for consideration is an update to the Big Hole Cooperative Management Plan as originally approved in 2016. The original contract calls for a review to occur every 5 years, and in this review, some elements of the original contract were identified for changes.

The following is a brief summary of the proposed changes:

1. The allowance of powered devices for handicapped individuals (Section II, Subsection 8, part I and part J.3).
2. Minor formatting changes.
3. Updated signature block.

The Exhibits to this document include the original contract and associated exhibits. No changes to the exhibits as originally adopted are proposed.

**Cooperative Land Management Plan
Red Mountain Ranch Wyoming - The Big Hole
The City of Cheyenne
Larimer County Open Lands Program
The Nature Conservancy**

Date: _____

I. Recitals: Background Information

1. This Cooperative Land Management Plan (“Cooperative Plan”) is made and entered into by and between The Nature Conservancy, a non-profit corporation organized under the laws of the District of Columbia (the “Conservancy”), the City of Cheyenne (the “City”), a municipal corporation organized under the laws of the State of Wyoming, and the County of Larimer, Colorado (“Larimer County”), a county government organized under the laws of the State of Colorado.

2. This Cooperative Plan applies to a tract of land consisting of approximately 1,800 acres, known generally as the Laramie Foothills Red Mountain Ranch—Wyoming (the “Property”), also known as the “Big Hole.”

3. The Conservancy reserved a conservation easement (the “Easement”) on the Property when the Property was conveyed to the City on July 12th, 2005. The Easement is attached as Exhibit 1.

4. The Easement stipulates that a cooperative management plan will be developed and adopted by the Conservancy, the City and Larimer County (collectively, the “Parties”), referred to in the Easement as the “Cooperative Plan.” The Cooperative Plan, currently in effect, was executed by the Parties on January 19, 2017 and is attached as Exhibit 2. This Cooperative Plan will replace and supersede the January 19, 2017 Cooperative Plan in its entirety.

5. The Property currently remains in a substantially undisturbed, natural state, has significant ecological and open-space values, and provides relatively significant natural habitat for native plants and wildlife. Protection of the Property through the conservation easement will contribute to the conservation of important relatively significant natural habitat for plants, including particularly native foothills grasslands, ponderosa pine forest, mountain mahogany, skunkbush sumac and rabbit brush shrub lands, and for wildlife, including elk, deer, antelope, nesting raptors, migratory and breeding birds and mammals (the “Conservation Values”). In addition, the Property harbors scenic and agricultural values worthy of protection. The Property lies adjacent to the Red Mountain Ranch in Colorado, a property owned and managed as open space by Larimer County. This Plan provides for cooperative and compatible management across the boundary line between the states of Wyoming and Colorado to facilitate landscape-scale conservation. All the natural elements and ecological values are worthy of conservation and are of great importance to City, the Conservancy, and Larimer County.

6. The intention of the Easement is to preserve and protect the Property in perpetuity and, in the event of their degradation or destruction, to enhance and restore the open space and relatively significant natural features and values of the Property. The Easement also furthers the

specific purpose of conserving important habitat for wildlife, protecting rare and unique native plants currently known and later identified, conserving the diverse forest, grassland, riparian and vegetative communities, and protecting the wildlife inhabiting these communities. The intention of the Cooperative Plan as stipulated in the Easement is to permit the continuation of such uses of the Property as may now be conducted thereon consistent with the Conservation Values protected herein.

7. The Property shall be operated and managed in accordance with this Cooperative Plan, which shall include but not be limited to guidelines for appropriate land stewardship, recreational uses, and public access. This Cooperative Plan shall be reviewed and revised at least once every five (5) years.

II. Public Access

8. One of the principal goals of this Cooperative Plan is to establish access for Public Use and enjoyment of the Property consistent with the Easement.

- A. Public access is allowed on the Cheyenne Rim Trail, from trailheads initiating in Colorado in the Red Mountain Open Space. Activities currently allowed on the Cheyenne Rim Trail include horseback riding, hiking and non-motorized biking. Visitors must stay “on trail” and the existing trail shall be maintained and patrolled by Larimer County staff.

It is anticipated that public access trail connectors will be established in the future from the Cheyenne Rim Trail to the Robert E. Green Trail and to the Belvoir Ranch. Public access provisions and restrictions will be established when the proposed Robert E. Green and Belvoir Trail connectors are constructed and shall be compatible with existing public access in Colorado and those established for the Property by the Easement.

- B. No dogs are allowed on the Property, except for service dogs, as defined pursuant to the Americans with Disabilities Act. All service dogs must be harnessed, leashed, or tethered, unless these devices interfere with the service animal's work or an individual's disability prevents the individual from using these devices. If a service dog is not harnessed, leashed, or tethered, the individual must maintain control of the service dog through voice, signal, or other effective controls.
- C. No camping or fires of any kind are permitted on the Property.
- D. No hunting or fishing is permitted on the Property, except by special permit from the City.
- E. No trapping is permitted on the Property, except as may be permitted pursuant to the conditions specified in the Easement Documentation Report (“EDR”). The EDR is attached as Exhibit 3.

- F. No archeological, paleontological, or cultural artifacts may be removed from the Property, unless expressly permitted in writing by the Conservancy.
- G. No rocks or plants may be removed from the Property, unless expressly permitted in writing by the Conservancy.
- H. No public access to the Property is permitted from December through February. The Property is closed seasonally due to sensitive wintering range for large mammals.
- I. No public motorized access to the Property is permitted, except for visitors with mobility challenges who may require the use of other power-driven mobility devices, or with the express written consent of the City and the Conservancy.
- J. The City, the County and the Conservancy each may guide public engagement tours for educational programs, natural history interpretation, resource management and scientific research, provided that:
 - 1. All activity is limited to the existing roads and trails, as documented in the attached map provided in Exhibit 4.
 - 2. At least one staff person from one of the parties to this Plan or a designated and trained representative of the group shall be present and responsible for the group.
 - 3. Use of motorized vehicles is limited to existing roads, or trails where other power-driven mobility devices are necessary and compatible, on the Property.
 - 4. If conditions are such that motorized or other forms of access may negatively impact roads, such as during wet conditions, trips must be postponed or rescheduled.
 - 5. To facilitate visitation and minimize impacts to the Conservation Values, each individual and group using motorized access shall stop, park, and turn around on the existing two-track roads as indicated on the map attached as Exhibit 4. Every effort shall be made to minimize impacts to the resource.
 - 6. If impacts to the Property's Conservation Values occur, an appropriate stopping site for tours will be cooperatively established between the Parties. In accordance with the Easement, the stopping site shall be temporary, shall not be paved, oiled, or improved in any way, and shall be, to the greatest extent practicable, restored to its condition prior to its temporary use.

7. It is understood that uncontrolled visits by tour groups may be detrimental to the Conservation Values protected by the Easement. Restrictions of the frequency of group visits and the number of persons in each group may be necessary to control adverse impacts on the Conservation Values protected by the Easement. The need for additional use restrictions will be considered after each annual review of the Property (usually late summer) by the Conservancy site monitoring team in collaboration with the City and Larimer County officials. Restrictions may be imposed from year to year or for longer terms at the discretion of the Parties.

III. County, City, Conservancy Access to Property

9. One of the principal goals of this Cooperative Plan is to establish guidelines for access to the Property by the Parties to this Cooperative Plan in accordance with the Easement.

- A. There are four access agreements affecting the Property, attached as Exhibits 4, 5, 6, and 7. The City will grant access (either motorized or foot) to the County across an existing road, as shown on Exhibit 4, so that the County can access a portion of its Colorado property that is inaccessible from Colorado. The access is for emergency, property management, and patrol purposes.
- B. The County will grant access (either motorized or foot) to the Conservancy across the Red Mountain Open Space Colorado property to enable the Conservancy to access the Property to monitor and enforce the terms of the Easement.
- C. Access to the Property by the Conservancy is granted by the City pursuant to the Easement.
- D. The City and the Conservancy will have access (either motorized or foot) to the Property through the proposed Robert E. Green Public Access Agreement entered into between the City, Robert E. Green, and the Conservancy that will provide for the construction of public access trails on the west side of the Property.
- E. The County will maintain and patrol the Cheyenne Rim Trail and will post non-illuminated signage reminding visitors that they must stay “on trail” and advising users that access to the Property north of the Wyoming state line is prohibited. It is anticipated that a trail connector will be established pursuant to an access agreement described in sub-section D of this Section, from the Cheyenne Rim Trail to the Robert E. Green Property and the Belvoir Ranch. Public access provisions and restrictions will be established when the proposed Robert E. Green and Belvoir Trail connectors are constructed and shall be compatible with existing public access in Colorado and those established by the Easement. The Parties to this Cooperative Plan may enter into such other and further agreements as may be necessary to define the maintenance and patrol responsibilities that will be assumed by the Parties.

- E. The City, the County and any others who may become parties to future access agreements may access the Property in accordance with the terms and conditions of such existing and future access agreements. Existing access agreements are intended to implement emergency and management purposes, to permit scientific surveys and research and to allow other activities that promote the development and maintenance of this Cooperative Plan, subject to the terms and conditions of the Easement. The general public shall not be designated as a party in any of the existing or planned access agreements.

IV. Land Management

10. One of the principal goals of this Cooperative Plan is to define land management activities consistent with the Easement and prioritize current land management issues. This Cooperative Plan is not intended to direct general land management decisions on the Property. The overarching goal of land management activities is to conserve the Conservation Values as described in the EDR and Easement while facilitating public access. Based on this goal, the following land management activities will be allowed by the owner of the Property:

- A. Grazing of domestic livestock.
- B. Grazing and pasturing horses, cattle, mules, sheep, and llamas, provided that range conditions shall be maintained at, or improved from, those documented in the EDR. Grazing of other livestock species shall be subject to prior approval by the Conservancy.
- C. The Parties acknowledge that given the topography, historic ownership and management of the Property, grazing management has occurred across the boundary between the states of Colorado and Wyoming. Further, the Parties agree that grazing pastures on the Property shall be defined by existing fences, and not by Property ownership. Properly managed grazing is expected to have no significant impact on the Conservation Values and in some instances is necessary to maintain said values. In addition, grazing practices on the adjacent Red Mountain Open Space Property shall also occur in a manner such that it maintains range condition in a “good” or “excellent” condition as defined by the Natural Resources Conservation Service.
- D. Fence Maintenance and Repair. The City shall be responsible for maintenance, repair, and reconstruction of existing fencing, as documented in the EDR, and for the construction of new fences, provided that boundary or pasture-division fences shall not unduly restrict or exclude wildlife use of the Property. Wildlife friendly fences are defined by research and various agencies. Specifications are available in various textbooks, agency publications, and from

the Colorado State University (CSU) and University of Wyoming (UW) extension service and NRCS. These fences facilitate the safe and uninterrupted movement of pronghorn, mule deer, and elk.

- E. Control of Noxious Weeds. Use of agricultural chemicals for the following purposes and under the following conditions are permitted:
1. For the control of noxious weeds, as required by Wyoming state law, and for the control of other invasive exotic plant species, provided that chemical herbicides may be used only in those amounts and with a frequency of application that constitute the minimum necessary for control, and that the herbicide is not applied by aerial spraying.
 2. For the control of agricultural or forest pests, subject to prior approval by the Conservancy.
 3. Use of biological weed and insect control agents is subject to prior approval by the Conservancy.
 4. For most noxious weeds, chemical treatment is the only effective or feasible means of control. Therefore, chemicals should be allowed for use on the Property to treat noxious weeds when appropriate as long as used as directed on the labels and in consideration with the identified Conservation Values. Eradication and control of noxious weeds are considered essential steps in successful conservation.
- F. Timber Harvest. The selective harvesting of timber from the Property may be allowed but only for the purposes of controlling forest diseases, protecting persons or property from the hazards of falling trees or branches, reducing the risk of wildfire; and enhancing wildlife habitat. These conditions apply to both living and standing dead trees.

V. Miscellaneous Provisions

11. Amendment: This Plan may be amended by the Parties at any time pursuant to a written instrument duly executed by authorized representatives of the Parties.

12. The terms and conditions of this Cooperative Plan shall at all times be interpreted and implemented according to the overarching goals and objectives, terms and conditions of the Easement. If there are any inconsistencies or conflicts between the provisions contained in this Cooperative Plan and the Easement, the terms of the Easement shall prevail.

13. Five Year Reviews: This Plan shall be reviewed by the Parties at least once during the five (5) years following its execution for the purposes of updates and revisions and at least once during each additional five (5) year renewal term. The Conservancy as holder of the

Easement shall call all meetings necessary to review this Plan, set the agenda for each such meeting and act in the capacity of chair of the meeting. In the absence of a call for a meeting by the Conservancy, each Party may, upon the five (5) year anniversary of the execution of this Plan, call for a meeting to review this Plan, which meeting shall be held at the earliest convenience of the Parties hereto.

THE NATURE CONSERVANCY, a District of
Columbia non-profit corporation,

By: _____

Its: _____

Date:

State of Wyoming)
)ss
County of Laramie)

Subscribed and sworn before me this _____ day of _____, 20____.

Notary Public

My Commission Expires: _____

THE CITY OF CHEYENNE, WYOMING

By: _____

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

Date: _____

LARIMER COUNTY, COLORADO,

By: _____

Its: _____

Date:

State of Colorado)
)ss
County of Larimer)

Subscribed and sworn before me this _____ day of _____, 20____.

Notary Public

My Commission Expires: _____

2022 Agreement - Exhibit 1

Conservation Easement

[Please see separate attached conservation easement document]

Recording Requested By and When
Recorded Return to:
City of Cheyenne
Office of City Attorney
2101 O'Neil Avenue
Cheyenne, WY 82001

Laramie Foothills
(Red Mtn Ranch) Co/WY - Sale Out to
City of Cheyenne w/ Reserved CE
10/4/05

SPECIAL WARRANTY DEED

THIS SPECIAL WARRANTY DEED is granted this ~~12th~~ day of July, 2005 by THE NATURE CONSERVANCY, a District of Columbia nonprofit corporation, ("Grantor"), to the City of Cheyenne, a municipal corporation ("Grantee"), whose address is 2101 O'Neil Avenue, Cheyenne, WY 82001.

WITNESSETH, that the Grantor, for the sum of Ten and 00/100 (\$10.00) Dollars, and other good and valuable consideration, paid by the Grantee, the receipt of which is hereby acknowledged, has granted, sold and conveyed, and by these presents does grant, sell and convey unto Grantee the following land and improvements thereon situated in the County of Laramie, and State of Wyoming, and more particularly described as follows:

See Exhibit A attached hereto and made a part hereof.

SUBJECT TO a Reserved Conservation Easement in Deed attached hereto and by this reference incorporated herein as Exhibit B.

AND FURTHER SUBJECT TO easements, restrictions and other matters of record and taxes for the current year.

TO HAVE AND TO HOLD THE above-described real property, together with all and singular the rights and appurtenances thereto in anywise belonging, unto Grantee, its heirs and assigns, forever. Grantor covenants and warrants that it is lawfully seized and possessed of the real property aforesaid and has the full right, power and authority to execute this conveyance, and that said real property is free and clear of all liens, claims or encumbrances, except as shown above. Grantor does hereby warrant title to said real property only against the acts of the Grantor for that period of time in which the Grantor has held title to the real property.

GRANTOR:

THE NATURE CONSERVANCY, a District of
Columbia nonprofit corporation.

By: Nancy J.
Its: Land Conservation Program Manager

STATE OF Wyo)
) ss.
COUNTY OF Laramie)

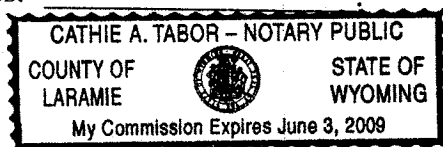
The foregoing instrument was acknowledged before me this 12th day of July, 2005
by Nancy Fishbein, as Land Conservation of The Nature Conservancy, a District of
Columbia nonprofit corporation. Program Manager

Witness my hand and official seal.

[SEAL]

Cathie A. Tabor
Notary Public

My commission expires:



LEGAL DESCRIPTION

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

Township 12 North, Range 69 West of the 6th P.M.

- Section 18: All lying South of the Union Pacific Railroad Company Right-of-Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.
- Section 19: Lots 1, 2, 3 and 4 in Wyoming

Township 12 North, Range 70 West of the 6th P.M.

- Section 12: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.
- Section 13: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.
- Section 23: Lots 1, 2, 3, 4, in Wyoming.
- Section 24: Lots 1, 2, 3, 4, in Wyoming.

TOGETHER WITH all corrals, fences, gates, cattle handling facilities, water tanks, windmills, scales, buildings, and other improvements owned by the Grantor now located on said property, including all fixtures of a permanent nature;

TOGETHER WITH all rights, title, and interest of the Grantor in and to easements, rights-of-way, and rights to same belonging and inuring to the benefit of the property;

TOGETHER WITH one hundred percent (100%) of all rights, title, and interest of the Grantor in and to all mineral rights or reversionary mineral rights owned by the Grantor in connection with the property; AND

TOGETHER WITH all leasehold interests owned by the Grantor in connection with the property.

Also known by the following surveyed legal description:

LEGAL DESCRIPTION OF PARCEL 1:

A PORTION OF SECTIONS 18 AND 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., AND A PORTION OF SECTIONS 12, 13, 23, AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., ALL IN THE COUNTY OF LARAMIE, STATE OF WYOMING BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

CONSIDERING THE COLORADO AND WYOMING STATE LINE BETWEEN MILE POST 59 AND MILE POST 61 TO BEAR NORTH $89^{\circ}59'29''$ EAST ALSO BEING THE SOUTH LINE OF LARAMIE COUNTY, WYOMING AND THE NORTH LINE OF LARIMER COUNTY, COLORADO WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO; BEGINNING AT A POINT ON THE COLORADO AND WYOMING STATE LINE, FROM WHICH MILE POST 56 BEARS SOUTH $89^{\circ}56'32''$ EAST, A DISTANCE OF 11,274.92 FEET; THENCE NORTH $09^{\circ}46'12''$ EAST, A DISTANCE OF 1053.43 FEET; THENCE NORTH $44^{\circ}38'47''$ WEST, A DISTANCE OF 826.47 FEET; THENCE NORTH $64^{\circ}05'39''$ WEST, A DISTANCE OF 2456.63 FEET; THENCE NORTH $44^{\circ}50'48''$ WEST, A DISTANCE OF 3565.62 FEET; THENCE NORTH $56^{\circ}57'37''$ WEST, A DISTANCE OF 2447.93 FEET TO A POINT ON THE NORTH LINE OF SECTION 13, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M.; FROM WHICH THE NORTHWEST CORNER OF SAID SECTION 13 BEARS NORTH $89^{\circ}10'56''$ WEST, A DISTANCE OF 738.78 FEET; THENCE NORTH $00^{\circ}00'23''$ EAST, PARALLEL WITH THE EAST LINE OF THE SOUTHWEST 1/4 OF SECTION

12, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 812.53 FEET TO THE SOUTH RIGHT-OF-WAY LINE OF THE UNION PACIFIC RAILROAD; THENCE NORTH $63^{\circ}33'54''$ WEST, PARALLEL WITH AND 200 FEET SOUTHERLY FROM THE CENTERLINE OF THE UNION PACIFIC RAILROAD, A DISTANCE OF 208.82 FEET TO THE BEGINNING OF A CURVE, CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 3525.66 FEET AND A CENTRAL ANGLE OF $09^{\circ}44'24''$, AND BEING SUBTENDED BY A CHORD WHICH BEARS NORTH $67^{\circ}09'42''$ WEST, A DISTANCE OF 598.62 FEET; THENCE NORTHWESTERLY AND WESTERLY ALONG SAID CURVE, A DISTANCE OF 599.34 FEET TO A POINT OF CUSP ON THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 12; THENCE SOUTH $00^{\circ}00'23''$ WEST, ALONG THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 12, A DISTANCE OF 1127.29 FEET TO THE NORTHWEST CORNER OF SAID SECTION 13; THENCE SOUTH $00^{\circ}26'17''$ WEST, ALONG THE WEST LINE OF THE NORTHWEST 1/4 OF SAID SECTION 13, A DISTANCE OF 2621.78 FEET TO THE WEST 1/4 CORNER OF SAID SECTION 13; THENCE SOUTH $00^{\circ}26'26''$ WEST, ALONG THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 13, A DISTANCE OF 2621.53 FEET TO THE SOUTHWEST CORNER OF SAID SECTION 13; THENCE NORTH $89^{\circ}51'46''$ WEST, ALONG THE NORTH LINE OF THE LOTS 1 AND 2 OF SECTION 23, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 2713.37 FEET TO THE NORTH 1/4 CORNER OF SAID SECTION 23; THENCE SOUTH $89^{\circ}52'05''$ WEST, ALONG THE NORTH LINE OF LOTS 3 AND 4 OF SAID SECTION 23, A DISTANCE OF 2523.67 FEET TO THE NORTHWEST CORNER OF SAID SECTION 23; THENCE SOUTH $02^{\circ}48'19''$ WEST, ALONG THE WEST LINE OF LOT 4 OF SAID SECTION 23, A DISTANCE OF 1328.56 FEET TO THE CLOSING CORNER FOR SECTIONS 22 AND 23, TOWNSHIP 12

NORTH, RANGE 70 WEST OF THE 6TH P.M., SAID CORNER BEING ON THE COLORADO AND WYOMING STATE LINE; FROM WHICH MILE POST 61 BEARS SOUTH 89°59'29" WEST, A DISTANCE OF 1763.52 FEET; THENCE NORTH 89°59'29" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 5304.41 FEET TO THE CLOSING CORNER BETWEEN SECTIONS 23 AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., THENCE CONTINUING NORTH 89°59'29" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 3454.64 FEET TO MILE POST 59; THENCE SOUTH 89°56'32" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 1908.62 FEET TO THE CLOSING CORNER BETWEEN SECTIONS 19 AND 24, TOWNSHIP 12 NORTH, RANGES 69 AND 70 WEST OF THE 6TH P.M.; THENCE CONTINUING SOUTH 89°56'32" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 2591.69 FEET TO THE TRUE POINT OF BEGINNING. COUNTY OF LARAMIE, STATE OF WYOMING. CONTAINING 923.74 ACRES, MORE OR LESS.

LEGAL DESCRIPTION OF PARCEL 2:

A PORTION OF SECTIONS 18 AND 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., AND A PORTION OF SECTIONS 12, 13, 23, AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., ALL IN THE COUNTY OF LARAMIE, STATE OF WYOMING BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

CONSIDERING THE COLORADO AND WYOMING STATE LINE BETWEEN MILE POST 59 AND MILE POST 61 TO BEAR NORTH 89°59'29" EAST ALSO BEING THE SOUTH LINE OF LARAMIE COUNTY, WYOMING AND THE NORTH LINE OF LARIMER COUNTY, COLORADO WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO; BEGINNING AT A POINT ON THE COLORADO AND WYOMING STATE LINE, FROM WHICH MILE POST 56 BEARS SOUTH 89°56'32" EAST, A DISTANCE OF 11,274.92 FEET; THENCE NORTH 09°46'12" EAST, A DISTANCE OF 1053.43 FEET; THENCE NORTH 44°38'47" WEST, A DISTANCE OF 826.47 FEET; THENCE NORTH 64°05'39" WEST, A DISTANCE OF 2456.63 FEET; THENCE NORTH 44°50'48" WEST, A DISTANCE OF 3565.62 FEET; THENCE NORTH 56°57'37" WEST, A DISTANCE OF 2447.93 FEET TO A POINT ON THE NORTH LINE OF SECTION 13, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M.; FROM WHICH THE NORTHWEST CORNER OF SAID SECTION 13 BEARS NORTH 89°10'56" WEST, A DISTANCE OF 738.78 FEET; THENCE NORTH 00°00'23" EAST, PARALLEL WITH THE EAST LINE OF SECTION 12, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 812.53 FEET TO THE SOUTH RIGHT-OF-WAY LINE OF THE UNION PACIFIC RAILROAD; THENCE SOUTH 63°33'54" EAST, PARALLEL WITH AND 200 FEET SOUTHERLY FROM THE CENTERLINE OF THE MAIN TRACK OF THE UNION PACIFIC RAILROAD, A DISTANCE OF 147.67 FEET TO THE BEGINNING OF A CURVE, CONCAVE TO THE NORTH, HAVING A RADIUS OF 3305.55 FEET, AND A CENTRAL ANGLE OF 27°58'53", AND BEING SUBTENDED BY A CHORD WHICH BEARS SOUTH 75°28'29" EAST, A DISTANCE OF 1598.33 FEET; THENCE SOUTHEASTERLY AND EASTERLY ALONG SAID CURVE, AND ALONG SAID RIGHT-OF-WAY LINE, A DISTANCE OF 1614.33 FEET; THENCE SOUTH 87°29'29" EAST, ALONG SAID RIGHT-OF-WAY LINE, A DISTANCE OF 2872.76 FEET TO THE EAST LINE OF SAID SECTION 12; THENCE SOUTH 00°28'50" EAST, ALONG THE EAST LINE OF THE SOUTHEAST 1/4 OF SAID SECTION 12, A DISTANCE OF 317.79 FEET TO THE NORTHWEST CORNER OF SECTION 18, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M.; THENCE NORTH 89°30'51" EAST, ALONG THE NORTH LINE OF THE NORTHWEST 1/4 OF SAID SECTION 18, A DISTANCE OF 2540.90 FEET TO THE NORTH 1/4 CORNER OF SAID SECTION 18; THENCE SOUTH 89°51'18" EAST, ALONG THE NORTH LINE OF THE NORTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2631.47 FEET TO THE NORTHEAST CORNER OF SAID SECTION 18; THENCE SOUTH 03°40'06" EAST, ALONG THE EAST LINE OF THE NORTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2667.75 FEET TO THE EAST 1/4 CORNER OF SAID SECTION 18;

THENCE SOUTH 00°57'52" EAST, ALONG THE EAST LINE OF THE SOUTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2588.84 FEET TO THE SOUTHEAST CORNER OF SAID SECTION 18; THENCE SOUTH 00°24'42" EAST, ALONG THE EAST LINE OF LOT 1 OF SAID SECTION 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., A DISTANCE OF 1231.46 FEET TO THE COLORADO AND WYOMING STATE LINE; FROM WHICH MILE POST 56 BEARS SOUTH 89°56'32" EAST, A DISTANCE OF 8505.72 FEET;

THENCE NORTH 89°56'32" WEST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 2769.20 FEET TO THE TRUE POINT OF BEGINNING.

COUNTY OF LARAMIE, STATE OF WYOMING.

CONTAINING 884.18 ACRES, MORE OR LESS.

RESERVATION OF CONSERVATION EASEMENT
(Laramie Foothills -Red Mountain Ranch to City of Cheyenne)

THIS RESERVATION OF CONSERVATION EASEMENT is made this 12 day of July, 2005 by and between THE NATURE CONSERVANCY, a District of Columbia nonprofit corporation, whose principal address is 4245 North Fairfax Drive, Suite 100, Arlington, Virginia 22203 (the "Conservancy"), and THE CITY OF CHEYENNE WYOMING, a municipal corporation, whose address is 2101 O'Neil Avenue, Cheyenne, WY 82001 (the "Grantee").

Exhibits to this Reservation of Conservation Easement include the following:

- Exhibit A - Legal Description of the Property
- Exhibit B - Map of the Property
- Exhibit C - Acknowledgment of Easement Documentation Report
- Exhibit D - Water Rights

WITNESSETH THAT:

A. The Conservancy is the owner of certain real property in Laramie County, Wyoming, consisting of 1800 acres, more or less, more particularly described and shown in Exhibits A and B attached hereto and incorporated herein by this reference (the "Property").

B. The Property currently remains in a substantially undisturbed, natural state and has significant ecological and open-space values and provides significant relatively natural habitat for native plants and wildlife.

C. Protection of the Property will contribute to the conservation of important significant relatively natural habitat for wildlife and plants, including particularly native foothills grasslands, mountain mahogany, skunkbush sumac and rabbitbrush shrublands, elk, deer, antelope, nesting raptors, migratory and breeding birds and mammals (the "Conservation Values"). In addition, the Property harbors scenic and agricultural values worthy of protection.

D. The Property lies adjacent to the Red Mountain Ranch - Colorado, a property owned and managed as open space by Larimer County, Colorado, and opportunity exists for cooperative and compatible management across the state boundary line, facilitating landscape-scale conservation.

U:\NJF\PHANTOM\RED MNT\Cheyenne Out\Final Documents\RMR RESERVED CE FINAL 7-8-05.doc
July 8, 2005

E. All of these natural elements and ecological values are of great importance to Grantee, the Conservancy and to the people of the State of Wyoming, and are worthy of conservation.

F. The State of Wyoming has recognized the importance of private efforts toward the preservation of natural systems in the state by enactment of Wyoming Statue 34-1-201 through 34-1-207, Uniform Conservation Easement Act.

G. The Conservancy, as owner of the Property, owns the affirmative rights to identify, preserve, and protect in perpetuity its open space character and its significant relatively natural features and values.

H. The Conservancy will be conveying the Property to Grantee and retaining this Easement.

I. The Conservancy is a private organization organized to protect and conserve natural areas and ecologically significant land for scientific, charitable and educational purposes, and is a "qualified organization" within the provisions of Section 170(h) of the Internal Revenue Code of 1986, as amended (the "IRS Code"), qualified to acquire and hold conservation easements and meets the requirements of the IRS Code as a Sec. 501(c)(3) exempt organization.

TERMS AND CONDITIONS

NOW, THEREFORE, in connection with the conveyance of the Property by the Conservancy to the Grantee, made in consideration of the covenants contained herein, the Conservancy does reserve unto itself a perpetual conservation easement consisting of the rights and restrictions enumerated herein, over and across the Property (the "Easement").

1. Purposes. It is the purpose of the Easement to preserve and protect in perpetuity and, in the event of their degradation or destruction, to enhance and restore the open space and significant relatively natural features and values of the Property. It is further the specific purpose of this Easement to conserve important habitat for wildlife; to protect rare or unique native plants currently known or later identified; and to conserve the diverse forest, meadow, and riparian vegetative communities and the wildlife inhabiting these communities. In achieving these purposes, it is the intent of the Easement to permit the continuation of such uses of the Property as may be conducted consistent with the Conservation Values protected herein.

2. Easement Documentation Report. Competent naturalists familiar with the Property have prepared a collection of baseline data on the Property and its resources. The data and explanatory text are presented in the "Red Mountain Ranch - Wyoming Easement Documentation Report" dated July 1, 2005 (the "Report"). A copy of the Report is on file with both Grantee and the Conservancy and by this reference made a part hereof. The parties acknowledge that the Report is U:\NJF\PHANTOMRED MNT\Chyenenne Out\RMR RESERVED CE FINAL 7-8-05.doc July 8, 2005

intended to establish the condition of the Property subject to the Easement as of the date written above and that both Grantee and the Conservancy have acknowledged in a signed statement, a copy of which is attached hereto as Exhibit C, that the Report accurately represents the condition of the Property at the time of conveyance. The parties agree that, in the event a controversy arises with respect to the nature and extent of the biological or physical condition of the Property, the parties shall not be foreclosed from utilizing all other relevant or material documents, surveys, reports, and other information to assist in the resolution of the controversy.

For the purposes of this Easement, and as a supplement to the Report, the Property includes any and all water and water rights beneficially used or conditionally decreed for use on the land described in Exhibits A and B that are owned by the Property owner, and all ditches, headgates, springs, reservoirs, water allotments, water shares and stock certificates, contracts, units, and wells, together with any associated easements and rights of way (the "Water Rights"). The Water Rights include surface water rights and groundwater rights, whether tributary, nontributary, not-nontributary, or designated, including, but not limited to, those water rights or interests specifically described on Exhibit D attached hereto.

3. Rights of the Conservancy. The rights retained by the Conservancy by the Easement are the following:

A. To identify, to preserve and protect in perpetuity, and in the event of their degradation or destruction to restore or to enforce the restoration of the open space and significant relatively natural ecological features and Conservation Values of the Property.

B. To perform such activities on the Property as the Conservancy reasonably determines are necessary or convenient to carry out these rights granted by this Easement.

C. To enter upon the Property to enforce the rights herein granted, to study and make scientific observations of its ecosystems, and to determine that Grantee's activities are in compliance with the terms of the Easement, all upon prior notice to Grantee and in a manner that does not unreasonably disturb the use of the Property by Grantee consistent with the Easement. The Conservancy shall also have the right of immediate entry to the Property if, in its sole judgment, such entry is necessary to prevent damage to or the destruction of the Conservation Values protected by the Easement.

D. To enjoin any activity on or any use of the Property that is inconsistent with the Easement.

4. Land Management. The Property shall be operated and managed in accordance with a cooperative land management plan prepared by Grantee, the Conservancy and Larimer County Parks and Open Lands (the "County"), which plan shall be initially agreed upon by December 31, 2007 and shall be updated at least every five years (the "Cooperative Plan"). The Cooperative

U:\NJF\PHANTOM\RED MNT\Cheyenne Out\RM\RESERVED CE FINAL 7-8-05.doc
July 8, 2005

Plan shall include but not be limited to guidelines for appropriate land stewardship, recreational uses, and public access.

5. Interim Management Plan. Prior to the completion of the Cooperative Plan, as defined above, the Conservancy solely shall develop an Interim Management Plan to guide land use on the Property until such time as the Cooperative Plan is completed (the "Interim Plan"). If the Cooperative Plan is not completed by December 31, 2007, the Conservancy will update the Interim Plan and it shall continue to guide land use on the Property until a Cooperative Plan is completed by the Grantee, the Conservancy and the County.

6. Consistent Uses of the Property. The following uses and practices by Grantee, though not an exhaustive recital of consistent uses and practices, are consistent with the Easement. Certain of these consistent uses and practices are identified as being subject to specified conditions or to the requirement of and procedures for prior approval by the Conservancy, and procedures for such prior approval are provided below. The remainder of these consistent uses shall not be precluded, prevented, or limited by the Easement.

A. Educational programs, natural history interpretation, and scientific research, provided such activities are conducted according to the Interim Plan, as subsequently replaced by the Cooperative Plan (the "Plan") and in a manner that does not have adverse impacts on the Conservation Values.

B. Non-commercial, non-motorized passive recreational activities, such as horseback riding, hiking, cross-county skiing, bicycle riding, and other similar low-impact recreational uses, to be enjoyed by the Grantee and the public, in accordance with the Plan. Fishing and hunting are likewise permitted, so long as they are undertaken in compliance with applicable state and federal laws and regulations and pursued in a manner that does not substantially diminish or impair the Conservation Values.

C. Maintenance and repair of existing roads, as documented in the Report, provided no roads shall be paved or oiled or have calcium carbonate applied or otherwise be improved with chemical coatings or other non-natural materials.

D. The development of one small, unpaved, temporary stopping site to accommodate limited guided public access as specified in the Plan, provided (i) the area shall not be paved or oiled or have calcium carbonate applied or otherwise be improved with chemical coatings or other non-natural materials, (ii) the area shall be restored with native vegetation after the guided public access use is terminated, and (iii) the area shall not be located directly along the rim of the canyon.

E. Motorized vehicular access on existing roads, as documented in the Report, for property maintenance, management, patrol, and emergency services, by the Grantee and/or

U:\NJF\PHANTOM\RED MNT\Cheyenne Out\RMR RESERVED CE FINAL 7-8-05.doc
July 8, 2005

its personal representatives and assigns. Limited off road use by motorized vehicles is permitted only for weed control, prescribed burns for ecological purposes, and for emergency purposes, provided impacts to the Conservation Values are minimized. The Easement expressly prohibits public vehicular access.

F. Construction of unpaved trails associated with public non-motorized recreation, provided such trails are located and constructed according to the Plan.

G. Installation of small directional and interpretive signage along the existing roads, as documented in the Report, provided no sign is lighted.

H. Grazing and pasturing horses, cattle, mules, sheep, and llamas, provided that range conditions shall be maintained at, or improved from, those documented in the Report. Grazing of other livestock species shall be subject to prior approval by the Conservancy.

I. Maintenance, repair, and, if destroyed, reconstruction of existing fencing, as documented in the Report, and the construction of new fences; provided that boundary or pasture-division fences shall not unduly restrict or exclude wildlife use of the Property.

J. Use of agricultural chemicals for the following purposes and under the following conditions:

i. For the control of noxious weeds, as required by Wyoming state law, and for the control of other invasive exotic plant species; provided that chemical herbicides may be used only in those amounts and with a frequency of application that constitute the minimum necessary for control; and that the herbicide is not applied by aerial spraying.

ii. For the control of agricultural or forest pests, subject to prior approval by the Conservancy.

K. Use of biological weed and insect control agents, subject to prior approval by the Conservancy.

L. The selective harvesting of timber only for the following purposes: controlling forest disease; protecting persons or property from the hazards of falling trees or branches or wildfire; providing firewood for domestic use on the Property; and enhancing wildlife habitat. These conditions apply to both living and standing dead trees.

M. Grantee shall have the right to continue the historic use of the Water Rights on the Property (as described in the Report) and to maintain, repair, and if destroyed, reconstruct any existing facilities related to the Water Rights (such as ditches, wells and reservoirs)

U:\NJF\PHANTOM\RED MNT\Cheyenne Out\RM\RESERVED CE FINAL 7-8-05.doc
July 8, 2005

unless the Conservation Values of the Property would be adversely impacted thereby, as determined by the Conservancy in its sole judgment. Grantor's use of the Water Rights on the Property is subject to the reservation recorded in Laramie County at Reception # 40689 whereby Larimer County reserves to itself and its assigns all rights to use of the existing supply of water from Spring #19, as may be permitted by law, serving an existing stock tank on the County's adjacent property including the reasonable right of entry for the County to inspect the spring, maintain existing structures for the spring and delivery of water, provided that the County will not develop the spring to increase the historic water flow.

7. Inconsistent Uses of the Property. The following uses and practices on the Property shall be prohibited, except as specifically provided in Paragraph 6:

A. The dumping or other disposal, or other than in the normal course of ranch use, the storage of toxic and/or hazardous materials.

Notwithstanding anything in this Easement to the contrary, this prohibition does not make the Conservancy an owner of the Property, nor does it permit the Conservancy to control any use of the Property by the Grantee which may result in the storage, dumping or disposal of hazardous or toxic materials; provided, however, that the Conservancy may bring an action to protect the Conservation Values of the Property, as described in this Easement. This prohibition does not impose liability on the Conservancy, nor shall the Conservancy be construed as having liability as a "responsible party" under CERCLA or similar federal or state statutes.

B. Dumping or other disposal of non-compostable refuse, wildlife-attracting materials, or any other material which could reasonably be considered debris, including the establishment of a landfill.

C. The change, disturbance, alteration, or impairment of the Conservation Values.

D. The application, storage or placement on the Property of domestic septic effluent, municipal, commercial or industrial sewage sludge, or animal waste created from intensive livestock operations on other properties.

E. Conversion of native vegetation to exotic cover species or the introduction of non-native plant species; farming, plowing or any type of cultivation is prohibited.

F. Introduction or release of nonnative animal species.

G. Establishment and operation of a livestock feedlot (which shall be defined for purposes of this Easement as a permanently constructed confined area or facility within

U:\NJF\PHANTOMRED MNT\Cheyenne Out\RMRESERVED CE FINAL 7-8-05.doc
July 8, 2005

which the land is not grazed or cropped annually for purposes of engaging in the business of the reception and feeding of livestock for hire) or any wild game farming or ranching facilities.

H. Filling, excavating, dredging, mining, drilling, and the exploration for or extraction of minerals, hydrocarbons, soils, sand, gravel, rock, or other materials on or below the surface of the Property, except for purposes specifically permitted in this Easement.

I. Division, subdivision, or de facto subdivision of the Property.

J. Construction or placement of any buildings, temporary living quarters of any sort, mobile homes, signs, billboards or other advertising materials, utility towers, wind powered electricity generators, or other structures.

K. Construction of roads or vehicle trails.

L. Use of snowmobiles, all-terrain vehicles, motorcycles, or other motorized vehicles on or off roads, trails or travelways.

M. Cutting, removing, or destruction of native vegetation, except by grazing, haying, non-commercial harvest of timber, herbicide application, or approved land management techniques such as periodic burning that are outlined in the Plan.

N. Animal trapping for purposes other than control of predatory animals which demonstrably have caused damage to property. Trapping methods employed must be selective for the target species and administered as humanely as is possible.

O. The establishment or operation of any shooting ranges.

P. Application of biocides, herbicides, defoliants, chemical fertilizers, or other chemicals.

Q. Changing the topography of the Property by placing on it any soil, dredging spoils, land fill, or other material, except as necessary to conduct authorized road and trail construction activities.

R. Establishment of any commercial activity, including but not limited to operating a commercial lodging, outfitting, guiding or guest ranch facility, except for agricultural, recreation, and scientific and public visitation activities permitted herein and conducted according to the Plan, including guided horseback riding. Any commercial uses which are allowed shall be conducted in a manner that is consistent with § 170(h) of the United States Internal Revenue Code and the Treasury Regulations adopted pursuant thereto,

U:\NJ\F\PHANTOM\RED MNT\Cheyenne Out\RM\RESERVED CE FINAL 7-8-05.doc
July 8, 2005

shall be consistent with the purposes of the Easement, and shall not adversely affect the Property's Conservation Values.

S. Any new manipulation, diversion, or other alteration of natural water courses, wetlands, or other natural bodies of water, any new pumping of groundwater whether tributary or not, any new practice that degrades or destabilizes their natural banks or shorelines, or any other new development of water resources. Grantee shall not develop any conditional water rights for use on the Property.

T. The Water Rights may never (i) be changed to or used for municipal, industrial, commercial uses, or other new uses, (ii) be changed for use other than on the Property, (iii) be sold, leased, encumbered separately from the Property or otherwise legally separated from the Property, or (iv) have their points of diversion, or their type or place of use within the Property changed, except after a written determination by the Conservancy in its sole judgment that such changes do not impair the Conservation Values of the Property. No loss of any or all of the Water Rights through injury or abandonment, shall be considered a loss, severance or other transfer of the Water Rights from the Property for federal or state tax or other purposes.

8. Unlawful Activities. Any activity or use on the Property that violates any applicable federal, state, county, or local law, rule, ordinance, or regulation is prohibited.

9. Prior Notice and Approval. Grantee shall not undertake or permit any activity requiring prior approval by the Conservancy without first having notified and received approval from the Conservancy as provided herein.

Prior to the commencement of any such activity, Grantee shall send the Conservancy written notice of his/her intention to undertake or permit such activity. The notice shall inform the Conservancy of all aspects of the proposed activity, including location, design, materials or equipment to be used, dates and duration, and any other relevant information, and shall be sent by registered or certified mail, return receipt requested, to The Nature Conservancy, Colorado Field Office, whose address is 2424 Spruce, Boulder, CO 80302, with a copy to the Western Regional Attorney, The Nature Conservancy, 2424 Spruce Street, Suite 100, Boulder, CO 80302, or such other addresses as Grantee may from time to time be informed of in writing by the Conservancy.

The Conservancy shall have forty-five (45) days from receipt of the notice, as indicated by the date of the return receipt, to review the proposed activity and to notify Grantee of any objections thereto; provided that the 45-day period shall not begin until such time as the Conservancy has received adequate information from Grantee to evaluate the proposed activity. In the event that the Conservancy requires additional information to evaluate the proposed activity, the Conservancy shall request the information from Grantee as soon as practicable and in any case not later than 30 days after the receipt of the notice of the proposed activity.

U:\NJF\PHANTOMRED MNT\Cheyenne Out\RMR RESERVED CE FINAL 7-8-05.doc
July 8, 2005

The Conservancy's decision to approve or disapprove the activity proposed by Grantee shall be sent by registered or certified mail, return receipt requested, to Grantee at the address first stated above, or to such other address as the Conservancy may from time to time be informed of in writing by Grantee.

A decision by the Conservancy to disapprove a proposed activity must be based upon the Conservancy's determination that the proposed activity is inconsistent with the conservation purposes of the Easement. If in the Conservancy's judgment it is possible that the proposed activity can be modified to be consistent with the easement, the Conservancy's decision notice shall inform Grantee of such modification(s). Once modification is made to the satisfaction of the Conservancy or the Conservancy otherwise concurs with the matters set forth in Grantee's notice, the proposed activity may thereafter be conducted in a manner that is acceptable to the Conservancy.

Should the Conservancy fail to post its response to Grantee's notice within forty five (45) days of its receipt of notice or within forty five (45) days of the time that the Conservancy has received adequate information to evaluate the proposed activity, whichever is later, the proposed activity is automatically deemed consistent with the terms of the Easement, the Conservancy having no further right to object to the activity identified by such notice.

10. Remedies, Breach and Restoration. The provisions of this Easement are enforceable in law or equity by the Conservancy, its successors or assigns, as follows:

A. Notice of Violation; Corrective Action. If the Conservancy determines that a violation of the terms of this Easement has occurred or is threatened, the Conservancy shall give written notice to Grantor of such violation and demand corrective action sufficient to cure the violation and, where the violation involves injury to the Property resulting from any use or activity inconsistent with the purpose of this Easement, to restore the portion of the Property so injured to its prior condition in accordance with a plan approved by the Conservancy.

B. Injunctive Relief. If Grantor fails to cure the violation within thirty (30) days after receipt of notice thereof from the Conservancy, or under circumstances where the violation cannot reasonably be cured within a 30 day period, fail to begin curing such violation within the 30 day period, or fail to continue diligently to cure such violation until finally cured, the Conservancy may bring an action at law or in equity in a court of competent jurisdiction to enforce the terms of this Easement, to enjoin the violation, *ex parte* as necessary, by temporary or permanent injunction, and to require the restoration of the Property to the condition that existed prior to any such injury.

C. Damages. The Conservancy shall be entitled to recover damages for violation of the terms of this Easement or injury to any Conservation Values protected by this Easement,

U:\NJF\PHANTOMRED MNT\Cheyenne Out\RMR RESERVED CE FINAL 7-8-05.doc
July 8, 2005

including, without limitation, damages for the loss of scenic, aesthetic, or environmental values. Without limiting Grantor's liability therefor, the Conservancy, in its sole discretion, may apply any damages recovered to the cost of undertaking any corrective action on the Property.

D. Emergency Enforcement. If the Conservancy, in its sole discretion, determines that circumstances require immediate action to prevent or mitigate significant damage to the Conservation Values of the Property, the Conservancy may pursue its remedies under this **Paragraph 10.** without prior notice to Grantor or without waiting for the period provided for cure to expire.

E. Scope of Relief. The Conservancy's rights under this **Paragraph 10.** apply equally in the event of either actual or threatened violations of the terms of this Easement. Grantor agrees that the Conservancy's remedies at law for any violation of the terms of this Easement are inadequate and that the Conservancy shall be entitled to the injunctive relief described in **Paragraph 10.B.** above, both prohibitive and mandatory, in addition to such other relief to which the Conservancy may be entitled, including specific performance of the terms of this Easement, without the necessity of proving either actual damages or the inadequacy of otherwise available legal remedies. The Conservancy's remedies described in this **Paragraph 10.** shall be cumulative and shall be in addition to all remedies now or hereafter existing at law or in equity.

F. Costs of Enforcement. All reasonable costs incurred by the Conservancy in enforcing the terms of this Easement against Grantor, including, without limitation, costs and expenses of suit and reasonable attorneys' fees, and any costs of restoration necessitated by Grantor's violation of the terms of this Easement shall be borne by Grantor; provided, however, that if Grantor ultimately prevails in a judicial enforcement action, all reasonable costs incurred by the Grantor in such action, including, without limitation, costs and expenses of suit and reasonable attorneys' fees, shall be borne by the Conservancy.

G. Forbearance. Forbearance by the Conservancy to exercise its rights under this Easement in the event of any breach of any term of this Easement by Grantor shall not be deemed or construed to be a waiver by the Conservancy of such term or of any subsequent breach of the same or any other term of this Easement or of any of the Conservancy's rights under this Easement. No delay or omission by the Conservancy in the exercise of any right or remedy upon any breach by Grantor shall impair such right or remedy or be construed as a waiver.

H. Waiver of Certain Defenses. Grantor hereby waives any defense of laches, estoppel or prescription.

I. Acts Beyond Grantor's Control. Nothing contained in this Easement shall be construed to entitle the Conservancy to bring any action against Grantor for any injury to or change in the Property resulting from causes beyond Grantor's control, including, without limitation, fire, flood, storm, and earth movement, or from any prudent action taken by Grantor under emergency conditions to prevent, abate, or mitigate significant injury to the Property resulting from such causes.

11. Liabilities. To the extent allowed by law, Grantee shall hold harmless, indemnify, and defend the Conservancy and the Conservancy's members, directors, officers, employees, agents, and contractors and the heirs, personal representatives, successors, and assigns of each of them ("Indemnified Parties") from and against all liabilities, penalties, costs, losses, damages, expenses, causes of action, claims, demands, or judgments, including, without limitation, reasonable attorney's fees, arising from or in any way connected with: (1) injury to or the death of any person, or physical damage to any property, resulting from any act, omission, condition, or other matter related to or occurring on or about the Property, regardless of cause, unless due solely to the negligence of any of the Indemnified Parties; (2) the obligations specified in Paragraph 11 herein; and (3) the presence or release of any hazardous material or substance of any kind on the Property. For the purpose of this paragraph, hazardous or toxic substances shall mean any hazardous or toxic substance which is regulated under any federal, state or local law. This paragraph shall not apply in the case of any hazardous material or substance in any manner placed on the Property by the Conservancy or the Conservancy's representatives or agents. As between the parties to this Easement, Buyer expressly waives its right to invoke governmental immunity for any claim arising out of this Easement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. Section 1-39-101 et seq. (the "Immunity Statute"). As to all other parties, Buyer expressly reserves the right to invoke immunity for any claim arising out of this Easement pursuant to the Immunity Statute.

12. Costs and Legal Requirements. Grantor retains all responsibilities and shall bear all costs and liabilities of any kind related to the ownership, operation, upkeep and maintenance of the Property and agrees that the Conservancy shall have no duty or responsibility for the operation or maintenance of the Property, the monitoring of hazardous conditions thereon, or the protection of Grantor, the public, or any third parties from risks relating to conditions on the Property. Grantor agrees to pay before delinquency any and all real property taxes and assessments levied by competent authority on the Property and that Grantor shall keep the Conservancy's interest in the Property free of any liens, including those arising out of any work performed for, materials furnished to or obligations incurred by Grantor. Grantor shall be solely responsible for any costs related to the maintenance of general liability insurance covering acts on the Property. Grantor remains solely responsible for obtaining any applicable governmental permits and approvals for any activity or use permitted by this Easement, and any activity or use shall be undertaken in accordance with all applicable federal, state, and local laws, regulations, and requirements. If more than one person or entity constitutes Grantor, the obligations of each and all of them under this Easement shall be joint and several.

U:\NJF\PHANTOM\RED MNT\Cheyenne Out\RMRESERVED CE FINAL 7-8-05.doc
July 8, 2005

13. [Intentionally omitted]

14. Assignment. The Conservancy may assign the Easement with Grantee's consent; provided that:

- a. The Conservancy requires, as a condition of such transfer, that the conservation purposes of the Easement continue to be carried out; and
- b. An assignment may be made only to an organization qualified at the time of transfer as an eligible donee under the IRS Code.

The Conservancy may also assign separately, with the Grantee's consent, all restrictions and responsibilities in this Easement concerning the Water Rights subject to the terms of this Easement.

15. Change of Conditions. The fact that any use of the Property that is expressly prohibited by this Easement, or any other use as determined to be inconsistent with the purpose of this Easement, may become greatly more economically valuable than permitted uses, or that neighboring properties may in the future be put entirely to uses that are not permitted thereunder, has been considered by the Grantee in granting this Easement. It is Grantee's belief that any such changes will increase the benefit to the public of the continuation of this Easement, and it is the intent of both Grantee and the Conservancy that any changes should not be assumed to be circumstances justifying the termination or extinguishment of this Easement pursuant to this paragraph. In addition, the inability to carry on any or all of the permitted uses, or the unprofitability of doing so, shall not impair the validity of this Easement or be considered grounds for its termination or extinguishment pursuant to this paragraph.

16. Extinguishment. If circumstances arise in the future that render the purpose of this Easement impossible or impractical to accomplish, this Easement can only be terminated or extinguished, whether with respect to all or part of the Property, by judicial proceeding in a court of competent jurisdiction. Each party shall promptly notify the other when it first learns of such circumstances. The amount of proceeds to which the Conservancy shall be entitled, after satisfaction of prior claims, from any sale, exchange, or involuntary conversion of all or any portion of the Property subsequent to such termination or extinguishment, shall be determined, unless otherwise provided by Wyoming law at that time, in accordance with Paragraph 18 below. No loss of any or all of the Water Rights through injury or abandonment shall be considered a termination or extinguishment of all or any part of this Easement.

17. Condemnation. If the Easement is taken, in whole or in part, by exercise of the power of eminent domain, the Conservancy shall be entitled to compensation in accordance with Paragraph 18 below.

U:\NJF\PHANTOM\RED MNT\Cheyenne Out\RMRESERVED CE FINAL 7-8-05.doc
July 8, 2005

18. Proceeds. This Easement constitutes a real property interest immediately vested in the Conservancy, which the parties stipulate to have a fair market value equal to 38% of the full fair market value of the Property at the time of the grant of this Easement. For the purpose of this paragraph, the ratio of the value of the Easement to the value of the Property unencumbered by the Easement shall remain constant.

19. Amendment. If circumstances arise under which an amendment to or modification of the Easement would be appropriate, Grantee and the Conservancy may jointly amend the Easement. Any such amendment shall be consistent with the purposes of the Easement, shall not affect its perpetual duration, shall not permit additional development or improvements to be undertaken on the Property other than development or improvements currently permitted by the Easement, and shall not impair any of the significant Conservation Values of the Property. Any such amendment shall be recorded in the official records of the county in which the Property is located.

20. Interpretation. The provisions of this Easement shall be liberally construed to effectuate the purpose of preserving and protecting habitat for wildlife, unique native plants, and diverse forest, meadow and riparian vegetative communities. No remedy or election given by any provision in this Easement shall be deemed exclusive unless so indicated, but it shall, wherever possible, be cumulative with all other remedies at law or in equity. The parties acknowledge that each party and its counsel have reviewed and revised this Easement and that no rule of construction that ambiguities are to be resolved against the drafting party shall be employed in the interpretation of this Easement. In the event of any conflict between the provisions of this Easement and the provisions of any use and zoning restrictions of the state or county in which the Property is located, or any other governmental entity with jurisdiction, the more restrictive provisions shall apply. This Easement shall be interpreted in accordance with the laws of the state in which the Property is located.

21. Miscellaneous.

- c. Definitions. The terms "Grantee" and "Conservancy" as used herein shall be deemed to include, respectively, the Grantee, the Grantee's heirs, successors, personal representatives, and assigns, and the Conservancy, its successors and assigns.
- d. Binding Effect. Grantee intends that the Easement shall run with and burden title to the Property in perpetuity, and shall bind Grantee, his/her heirs, successors, personal representatives, and assigns.
- e. Severability. If any provision of this Easement or the application thereof to any person or circumstance is found to be invalid, the remainder of the provisions hereof and the application of such provision to persons or circumstances other than those to which it is found to be invalid, shall not be affected thereby.

U:\NJF\PHANTOM\RED MNT\Cheyenne Out\RMR RESERVED CE FINAL 7-8-05.doc
July 8, 2005

- f. Entire Agreement. This instrument sets forth the entire agreement of the parties with respect to the Easement and supersedes all prior discussions, negotiations, understandings, or agreements relating to the Easement, all of which are merged herein. No alteration or variation of this instrument shall be valid or binding unless contained in an amendment that complies with paragraph 19 above.

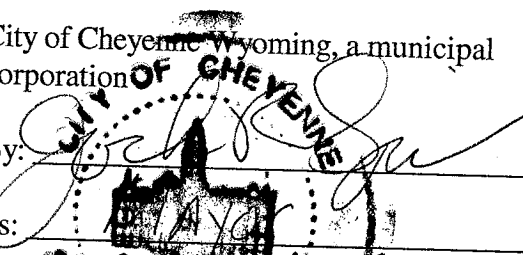
U:\NJF\PHANTOM\RED MNT\Cheyenne Out\RMR RESERVED CE FINAL 7-8-05.doc
July 8, 2005

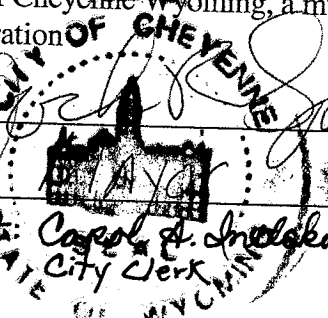
TO HAVE AND TO HOLD the said Easement unto the said Conservancy, its successors and assigns, forever.

IN WITNESS WHEREOF, Grantee has hereunto set its hand this 12th day of July, 2005.

GRANTEE:

City of Cheyenne Wyoming, a municipal corporation

By: 

Its: 

ATTEST: Carol A. Indskofer
City Clerk

STATE OF Wyo)
COUNTY OF Laramie) ss.

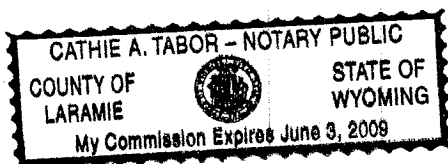
On this 12th day of July, 2005, before me personally appeared Jack R. Spiker to me known to be the Mayer of the City of Cheyenne Wyoming, and acknowledged the said instrument to be the free and voluntary act and deed of said corporation, for the uses and purposes therein mentioned, and on oath stated that s/he was authorized to execute said instrument and that the seal affixed is the corporate seal of said corporation.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal on the day and year first above written.

[SEAL]

Cathie A. Tabor
Notary Public

My Commission expires on _____, 20__.



U:\NJ\FPHANTOM\RED MNT\Cheyenne Out\RMR RESERVED CE FINAL 7-8-05.doc
July 8, 2005

The foregoing Deed of Conservation Easement is hereby duly reserved by The Nature Conservancy and has been executed on this 12 day of July, 2005. Execution of the instrument is deemed to be accepted under W.S. 34-1-202(b) by the holder of the conservation easement.

CONSERVANCY:

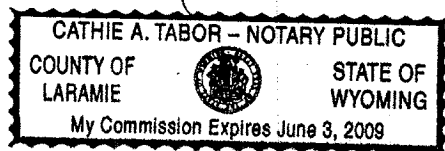
The Nature Conservancy,
a District of Columbia nonprofit corporation

By: Nancy Fishbein
Its: Land Conservation Program Manager

STATE OF Wyo)
COUNTY OF Laramie)ss.

On this 12 day of July, 2005 before me personally appeared Nancy Fishbein, to me known to be the Land Conservator of The Nature Conservancy, a District of Columbia non-profit corporation, and Program Manager acknowledged the said instrument to be the free and voluntary act and deed of said corporation, for the uses and purposes therein mentioned, and on oath stated that she was authorized to execute said instrument.

Cathie A Tabor
Notary Public



My Commission expires on June 3, 2009.

Property Description

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

Township 12 North, Range 69 West of the 6th P.M.

- Section 18: All lying South of the Union Pacific Railroad Company Right-of-Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.
- Section 19: Lots 1, 2, 3 and 4 in Wyoming

Township 12 North, Range 70 West of the 6th P.M.

- Section 12: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.
- Section 13: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.
- Section 23: Lots 1, 2, 3, 4, in Wyoming.
- Section 24: Lots 1, 2, 3, 4, in Wyoming.

Also known by the following surveyed legal description:

LEGAL DESCRIPTION OF PARCEL 1:

A PORTION OF SECTIONS 18 AND 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., AND A PORTION OF SECTIONS 12, 13, 23, AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., ALL IN THE COUNTY OF LARAMIE, STATE OF WYOMING BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

CONSIDERING THE COLORADO AND WYOMING STATE LINE BETWEEN MILE POST 59 AND MILE POST 61 TO BEAR NORTH 89°59'29" EAST ALSO BEING THE SOUTH LINE OF LARAMIE COUNTY, WYOMING AND THE NORTH LINE OF LARIMER COUNTY, COLORADO WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO; BEGINNING AT A POINT ON THE COLORADO AND WYOMING STATE LINE, FROM WHICH MILE POST 56 BEARS SOUTH 89°56'32" EAST, A DISTANCE OF 11,274.92 FEET; THENCE NORTH 09°46'12" EAST, A DISTANCE OF 1053.43 FEET;

THENCE NORTH 44°38'47" WEST, A DISTANCE OF 826.47 FEET; THENCE NORTH 64°05'39" WEST, A DISTANCE OF 2456.63 FEET; THENCE NORTH 44°50'48" WEST, A DISTANCE OF 3565.62 FEET; THENCE NORTH 56°57'37" WEST, A DISTANCE OF 2447.93 FEET TO A POINT ON THE NORTH LINE OF SECTION 13, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M.; FROM WHICH THE NORTHWEST CORNER OF SAID SECTION 13 BEARS NORTH 89°10'56" WEST, A DISTANCE OF 738.78 FEET; THENCE NORTH 00°00'23" EAST, PARALLEL WITH THE EAST LINE OF THE SOUTHWEST 1/4 OF SECTION

12, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 812.53 FEET TO THE SOUTH RIGHT-OF-WAY LINE OF THE UNION PACIFIC RAILROAD; THENCE NORTH 63°33'54" WEST, PARALLEL WITH AND 200 FEET SOUTHERLY FROM THE CENTERLINE OF THE UNION PACIFIC RAILROAD, A DISTANCE OF 208.82 FEET TO THE BEGINNING OF A CURVE, CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 3525.66 FEET AND A CENTRAL ANGLE OF 09°44'24", AND BEING SUBTENDED BY A CHORD WHICH BEARS NORTH 67°09'42" WEST, A DISTANCE OF 598.62 FEET; THENCE NORTHWESTERLY AND WESTERLY ALONG SAID CURVE, A DISTANCE OF 599.34 FEET TO A POINT OF CUSP ON THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 12; THENCE SOUTH 00°00'23" WEST, ALONG THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 12, A DISTANCE OF 1127.29 FEET TO THE NORTHWEST CORNER OF SAID SECTION 13; THENCE SOUTH 00°26'17" WEST, ALONG THE WEST LINE OF THE NORTHWEST 1/4 OF SAID SECTION 13, A DISTANCE OF 2621.78 FEET TO THE WEST 1/4 CORNER OF SAID SECTION 13; THENCE SOUTH 00°26'26" WEST, ALONG THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 13, A DISTANCE OF 2621.53 FEET TO THE SOUTHWEST CORNER OF SAID SECTION 13; THENCE NORTH 89°51'46" WEST, ALONG THE NORTH LINE OF THE LOTS 1 AND 2 OF SECTION 23, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 2713.37 FEET TO THE NORTH 1/4 CORNER OF SAID SECTION 23; THENCE SOUTH 89°52'05" WEST, ALONG THE NORTH LINE OF LOTS 3 AND 4 OF SAID SECTION 23, A DISTANCE OF 2523.67 FEET TO THE NORTHWEST CORNER OF SAID SECTION 23; THENCE SOUTH 02°48'19" WEST, ALONG THE WEST LINE OF LOT 4 OF SAID SECTION 23, A DISTANCE OF 1328.56 FEET TO THE CLOSING CORNER FOR SECTIONS 22 AND 23, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., SAID CORNER BEING ON THE COLORADO AND WYOMING STATE LINE; FROM WHICH MILE POST 61 BEARS SOUTH 89°59'29" WEST, A DISTANCE OF 1763.52 FEET; THENCE NORTH 89°59'29" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 5304.41 FEET TO THE CLOSING CORNER BETWEEN SECTIONS 23 AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., THENCE CONTINUING NORTH 89°59'29" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 3454.64 FEET TO MILE POST 59; THENCE SOUTH 89°56'32" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 1908.62 FEET TO THE CLOSING CORNER BETWEEN SECTIONS 19 AND 24,

TOWNSHIP 12 NORTH, RANGES 69 AND 70 WEST OF THE 6TH P.M.; THENCE CONTINUING SOUTH 89°56'32" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 2591.69 FEET TO THE TRUE POINT OF BEGINNING. COUNTY OF LARAMIE, STATE OF WYOMING. CONTAINING 923.74 ACRES, MORE OR LESS.



LEGAL DESCRIPTION OF PARCEL 2:

A PORTION OF SECTIONS 18 AND 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., AND A PORTION OF SECTIONS 12, 13, 23, AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., ALL IN THE COUNTY OF LARAMIE, STATE OF WYOMING BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

CONSIDERING THE COLORADO AND WYOMING STATE LINE BETWEEN MILE POST 59 AND MILE POST 61 TO BEAR NORTH $89^{\circ}59'29''$ EAST ALSO BEING THE SOUTH LINE OF LARAMIE COUNTY, WYOMING AND THE NORTH LINE OF LARIMER COUNTY, COLORADO WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO; BEGINNING AT A POINT ON THE COLORADO AND WYOMING STATE LINE, FROM WHICH MILE POST 56 BEARS SOUTH $89^{\circ}56'32''$ EAST, A DISTANCE OF 11,274.92 FEET; THENCE NORTH $09^{\circ}46'12''$ EAST, A DISTANCE OF 1053.43 FEET; THENCE NORTH $44^{\circ}38'47''$ WEST, A DISTANCE OF 826.47 FEET; THENCE NORTH $64^{\circ}05'39''$ WEST, A DISTANCE OF 2456.63 FEET; THENCE NORTH $44^{\circ}50'48''$ WEST, A DISTANCE OF 3565.62 FEET; THENCE NORTH $56^{\circ}57'37''$ WEST, A DISTANCE OF 2447.93 FEET TO A POINT ON THE NORTH LINE OF SECTION 13, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M.; FROM WHICH THE NORTHWEST CORNER OF SAID SECTION 13 BEARS NORTH $89^{\circ}10'56''$ WEST, A DISTANCE OF 738.78 FEET; THENCE NORTH $00^{\circ}00'23''$ EAST, PARALLEL WITH THE EAST LINE OF SECTION 12, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 812.53 FEET TO THE SOUTH RIGHT-OF-WAY LINE OF THE UNION PACIFIC RAILROAD; THENCE SOUTH $63^{\circ}33'54''$ EAST, PARALLEL WITH AND 200 FEET SOUTHERLY FROM THE CENTERLINE OF THE MAIN TRACK OF THE UNION PACIFIC RAILROAD, A DISTANCE OF 147.67 FEET TO THE BEGINNING OF A CURVE, CONCAVE TO THE NORTH, HAVING A RADIUS OF 3305.55 FEET, AND A CENTRAL ANGLE OF $27^{\circ}58'53''$, AND BEING SUBTENDED BY A CHORD WHICH BEARS SOUTH $75^{\circ}28'29''$ EAST, A DISTANCE OF 1598.33 FEET; THENCE SOUTHEASTERLY AND EASTERLY ALONG SAID CURVE, AND ALONG SAID RIGHT-OF-WAY LINE, A DISTANCE OF 1614.33 FEET; THENCE SOUTH $87^{\circ}29'29''$ EAST, ALONG SAID RIGHT-OF-WAY LINE, A DISTANCE OF 2872.76 FEET TO THE EAST LINE OF SAID SECTION 12; THENCE SOUTH $00^{\circ}28'50''$ EAST, ALONG THE EAST LINE OF THE SOUTHEAST 1/4 OF SAID SECTION 12, A DISTANCE OF 317.79 FEET TO THE NORTHWEST CORNER OF SECTION 18, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M.; THENCE NORTH $89^{\circ}30'51''$ EAST, ALONG THE NORTH LINE OF THE NORTHWEST 1/4 OF SAID SECTION 18, A DISTANCE OF 2540.90 FEET TO THE NORTH 1/4 CORNER OF SAID SECTION 18; THENCE SOUTH $89^{\circ}51'18''$ EAST, ALONG THE NORTH LINE OF THE NORTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2631.47 FEET TO THE NORTHEAST CORNER OF SAID SECTION 18; THENCE SOUTH $03^{\circ}40'06''$ EAST, ALONG THE EAST LINE OF THE NORTHEAST 1/4 OF SAID SECTION 18, A

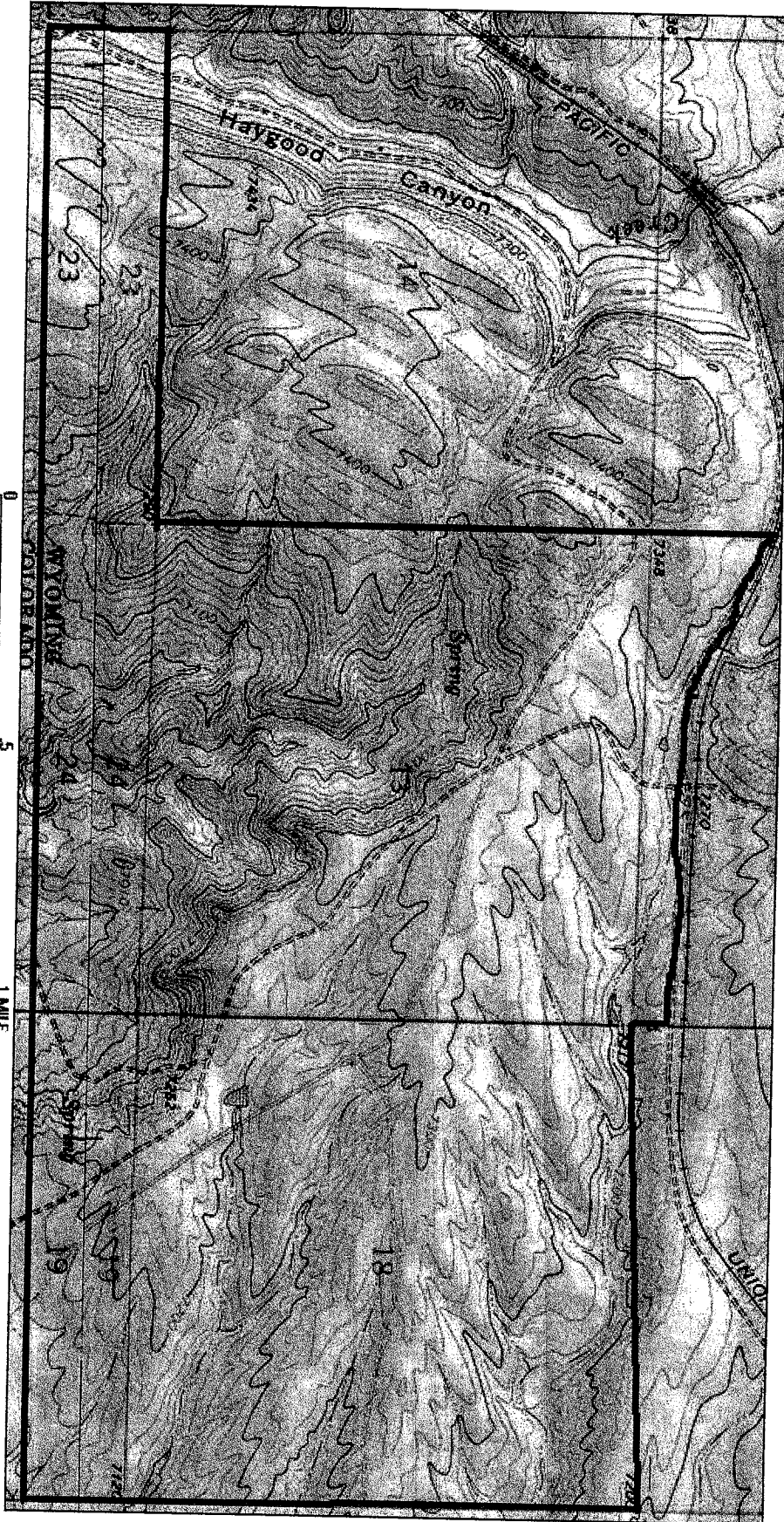
DISTANCE OF 2667.75 FEET TO THE EAST $\frac{1}{4}$ CORNER OF SAID SECTION 18; THENCE SOUTH $00^{\circ}57'52''$ EAST, ALONG THE EAST LINE OF THE SOUTHEAST $\frac{1}{4}$ OF SAID SECTION 18, A DISTANCE OF 2588.84 FEET TO THE SOUTHEAST CORNER OF SAID SECTION 18; THENCE SOUTH $00^{\circ}24'42''$ EAST, ALONG THE EAST LINE OF LOT 1 OF SAID SECTION 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., A DISTANCE OF 1231.46 FEET TO THE COLORADO AND WYOMING STATE LINE; FROM WHICH MILE POST 56 BEARS SOUTH $89^{\circ}56'32''$ EAST, A DISTANCE OF 8505.72 FEET;

THENCE NORTH $89^{\circ}56'32''$ WEST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 2769.20 FEET TO THE TRUE POINT OF BEGINNING.

COUNTY OF LARAMIE, STATE OF WYOMING.

CONTAINING 884.18 ACRES, MORE OR LESS.

Exhibit B
Map of the Property



Map created with TOPOI® ©2003 National Geographic (www.nationalgeographic.com/topo)

Acknowledgment of Easement Documentation Report

Grantee and the Conservancy acknowledge that each has read the "Red Mountain Ranch - Wyoming Easement Documentation Report," dated July 1, 2005, and that the report accurately reflects the condition of the Property subject to the Easement as of the date of conveyance of the Easement.

THE NATURE CONSERVANCY,
a District of Columbia
non-profit corporation

By: Nancy J. [Signature]
Its Land Conservation Program Manager
Date: 7/12/05

CITY OF CHEYENNE WYOMING,
a municipal corporation

By: [Signature]
Its MAYOR
Date: 7/12/05

ATTEST: Carol A. Jentlekofer
CITY CLERK
STATE OF WYOMING

Exhibit D
Water Rights

Specific Water Rights

- Spring #13 a/k/a Permit #UW 59501 (SW1/4NW1/4 Section 13, T12N-R70W)
- Spring #19 a/k/a Permit #UW 59502 (NW1/4NW1/4 Section 19, T12N-R69W)

Subject to the reservation by Larimer County of all rights to use the existing supply of water from Spring #19 as more specifically set forth in the Bargain and Sale Deed (Water Rights – Wyoming) dated December 21, 2004, recorded December 31, 2004 in Book 1857 Page 306 Laramie County, Wyoming records.

L:\FORMS\CONSEASE\CONSEASE.FRM
July 8, 2005

2022 Agreement - Exhibit 2

2017 Cooperative Plan

[Please see separate attached 2017 Cooperative Plan document]

Cooperative Land Management Plan
Red Mountain Ranch Wyoming - The Big Hole
The City of Cheyenne
Larimer County Open Lands Program
The Nature Conservancy
December 18, 2016

Approved as to
form only:


Date: 12/21/16

I. Recitals: Background Information

1. This Cooperative Land Management Plan ("Cooperative Plan") is made and entered into by and between The Nature Conservancy, a non-profit corporation organized under the laws of the District of Columbia (the "Conservancy"), the City of Cheyenne (the "City"), a municipal corporation organized under the laws of the State of Wyoming, and the County of Larimer, Colorado ("Larimer County"), a county government organized under the laws of the State of Colorado.

2. This Cooperative Plan applies to a tract of land consisting of approximately 1,800 acres, known generally as the Laramie Foothills Red Mountain Ranch—Wyoming (the "Property"), also known as the "Big Hole."

3. The Nature Conservancy reserved a conservation easement (the "Easement") on the Property when the Property was conveyed to the City of Cheyenne on July 12, 2005. The Easement is attached as Exhibit 1.

4. The Easement stipulates that a cooperative management plan will be developed and adopted by the Conservancy, the City and Larimer County (collectively, the "Parties"), referred to in the Easement as the "Cooperative Plan." The Cooperative Plan, currently in effect, was executed by the Parties on December 31, 2007, and is attached as Exhibit 2. This Cooperative Plan will replace and supersede the December 31, 2007 Cooperative Plan in its entirety.

5. The Property currently remains in a substantially undisturbed, natural state, has significant ecological and open-space values, and provides relatively significant natural habitat for native plants and wildlife. Protection of the Property through the conservation easement will contribute to the conservation of important relatively significant natural habitat for plants, including particularly native foothills grasslands, Ponderosa pine forest, mountain mahogany, skunkbush sumac and rabbit brush shrub lands, and for wildlife, including elk, deer, antelope, nesting raptors, migratory and breeding birds and mammals (the "Conservation Values"). In addition, the Property harbors scenic and agricultural values worthy of protection. The Property lies adjacent to the Red Mountain Ranch in Colorado, a property owned and managed as open space by Larimer County. This Plan provides for cooperative and compatible management across the boundary line between the states of Wyoming and Colorado to facilitate landscape-scale conservation. All the natural elements and ecological values are worthy of conservation and are of great importance to City, the Conservancy, and Larimer County.

6. The intention of the Easement is to preserve and protect the Property in perpetuity and, in the event of their degradation or destruction, to enhance and restore the open space and relatively significant natural features and values of the Property. The Easement also furthers the specific purpose of conserving important habitat for wildlife, protecting rare and unique native plants currently known and later identified, conserving the diverse forest, grassland, riparian and vegetative communities, and protecting the wildlife inhabiting these communities. The intention of the Cooperative Plan as stipulated in the Easement is to permit the continuation of such uses of the Property as may now be conducted thereon consistent with the Conservation Values protected herein.

7. The Property shall be operated and managed in accordance with this Cooperative Plan, which shall include but not be limited to guidelines for appropriate land stewardship, recreational uses, and public access. This Cooperative Plan shall be reviewed and revised at least once every five (5) years.

II. Public Access

8. One of the principle goals of this Cooperative Plan is to establish access for Public Use and enjoyment of the Property consistent with the Easement.

A. Public Access is allowed on the Cheyenne Rim Trail, from trailheads initiating in Colorado in the Red Mountain Open Space. Activities currently allowed on the Cheyenne Rim Trail include horseback riding, hiking and non-motorized biking. Visitors must stay "on trail" and the existing trail shall be maintained and patrolled by Larimer County staff.

It is anticipated that public access trail connectors will be established in the future from the Cheyenne Rim Trail to the Robert E. Green trail and to the Belvoir Ranch. Public access provisions and restrictions will be established when the proposed Robert E. Green and Belvoir trail connectors are constructed and shall be compatible with existing Public Access in Colorado and those established for the Property by the Easement.

B. No dogs are allowed on the Property, except for service dogs, as defined pursuant to the Americans with Disabilities Act. All service dogs must be harnessed, leashed, or tethered, unless these devices interfere with the service animal's work or an individual's disability prevents the individual from using these devices. If a service dog is not harnessed, leashed or tethered, the individual must maintain control of the service dog through voice, signal, or other effective controls.

C. No camping or fires of any kind are permitted on the Property.

D. No hunting or fishing is permitted on the Property, except by special permit from the City.

E. No trapping is permitted on the Property, except as may permitted pursuant to conditions specified in the Easement Documentation Report ("EDR"). The EDR is attached as Exhibit 3.

F. No archeological, paleontological, or cultural artifacts may be removed from the Property, unless expressly permitted in writing by the Conservancy.

G. No rocks or plants may be removed from the Property, unless expressly permitted in writing by the Conservancy.

H. No public access to the Property is permitted from December through February. The Property is closed seasonally due to sensitive wintering range for large mammals.

I. No public motorized access to the Property is permitted in the absence of the express written consent of the City and the Conservancy.

J. The City, the County and the Conservancy each may guide public engagement tours for educational programs, natural history interpretation, resource management and scientific research, provided, that:

1. All activity is limited to the existing roads and trails, as documented in the EDR.

2. At least one staff person from one of the parties to this Plan or a designated and trained representative of the group shall be present and responsible for the group.

3. Use of motorized vehicles is limited to existing roads on the Property.

4. If conditions are such that motorized or other forms of access may negatively impact roads, such as during wet conditions, trips must be postponed or rescheduled.

5. To facilitate visitation and minimize impacts to the Conservation Values, each individual and group using motorized access shall stop, park, and turn around on the existing two-track roads as indicated on the map attached as Exhibit 4. Every effort shall be made to minimize impacts to the resource.

6. If impacts to the Property's Conservation Values occur, an appropriate stopping site for tours will be cooperatively established between the Parties. In accordance with the Easement, the stopping site shall be temporary, shall not be paved, oiled or improved in any way, and shall be, to the greatest extent practicable, restored to its condition prior to its temporary use.

7. It is understood that uncontrolled visits by tour groups may be detrimental to the Conservation Values protected by the Easement. Restrictions of the frequency of group visits and the number of persons in each group may be necessary to control adverse impacts on the Conservation Values protected by the Easement. The need for additional use restrictions will be considered after each annual review of the Property (usually late summer) by the Conservancy site monitoring team in collaboration with the City and Larimer County officials. Restrictions may be imposed from year to year or for longer terms at the discretion of the Parties.

III. County, City, Conservancy Access to Property

9. One of the principle goals of this Cooperative Plan is to establish guidelines for access to the Property by the Parties to this Cooperative Plan in accordance with the Easement.

A. There are four (4) access agreements affecting the Property, attached as Exhibits 1, 5, 6, and 7. The City will grant access (either motorized or foot) to the County across an existing road, as shown on Exhibits 4 and 5, so that the County can access a portion of its Colorado property that is inaccessible from Colorado. The access is for emergency, property management, and patrol purposes.

B. The County has granted access (either motorized or foot) to the Conservancy across the Red Mountain Open Space Colorado property to enable the Conservancy to access the Property to monitor and enforce the terms of the Easement, attached as Exhibit 7.

C. Access to the Property by the Conservancy is granted by the City pursuant to the Easement, attached as Exhibit 1.

D. The City and the Conservancy will have access (either motorized or foot) to the Property through the proposed Robert E. Green Public Access Agreement entered into between the City, Robert E. Green, and the Conservancy that will provide for the construction of public access trails on the west side of the Property Exhibit 6.

E. The County will maintain and patrol the Cheyenne Rim Trail and will post non-illuminated signage reminding visitors that they must stay "on trail" and advising users that access to the Property north of the Wyoming state line is prohibited. It is anticipated that a trail connector will be established pursuant to an access agreement described in sub-section D of this Section, from the Cheyenne Rim Trail to the Robert E. Green Property and the Belvoir Ranch. Public access provisions and restrictions will be established when the proposed Robert E. Green and Belvoir trail connectors are constructed and shall be compatible with existing Public Access in Colorado and those established by the Easement. The Parties to this Cooperative Plan may enter into such other and further agreements as may be necessary to define the maintenance and patrol responsibilities that will be assumed by the Parties.

F. The City, the County and any others who may become parties to future access agreements may access the Property in accordance with the terms and conditions of such existing and future access agreements. Existing access agreements are intended to implement emergency and management purposes, to permit scientific surveys and research and to allow other activities that promote the development and maintenance of this Cooperative Plan, subject to the terms and conditions of the Easement. The general public shall not be designated as a party in any of the existing or planned access agreements.

IV. Land Management

10. One of the principal goals of this Cooperative Plan is to define land management activities consistent with the Easement and prioritize current land management issues. This Cooperative Plan is not intended to direct general land management decisions on the Property. The overarching goal of land management activities is to conserve the Conservation Values as described in the EDR and Easement while facilitating public enjoyment. Based on this goal, the following land management activities will be allowed by the owner of the Property:

A. Grazing of domestic livestock.

B. Grazing and pasturing horses, cattle, mules, sheep, and llamas, provided that range conditions shall be maintained at, or improved from, those documented in the EDR. Grazing of other livestock species shall be subject to prior approval by the Conservancy.

C. The Parties acknowledge that given the topography, historic ownership and management of the Property, grazing management has occurred across the boundary between the states of Colorado and Wyoming. Further, the Parties agree that grazing pastures on the Property shall be defined by existing fences, and not by Property ownership. Properly managed grazing is expected to have no significant impact on the Conservation Values and in some instances is necessary to maintain said values. In addition, grazing practices on the adjacent Red Mountain Open Space Property shall also occur in a manner such that it maintains range condition in a "good" or "excellent" condition as defined by the Natural Resources Conservation Service.

D. Fence Maintenance and Repair. The City shall be responsible for maintenance, repair, and, reconstruction of existing fencing, as documented in the EDR, and for the construction of new fences, provided that boundary or pasture-division fences shall not unduly restrict or exclude wildlife use of the Property. Wildlife friendly fences are defined by research and various agencies. Specifications are available in various textbooks, agency publications, and from the Colorado State University (CSU) and University of Wyoming (UW) extension service and NRCS. These fences facilitate the safe and uninterrupted movement of pronghorn, mule deer, and elk.

E. Control of Noxious Weeds. Use of agricultural chemicals for the following purposes and under the following conditions are permitted:

1. For the control of noxious weeds, as required by Wyoming state law, and for the control of other invasive exotic plant species, provided that chemical herbicides may be used only in those amounts and with a frequency of application that constitute the minimum necessary for control, and that the herbicide is not applied by aerial spraying.

2. For the control of agricultural or forest pests, subject to prior approval by the Conservancy.

3. Use of biological weed and insect control agents is subject to prior approval by the Conservancy.

4. For most noxious weeds, chemical treatment is the only effective or feasible means of control. Therefore, chemicals should be allowed for use on the Property to treat noxious weeds when appropriate as long as used as directed on the labels and in consideration with the identified conservation values. Eradication and control of noxious weeds are considered essential steps in successful conservation.

F. Timber Harvest. The selective harvesting of timber from the Property may be allowed but only for the purposes of controlling forest diseases, protecting persons or property from the hazards of falling trees or branches, reducing the risk of wildfire, and enhancing wildlife habitat. These conditions apply to both living and standing dead trees.

V. Miscellaneous Provisions

11. Amendment. This Plan may be amended by the Parties at any time pursuant to a written instrument duly executed by authorized representatives of the Parties.

12. The terms and conditions of this Cooperative Plan shall at all times be interpreted and implemented according to the overarching goals and objectives, terms and conditions of the Easement. If there are any inconsistencies or conflicts between the provisions contained in this Cooperative Plan and the Easement, the terms of the Easement shall prevail.

13. Five Year Reviews. This Plan shall be reviewed by the Parties at least once during the five (5) years following its execution for the purposes of updates and revisions and at least once during each additional five (5) year renewal term. The Conservancy, as holder of the Easement, shall call all meetings necessary to review this Plan, set the agenda for each such meeting and act in the capacity of chair of the meeting. In the absence of a call for a meeting by the Conservancy, each Party may, upon the five (5) year anniversary of the execution of this Plan, call for a meeting to review this Plan, which meeting shall be held at the earliest convenience of the Parties hereto.

THE NATURE CONSERVANCY, a District of
Columbia non-profit corporation,

Date: 6 JAN 2017

By: Brent Lathrop

Its: Program Director

State of Wyoming)
County of Laramie)ss

Subscribed and sworn before me this 6th day of Jan, 2017.

Witness my hand and official seal.

Wendy J. Kinkade
Notary Public

My Commission Expires: 3 27 2018



THE CITY OF CHEYENNE, WYOMING

December 28, 2016
Date

By: Richard L. Kaysen
Richard L. Kaysen, Mayor

(SEAL)

ATTEST:

Carol Intlekofer
Carol Intlekofer, City Clerk

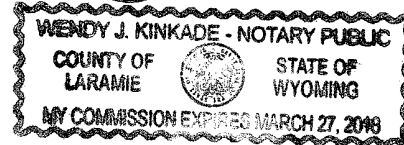
State of Wyoming)
County of Laramie)ss

Subscribed and sworn before me this 28th day of December, 2016.

Witness my hand and official seal.

Wendy J. Kinkade
Notary Public

My Commission Expires: 3 27 2018

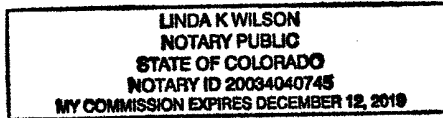


LARIMER COUNTY, COLORADO,

Date: 1/19/2019

By: [Signature]
Its: Director

State of Colorado)
)ss
County of Larimer)



Subscribed and sworn before me this 19 day of January, 2017.

Witness my hand and official seal.

[Signature]
Notary Public

My Commission Expires: 12/12/2019

EXHIBIT 1

CONSERVATION EASEMENT

Recording Requested By and When
Recorded Return to:
City of Cheyenne
Office of City Attorney
2101 O'Neil Avenue
Cheyenne, WY 82001

Laramie Foothills
(Red Mtn Ranch) Co/WY - Sale Out to
City of Cheyenne w/ Reserved CE
10/4/05

SPECIAL WARRANTY DEED

THIS SPECIAL WARRANTY DEED is granted this ~~12th~~ day of July, 2005 by THE NATURE CONSERVANCY, a District of Columbia nonprofit corporation, ("Grantor"), to the City of Cheyenne, a municipal corporation ("Grantee"), whose address is 2101 O'Neil Avenue, Cheyenne, WY 82001.

WITNESSETH, that the Grantor, for the sum of Ten and 00/100 (\$10.00) Dollars, and other good and valuable consideration, paid by the Grantee, the receipt of which is hereby acknowledged, has granted, sold and conveyed, and by these presents does grant, sell and convey unto Grantee the following land and improvements thereon situated in the County of Laramie, and State of Wyoming, and more particularly described as follows:

See Exhibit A attached hereto and made a part hereof.

SUBJECT TO a Reserved Conservation Easement in Deed attached hereto and by this reference incorporated herein as Exhibit B.

AND FURTHER SUBJECT TO easements, restrictions and other matters of record and taxes for the current year.

TO HAVE AND TO HOLD THE above-described real property, together with all and singular the rights and appurtenances thereto in anywise belonging, unto Grantee, its heirs and assigns, forever. Grantor covenants and warrants that it is lawfully seized and possessed of the real property aforesaid and has the full right, power and authority to execute this conveyance, and that said real property is free and clear of all liens, claims or encumbrances, except as shown above. Grantor does hereby warrant title to said real property only against the acts of the Grantor for that period of time in which the Grantor has held title to the real property.

GRANTOR:

THE NATURE CONSERVANCY, a District of
Columbia nonprofit corporation.

By: Nancy J.
Its: Land Conservation Program Manager

STATE OF Wyo)
COUNTY OF Laramie) ss.

The foregoing instrument was acknowledged before me this 12th day of July, 2005
by Nancy Fishbein, as Land Conservation of The Nature Conservancy, a District of
Columbia nonprofit corporation Program Manager

Witness my hand and official seal.

[SEAL]

Cathie A. Tabor
Notary Public

My commission expires:

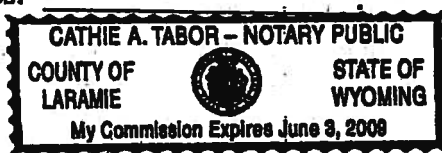


Exhibit A
Description of Property

LEGAL DESCRIPTION

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

Township 12 North, Range 69 West of the 6th P.M.

- Section 18: All lying South of the Union Pacific Railroad Company Right-of-Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.
- Section 19: Lots 1, 2, 3 and 4 in Wyoming.

Township 12 North, Range 70 West of the 6th P.M.

- Section 12: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.
- Section 13: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.
- Section 23: Lots 1, 2, 3, 4, in Wyoming.
- Section 24: Lots 1, 2, 3, 4, in Wyoming.

TOGETHER WITH all corrals, fences, gates, cattle handling facilities, water tanks, windmills, scales, buildings, and other improvements owned by the Grantor now located on said property, including all fixtures of a permanent nature;

TOGETHER WITH all rights, title, and interest of the Grantor in and to easements, rights-of-way, and rights to same belonging and inuring to the benefit of the property;

TOGETHER WITH one hundred percent (100%) of all rights, title, and interest of the Grantor in and to all mineral rights or reversionary mineral rights owned by the Grantor in connection with the property; AND

TOGETHER WITH all leasehold interests owned by the Grantor in connection with the property.

Also known by the following surveyed legal description:

LEGAL DESCRIPTION OF PARCEL 1:

A PORTION OF SECTIONS 18 AND 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., AND A PORTION OF SECTIONS 12, 13, 23, AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., ALL IN THE COUNTY OF LARAMIE, STATE OF WYOMING BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

CONSIDERING THE COLORADO AND WYOMING STATE LINE BETWEEN MILE POST 59 AND MILE POST 61 TO BEAR NORTH 89°59'29" EAST ALSO BEING THE SOUTH LINE OF LARAMIE COUNTY, WYOMING AND THE NORTH LINE OF LARIMER COUNTY, COLORADO WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO; BEGINNING AT A POINT ON THE COLORADO AND WYOMING STATE LINE, FROM WHICH MILE POST 56 BEARS SOUTH 89°56'32" EAST, A DISTANCE OF 11,274.92 FEET; THENCE NORTH 09°46'12" EAST, A DISTANCE OF 1053.43 FEET; THENCE NORTH 44°38'47" WEST, A DISTANCE OF 826.47 FEET; THENCE NORTH 64°05'39" WEST, A DISTANCE OF 2456.63 FEET; THENCE NORTH 44°50'48" WEST, A DISTANCE OF 3565.62 FEET; THENCE NORTH 56°57'37" WEST, A DISTANCE OF 2447.93 FEET TO A POINT ON THE NORTH LINE OF SECTION 13, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M.; FROM WHICH THE NORTHWEST CORNER OF SAID SECTION 13 BEARS NORTH 89°10'56" WEST, A DISTANCE OF 738.78 FEET; THENCE NORTH 00°00'23" EAST, PARALLEL WITH THE EAST LINE OF THE SOUTHWEST 1/4 OF SECTION

12, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 812.53 FEET TO THE SOUTH RIGHT-OF-WAY LINE OF THE UNION PACIFIC RAILROAD; THENCE NORTH 63°33'54" WEST, PARALLEL WITH AND 200 FEET SOUTHERLY FROM THE CENTERLINE OF THE UNION PACIFIC RAILROAD, A DISTANCE OF 208.82 FEET TO THE BEGINNING OF A CURVE, CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 3525.66 FEET AND A CENTRAL ANGLE OF 09°44'24", AND BEING SUBTENDED BY A CHORD WHICH BEARS NORTH 67°09'42" WEST, A DISTANCE OF 598.62 FEET; THENCE NORTHWESTERLY AND WESTERLY ALONG SAID CURVE, A DISTANCE OF 599.34 FEET TO A POINT OF CUSP ON THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 12; THENCE SOUTH 00°00'23" WEST, ALONG THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 12, A DISTANCE OF 1127.29 FEET TO THE NORTHWEST CORNER OF SAID SECTION 13; THENCE SOUTH 00°26'17" WEST, ALONG THE WEST LINE OF THE NORTHWEST 1/4 OF SAID SECTION 13, A DISTANCE OF 2621.78 FEET TO THE WEST 1/4 CORNER OF SAID SECTION 13; THENCE SOUTH 00°26'26" WEST, ALONG THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 13, A DISTANCE OF 2621.53 FEET TO THE SOUTHWEST CORNER OF SAID SECTION 13; THENCE NORTH 89°51'46" WEST, ALONG THE NORTH LINE OF THE LOTS 1 AND 2 OF SECTION 23, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 2713.37 FEET TO THE NORTH 1/4 CORNER OF SAID SECTION 23; THENCE SOUTH 89°52'05" WEST, ALONG THE NORTH LINE OF LOTS 3 AND 4 OF SAID SECTION 23, A DISTANCE OF 2523.67 FEET TO THE NORTHWEST CORNER OF SAID SECTION 23; THENCE SOUTH 02°48'19" WEST, ALONG THE WEST LINE OF LOT 4 OF SAID SECTION 23, A DISTANCE OF 1328.56 FEET TO THE CLOSING CORNER FOR SECTIONS 22 AND 23, TOWNSHIP 12

NORTH, RANGE 70 WEST OF THE 6TH P.M., SAID CORNER BEING ON THE COLORADO AND WYOMING STATE LINE; FROM WHICH MILE POST 61 BEARS SOUTH 89°59'29" WEST, A DISTANCE OF 1763.52 FEET; THENCE NORTH 89°59'29" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 5304.41 FEET TO THE CLOSING CORNER BETWEEN SECTIONS 23 AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., THENCE CONTINUING NORTH 89°59'29" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 3454.64 FEET TO MILE POST 59; THENCE SOUTH 89°56'32" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 1908.62 FEET TO THE CLOSING CORNER BETWEEN SECTIONS 19 AND 24, TOWNSHIP 12 NORTH, RANGES 69 AND 70 WEST OF THE 6TH P.M.; THENCE CONTINUING SOUTH 89°56'32" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 2591.69 FEET TO THE TRUE POINT OF BEGINNING. COUNTY OF LARAMIE, STATE OF WYOMING. CONTAINING 923.74 ACRES, MORE OR LESS.

LEGAL DESCRIPTION OF PARCEL 2:

A PORTION OF SECTIONS 18 AND 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., AND A PORTION OF SECTIONS 12, 13, 23, AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., ALL IN THE COUNTY OF LARAMIE, STATE OF WYOMING BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

CONSIDERING THE COLORADO AND WYOMING STATE LINE BETWEEN MILE POST 59 AND MILE POST 61 TO BEAR NORTH $89^{\circ}59'29''$ EAST ALSO BEING THE SOUTH LINE OF LARAMIE COUNTY, WYOMING AND THE NORTH LINE OF LARIMER COUNTY, COLORADO WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO; BEGINNING AT A POINT ON THE COLORADO AND WYOMING STATE LINE, FROM WHICH MILE POST 56 BEARS SOUTH $89^{\circ}56'32''$ EAST, A DISTANCE OF 11,274.92 FEET; THENCE NORTH $09^{\circ}46'12''$ EAST, A DISTANCE OF 1053.43 FEET; THENCE NORTH $44^{\circ}38'47''$ WEST, A DISTANCE OF 826.47 FEET; THENCE NORTH $64^{\circ}05'39''$ WEST, A DISTANCE OF 2456.63 FEET; THENCE NORTH $44^{\circ}50'48''$ WEST, A DISTANCE OF 3565.62 FEET; THENCE NORTH $56^{\circ}57'37''$ WEST, A DISTANCE OF 2447.93 FEET TO A POINT ON THE NORTH LINE OF SECTION 13, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M.; FROM WHICH THE NORTHWEST CORNER OF SAID SECTION 13 BEARS NORTH $89^{\circ}10'56''$ WEST, A DISTANCE OF 738.78 FEET; THENCE NORTH $00^{\circ}00'23''$ EAST, PARALLEL WITH THE EAST LINE OF SECTION 12, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 812.53 FEET TO THE SOUTH RIGHT-OF-WAY LINE OF THE UNION PACIFIC RAILROAD; THENCE SOUTH $63^{\circ}33'54''$ EAST, PARALLEL WITH AND 200 FEET SOUTHERLY FROM THE CENTERLINE OF THE MAIN TRACK OF THE UNION PACIFIC RAILROAD, A DISTANCE OF 147.67 FEET TO THE BEGINNING OF A CURVE, CONCAVE TO THE NORTH, HAVING A RADIUS OF 3305.55 FEET, AND A CENTRAL ANGLE OF $27^{\circ}58'53''$, AND BEING SUBTENDED BY A CHORD WHICH BEARS SOUTH $75^{\circ}28'29''$ EAST, A DISTANCE OF 1598.33 FEET; THENCE SOUTHEASTERLY AND EASTERLY ALONG SAID CURVE, AND ALONG SAID RIGHT-OF-WAY LINE, A DISTANCE OF 1614.33 FEET; THENCE SOUTH $87^{\circ}29'29''$ EAST, ALONG SAID RIGHT-OF-WAY LINE, A DISTANCE OF 2872.76 FEET TO THE EAST LINE OF SAID SECTION 12; THENCE SOUTH $00^{\circ}28'50''$ EAST, ALONG THE EAST LINE OF THE SOUTHEAST 1/4 OF SAID SECTION 12, A DISTANCE OF 317.79 FEET TO THE NORTHWEST CORNER OF SECTION 18, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M.; THENCE NORTH $89^{\circ}30'51''$ EAST, ALONG THE NORTH LINE OF THE NORTHWEST 1/4 OF SAID SECTION 18, A DISTANCE OF 2540.90 FEET TO THE NORTH 1/4 CORNER OF SAID SECTION 18; THENCE SOUTH $89^{\circ}51'18''$ EAST, ALONG THE NORTH LINE OF THE NORTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2631.47 FEET TO THE NORTHEAST CORNER OF SAID SECTION 18; THENCE SOUTH $03^{\circ}40'06''$ EAST, ALONG THE EAST LINE OF THE NORTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2667.75 FEET TO THE EAST 1/4 CORNER OF SAID SECTION 18;

THENCE SOUTH 00°57'52" EAST, ALONG THE EAST LINE OF THE SOUTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2588.84 FEET TO THE SOUTHEAST CORNER OF SAID SECTION 18; THENCE SOUTH 00°24'42" EAST, ALONG THE EAST LINE OF LOT 1 OF SAID SECTION 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., A DISTANCE OF 1231.46 FEET TO THE COLORADO AND WYOMING STATE LINE; FROM WHICH MILE POST 56 BEARS SOUTH 89°56'32" EAST, A DISTANCE OF 8505.72 FEET;

THENCE NORTH 89°56'32" WEST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 2769.20 FEET TO THE TRUE POINT OF BEGINNING.
COUNTY OF LARAMIE, STATE OF WYOMING.
CONTAINING 884.18 ACRES, MORE OR LESS.

RESERVATION OF CONSERVATION EASEMENT
(Laramie Foothills -Red Mountain Ranch to City of Cheyenne)

THIS RESERVATION OF CONSERVATION EASEMENT is made this 12 day of July, 2005 by and between THE NATURE CONSERVANCY, a District of Columbia nonprofit corporation, whose principal address is 4245 North Fairfax Drive, Suite 100, Arlington, Virginia 22203 (the "Conservancy"), and THE CITY OF CHEYENNE WYOMING, a municipal corporation, whose address is 2101 O'Neil Avenue, Cheyenne, WY 82001 (the "Grantee").

Exhibits to this Reservation of Conservation Easement include the following:

- Exhibit A - Legal Description of the Property
- Exhibit B - Map of the Property
- Exhibit C - Acknowledgment of Easement Documentation Report
- Exhibit D - Water Rights

WITNESSETH THAT:

A. The Conservancy is the owner of certain real property in Laramie County, Wyoming, consisting of 1800 acres, more or less, more particularly described and shown in Exhibits A and B attached hereto and incorporated herein by this reference (the "Property").

B. The Property currently remains in a substantially undisturbed, natural state and has significant ecological and open-space values and provides significant relatively natural habitat for native plants and wildlife.

C. Protection of the Property will contribute to the conservation of important significant relatively natural habitat for wildlife and plants, including particularly native foothills grasslands, mountain mahogany, skunkbush sumac and rabbitbrush shrublands, elk, deer, antelope, nesting raptors, migratory and breeding birds and mammals (the "Conservation Values"). In addition, the Property harbors scenic and agricultural values worthy of protection.

D. The Property lies adjacent to the Red Mountain Ranch - Colorado, a property owned and managed as open space by Larimer County, Colorado, and opportunity exists for cooperative and compatible management across the state boundary line, facilitating landscape-scale conservation.

U:\NJF\PHANTOM\RED MNT\Cheyenne Out\Final Documents\RMR RESERVED CE FINAL 7-8-05.doc
July 8, 2005

E. All of these natural elements and ecological values are of great importance to Grantee, the Conservancy and to the people of the State of Wyoming, and are worthy of conservation.

F. The State of Wyoming has recognized the importance of private efforts toward the preservation of natural systems in the state by enactment of Wyoming Statue 34-1-201 through 34-1-207, Uniform Conservation Easement Act.

G. The Conservancy, as owner of the Property, owns the affirmative rights to identify, preserve, and protect in perpetuity its open space character and its significant relatively natural features and values.

H. The Conservancy will be conveying the Property to Grantee and retaining this Easement.

I. The Conservancy is a private organization organized to protect and conserve natural areas and ecologically significant land for scientific, charitable and educational purposes, and is a "qualified organization" within the provisions of Section 170(h) of the Internal Revenue Code of 1986, as amended (the "IRS Code"), qualified to acquire and hold conservation easements and meets the requirements of the IRS Code as a Sec. 501(c)(3) exempt organization.

TERMS AND CONDITIONS

NOW, THEREFORE, in connection with the conveyance of the Property by the Conservancy to the Grantee, made in consideration of the covenants contained herein, the Conservancy does reserve unto itself a perpetual conservation easement consisting of the rights and restrictions enumerated herein, over and across the Property (the "Easement").

1. Purposes. It is the purpose of the Easement to preserve and protect in perpetuity and, in the event of their degradation or destruction, to enhance and restore the open space and significant relatively natural features and values of the Property. It is further the specific purpose of this Easement to conserve important habitat for wildlife; to protect rare or unique native plants currently known or later identified; and to conserve the diverse forest, meadow, and riparian vegetative communities and the wildlife inhabiting these communities. In achieving these purposes, it is the intent of the Easement to permit the continuation of such uses of the Property as may be conducted consistent with the Conservation Values protected herein.

2. Easement Documentation Report. Competent naturalists familiar with the Property have prepared a collection of baseline data on the Property and its resources. The data and explanatory text are presented in the "Red Mountain Ranch - Wyoming Easement Documentation Report" dated July 1, 2005 (the "Report"). A copy of the Report is on file with both Grantee and the Conservancy and by this reference made a part hereof. The parties acknowledge that the Report is

U:\NJF\PHANTOM\RED MNT\Cheyenne Out\RMRESERVED CE FINAL 7-8-05.doc
July 8, 2005

intended to establish the condition of the Property subject to the Easement as of the date written above and that both Grantee and the Conservancy have acknowledged in a signed statement, a copy of which is attached hereto as Exhibit C, that the Report accurately represents the condition of the Property at the time of conveyance. The parties agree that, in the event a controversy arises with respect to the nature and extent of the biological or physical condition of the Property, the parties shall not be foreclosed from utilizing all other relevant or material documents, surveys, reports, and other information to assist in the resolution of the controversy.

For the purposes of this Easement, and as a supplement to the Report, the Property includes any and all water and water rights beneficially used or conditionally decreed for use on the land described in Exhibits A and B that are owned by the Property owner, and all ditches, headgates, springs, reservoirs, water allotments, water shares and stock certificates, contracts, units, and wells, together with any associated easements and rights of way (the "Water Rights"). The Water Rights include surface water rights and groundwater rights, whether tributary, nontributary, nontributary, or designated, including, but not limited to, those water rights or interests specifically described on Exhibit D attached hereto.

3. Rights of the Conservancy. The rights retained by the Conservancy by the Easement are the following:

- A. To identify, to preserve and protect in perpetuity, and in the event of their degradation or destruction to restore or to enforce the restoration of the open space and significant relatively natural ecological features and Conservation Values of the Property.
- B. To perform such activities on the Property as the Conservancy reasonably determines are necessary or convenient to carry out these rights granted by this Easement.
- C. To enter upon the Property to enforce the rights herein granted, to study and make scientific observations of its ecosystems, and to determine that Grantee's activities are in compliance with the terms of the Easement, all upon prior notice to Grantee and in a manner that does not unreasonably disturb the use of the Property by Grantee consistent with the Easement. The Conservancy shall also have the right of immediate entry to the Property if, in its sole judgment, such entry is necessary to prevent damage to or the destruction of the Conservation Values protected by the Easement.
- D. To enjoin any activity on or any use of the Property that is inconsistent with the Easement.

4. Land Management. The Property shall be operated and managed in accordance with a cooperative land management plan prepared by Grantee, the Conservancy and Larimer County Parks and Open Lands (the "County"), which plan shall be initially agreed upon by December 31, 2007 and shall be updated at least every five years (the "Cooperative Plan"). The Cooperative

U:\NJFP\PHANTOM\RED MNT\Cheyenne Out\RMRESERVED CE FINAL 7-8-05.doc
July 8, 2005

Plan shall include but not be limited to guidelines for appropriate land stewardship, recreational uses, and public access.

5. Interim Management Plan. Prior to the completion of the Cooperative Plan, as defined above, the Conservancy solely shall develop an Interim Management Plan to guide land use on the Property until such time as the Cooperative Plan is completed (the "Interim Plan"). If the Cooperative Plan is not completed by December 31, 2007, the Conservancy will update the Interim Plan and it shall continue to guide land use on the Property until a Cooperative Plan is completed by the Grantee, the Conservancy and the County.

6. Consistent Uses of the Property. The following uses and practices by Grantee, though not an exhaustive recital of consistent uses and practices, are consistent with the Easement. Certain of these consistent uses and practices are identified as being subject to specified conditions or to the requirement of and procedures for prior approval by the Conservancy, and procedures for such prior approval are provided below. The remainder of these consistent uses shall not be precluded, prevented, or limited by the Easement.

A. Educational programs, natural history interpretation, and scientific research, provided such activities are conducted according to the Interim Plan, as subsequently replaced by the Cooperative Plan (the "Plan") and in a manner that does not have adverse impacts on the Conservation Values.

B. Non-commercial, non-motorized passive recreational activities, such as horseback riding, hiking, cross-country skiing, bicycle riding, and other similar low-impact recreational uses, to be enjoyed by the Grantee and the public, in accordance with the Plan. Fishing and hunting are likewise permitted, so long as they are undertaken in compliance with applicable state and federal laws and regulations and pursued in a manner that does not substantially diminish or impair the Conservation Values.

C. Maintenance and repair of existing roads, as documented in the Report, provided no roads shall be paved or oiled or have calcium carbonate applied or otherwise be improved with chemical coatings or other non-natural materials.

D. The development of one small, unpaved, temporary stopping site to accommodate limited guided public access as specified in the Plan, provided (i) the area shall not be paved or oiled or have calcium carbonate applied or otherwise be improved with chemical coatings or other non-natural materials, (ii) the area shall be restored with native vegetation after the guided public access use is terminated, and (iii) the area shall not be located directly along the rim of the canyon.

E. Motorized vehicular access on existing roads, as documented in the Report, for property maintenance, management, patrol, and emergency services, by the Grantee and/or

U:\NJFP\HANTOM\RED MNT\Chyenenne Out\RM\RESERVED CE FINAL 7-8-05.doc
July 8, 2005

its personal representatives and assigns. Limited off road use by motorized vehicles is permitted only for weed control, prescribed burns for ecological purposes, and for emergency purposes, provided impacts to the Conservation Values are minimized. The Easement expressly prohibits public vehicular access.

F. Construction of unpaved trails associated with public non-motorized recreation, provided such trails are located and constructed according to the Plan.

G. Installation of small directional and interpretive signage along the existing roads, as documented in the Report, provided no sign is lighted.

H. Grazing and pasturing horses, cattle, mules, sheep, and llamas, provided that range conditions shall be maintained at, or improved from, those documented in the Report. Grazing of other livestock species shall be subject to prior approval by the Conservancy.

I. Maintenance, repair, and, if destroyed, reconstruction of existing fencing, as documented in the Report, and the construction of new fences; provided that boundary or pasture-division fences shall not unduly restrict or exclude wildlife use of the Property.

J. Use of agricultural chemicals for the following purposes and under the following conditions:

i. For the control of noxious weeds, as required by Wyoming state law, and for the control of other invasive exotic plant species; provided that chemical herbicides may be used only in those amounts and with a frequency of application that constitute the minimum necessary for control; and that the herbicide is not applied by aerial spraying.

ii. For the control of agricultural or forest pests, subject to prior approval by the Conservancy.

K. Use of biological weed and insect control agents, subject to prior approval by the Conservancy.

L. The selective harvesting of timber only for the following purposes: controlling forest disease; protecting persons or property from the hazards of falling trees or branches or wildfire; providing firewood for domestic use on the Property; and enhancing wildlife habitat. These conditions apply to both living and standing dead trees.

M. Grantee shall have the right to continue the historic use of the Water Rights on the Property (as described in the Report) and to maintain, repair, and if destroyed, reconstruct any existing facilities related to the Water Rights (such as ditches, wells and reservoirs)

U:\NJ\FPHANTOM\RED MNT\Cheyenne Out\RM\RESERVED CE FINAL 7-8-05.doc
July 8, 2005

unless the Conservation Values of the Property would be adversely impacted thereby, as determined by the Conservancy in its sole judgment. Grantor's use of the Water Rights on the Property is subject to the reservation recorded in Laramie County at Reception # 40689 whereby Larimer County reserves to itself and its assigns all rights to use of the existing supply of water from Spring #19, as may be permitted by law, serving an existing stock tank on the County's adjacent property including the reasonable right of entry for the County to inspect the spring, maintain existing structures for the spring and delivery of water, provided that the County will not develop the spring to increase the historic water flow.

7. Inconsistent Uses of the Property. The following uses and practices on the Property shall be prohibited, except as specifically provided in Paragraph 6:

A. The dumping or other disposal, or other than in the normal course of ranch use, the storage of toxic and/or hazardous materials.

Notwithstanding anything in this Easement to the contrary, this prohibition does not make the Conservancy an owner of the Property, nor does it permit the Conservancy to control any use of the Property by the Grantee which may result in the storage, dumping or disposal of hazardous or toxic materials; provided, however, that the Conservancy may bring an action to protect the Conservation Values of the Property, as described in this Easement. This prohibition does not impose liability on the Conservancy, nor shall the Conservancy be construed as having liability as a "responsible party" under CERCLA or similar federal or state statutes.

B. Dumping or other disposal of non-compostable refuse, wildlife-attracting materials, or any other material which could reasonably be considered debris, including the establishment of a landfill.

C. The change, disturbance, alteration, or impairment of the Conservation Values.

D. The application, storage or placement on the Property of domestic septic effluent, municipal, commercial or industrial sewage sludge, or animal waste created from intensive livestock operations on other properties.

E. Conversion of native vegetation to exotic cover species or the introduction of non-native plant species; farming, plowing or any type of cultivation is prohibited.

F. Introduction or release of nonnative animal species.

G. Establishment and operation of a livestock feedlot (which shall be defined for purposes of this Easement as a permanently constructed confined area or facility within

U:\NJF\PHANTOM\RED MNT\Cheyenne Out\RM R RESERVED CE FINAL 7-8-05.doc
July 8, 2005

which the land is not grazed or cropped annually for purposes of engaging in the business of the reception and feeding of livestock for hire) or any wild game farming or ranching facilities.

H. Filling, excavating, dredging, mining, drilling, and the exploration for or extraction of minerals, hydrocarbons, soils, sand, gravel, rock, or other materials on or below the surface of the Property, except for purposes specifically permitted in this Easement.

I. Division, subdivision, or de facto subdivision of the Property.

J. Construction or placement of any buildings, temporary living quarters of any sort, mobile homes, signs, billboards or other advertising materials, utility towers, wind powered electricity generators, or other structures.

K. Construction of roads or vehicle trails.

L. Use of snowmobiles, all-terrain vehicles, motorcycles, or other motorized vehicles on or off roads, trails or travelways.

M. Cutting, removing, or destruction of native vegetation, except by grazing, haying, non-commercial harvest of timber, herbicide application, or approved land management techniques such as periodic burning that are outlined in the Plan.

N. Animal trapping for purposes other than control of predatory animals which demonstrably have caused damage to property. Trapping methods employed must be selective for the target species and administered as humanely as is possible.

O. The establishment or operation of any shooting ranges.

P. Application of biocides, herbicides, defoliants, chemical fertilizers, or other chemicals.

Q. Changing the topography of the Property by placing on it any soil, dredging spoils, land fill, or other material, except as necessary to conduct authorized road and trail construction activities.

R. Establishment of any commercial activity, including but not limited to operating a commercial lodging, outfitting, guiding or guest ranch facility, except for agricultural, recreation, and scientific and public visitation activities permitted herein and conducted according to the Plan, including guided horseback riding. Any commercial uses which are allowed shall be conducted in a manner that is consistent with § 170(h) of the United States Internal Revenue Code and the Treasury Regulations adopted pursuant thereto,

U:\NJFP\PHANTOM\RED MNT\Cheyenne Out\RM\RESERVED CE FINAL 7-8-05.doc
July 8, 2005

shall be consistent with the purposes of the Easement, and shall not adversely affect the Property's Conservation Values.

S. Any new manipulation, diversion, or other alteration of natural water courses, wetlands, or other natural bodies of water, any new pumping of groundwater whether tributary or not, any new practice that degrades or destabilizes their natural banks or shorelines, or any other new development of water resources. Grantee shall not develop any conditional water rights for use on the Property.

T. The Water Rights may never (i) be changed to or used for municipal, industrial, commercial uses, or other new uses, (ii) be changed for use other than on the Property, (iii) be sold, leased, encumbered separately from the Property or otherwise legally separated from the Property, or (iv) have their points of diversion, or their type or place of use within the Property changed, except after a written determination by the Conservancy in its sole judgment that such changes do not impair the Conservation Values of the Property. No loss of any or all of the Water Rights through injury or abandonment, shall be considered a loss, severance or other transfer of the Water Rights from the Property for federal or state tax or other purposes.

8. Unlawful Activities. Any activity or use on the Property that violates any applicable federal, state, county, or local law, rule, ordinance, or regulation is prohibited.

9. Prior Notice and Approval. Grantee shall not undertake or permit any activity requiring prior approval by the Conservancy without first having notified and received approval from the Conservancy as provided herein.

Prior to the commencement of any such activity, Grantee shall send the Conservancy written notice of his/her intention to undertake or permit such activity. The notice shall inform the Conservancy of all aspects of the proposed activity, including location, design, materials or equipment to be used, dates and duration, and any other relevant information, and shall be sent by registered or certified mail, return receipt requested, to The Nature Conservancy, Colorado Field Office, whose address is 2424 Spruce, Boulder, CO 80302, with a copy to the Western Regional Attorney, The Nature Conservancy, 2424 Spruce Street, Suite 100, Boulder, CO 80302, or such other addresses as Grantee may from time to time be informed of in writing by the Conservancy.

The Conservancy shall have forty-five (45) days from receipt of the notice, as indicated by the date of the return receipt, to review the proposed activity and to notify Grantee of any objections thereto; provided that the 45-day period shall not begin until such time as the Conservancy has received adequate information from Grantee to evaluate the proposed activity. In the event that the Conservancy requires additional information to evaluate the proposed activity, the Conservancy shall request the information from Grantee as soon as practicable and in any case not later than 30 days after the receipt of the notice of the proposed activity.

U:\NJF\PHANTOM\RED MNT\Cheyenne Out\RM\RESERVED CE FINAL 7-8-05.doc
July 8, 2005

The Conservancy's decision to approve or disapprove the activity proposed by Grantee shall be sent by registered or certified mail, return receipt requested, to Grantee at the address first stated above, or to such other address as the Conservancy may from time to time be informed of in writing by Grantee.

A decision by the Conservancy to disapprove a proposed activity must be based upon the Conservancy's determination that the proposed activity is inconsistent with the conservation purposes of the Easement. If in the Conservancy's judgment it is possible that the proposed activity can be modified to be consistent with the easement, the Conservancy's decision notice shall inform Grantee of such modification(s). Once modification is made to the satisfaction of the Conservancy or the Conservancy otherwise concurs with the matters set forth in Grantee's notice, the proposed activity may thereafter be conducted in a manner that is acceptable to the Conservancy.

Should the Conservancy fail to post its response to Grantee's notice within forty five (45) days of its receipt of notice or within forty five (45) days of the time that the Conservancy has received adequate information to evaluate the proposed activity, whichever is later, the proposed activity is automatically deemed consistent with the terms of the Easement, the Conservancy having no further right to object to the activity identified by such notice.

10. Remedies, Breach and Restoration. The provisions of this Easement are enforceable in law or equity by the Conservancy, its successors or assigns, as follows:

A. Notice of Violation; Corrective Action. If the Conservancy determines that a violation of the terms of this Easement has occurred or is threatened, the Conservancy shall give written notice to Grantor of such violation and demand corrective action sufficient to cure the violation and, where the violation involves injury to the Property resulting from any use or activity inconsistent with the purpose of this Easement, to restore the portion of the Property so injured to its prior condition in accordance with a plan approved by the Conservancy.

B. Injunctive Relief. If Grantor fails to cure the violation within thirty (30) days after receipt of notice thereof from the Conservancy, or under circumstances where the violation cannot reasonably be cured within a 30 day period, fail to begin curing such violation within the 30 day period, or fail to continue diligently to cure such violation until finally cured, the Conservancy may bring an action at law or in equity in a court of competent jurisdiction to enforce the terms of this Easement, to enjoin the violation, *ex parte* as necessary, by temporary or permanent injunction, and to require the restoration of the Property to the condition that existed prior to any such injury.

C. Damages. The Conservancy shall be entitled to recover damages for violation of the terms of this Easement or injury to any Conservation Values protected by this Easement,

U:\NJF\PHANTOM\RED MNT\Cheyenne Out\ARMR RESERVED CE FINAL 7-8-05.doc
July 8, 2005

including, without limitation, damages for the loss of scenic, aesthetic, or environmental values. Without limiting Grantor's liability therefor, the Conservancy, in its sole discretion, may apply any damages recovered to the cost of undertaking any corrective action on the Property.

D. Emergency Enforcement. If the Conservancy, in its sole discretion, determines that circumstances require immediate action to prevent or mitigate significant damage to the Conservation Values of the Property, the Conservancy may pursue its remedies under this Paragraph 10. without prior notice to Grantor or without waiting for the period provided for cure to expire.

E. Scope of Relief. The Conservancy's rights under this Paragraph 10. apply equally in the event of either actual or threatened violations of the terms of this Easement. Grantor agrees that the Conservancy's remedies at law for any violation of the terms of this Easement are inadequate and that the Conservancy shall be entitled to the injunctive relief described in Paragraph 10.B. above, both prohibitive and mandatory, in addition to such other relief to which the Conservancy may be entitled, including specific performance of the terms of this Easement, without the necessity of proving either actual damages or the inadequacy of otherwise available legal remedies. The Conservancy's remedies described in this Paragraph 10. shall be cumulative and shall be in addition to all remedies now or hereafter existing at law or in equity.

F. Costs of Enforcement. All reasonable costs incurred by the Conservancy in enforcing the terms of this Easement against Grantor, including, without limitation, costs and expenses of suit and reasonable attorneys' fees, and any costs of restoration necessitated by Grantor's violation of the terms of this Easement shall be borne by Grantor; provided, however, that if Grantor ultimately prevails in a judicial enforcement action, all reasonable costs incurred by the Grantor in such action, including, without limitation, costs and expenses of suit and reasonable attorneys' fees, shall be borne by the Conservancy.

G. Forbearance. Forbearance by the Conservancy to exercise its rights under this Easement in the event of any breach of any term of this Easement by Grantor shall not be deemed or construed to be a waiver by the Conservancy of such term or of any subsequent breach of the same or any other term of this Easement or of any of the Conservancy's rights under this Easement. No delay or omission by the Conservancy in the exercise of any right or remedy upon any breach by Grantor shall impair such right or remedy or be construed as a waiver.

H. Waiver of Certain Defenses. Grantor hereby waives any defense of laches, estoppel or prescription.

I. Acts Beyond Grantor's Control. Nothing contained in this Easement shall be construed to entitle the Conservancy to bring any action against Grantor for any injury to or change in the Property resulting from causes beyond Grantor's control, including, without limitation, fire, flood, storm, and earth movement, or from any prudent action taken by Grantor under emergency conditions to prevent, abate, or mitigate significant injury to the Property resulting from such causes.

11. Liabilities. To the extent allowed by law, Grantee shall hold harmless, indemnify, and defend the Conservancy and the Conservancy's members, directors, officers, employees, agents, and contractors and the heirs, personal representatives, successors, and assigns of each of them ("Indemnified Parties") from and against all liabilities, penalties, costs, losses, damages, expenses, causes of action, claims, demands, or judgments, including, without limitation, reasonable attorney's fees, arising from or in any way connected with: (1) injury to or the death of any person, or physical damage to any property, resulting from any act, omission, condition, or other matter related to or occurring on or about the Property, regardless of cause, unless due solely to the negligence of any of the Indemnified Parties; (2) the obligations specified in Paragraph 11 herein; and (3) the presence or release of any hazardous material or substance of any kind on the Property. For the purpose of this paragraph, hazardous or toxic substances shall mean any hazardous or toxic substance which is regulated under any federal, state or local law. This paragraph shall not apply in the case of any hazardous material or substance in any manner placed on the Property by the Conservancy or the Conservancy's representatives or agents. As between the parties to this Easement, Buyer expressly waives its right to invoke governmental immunity for any claim arising out of this Easement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. Section 1-39-101 et seq. (the "Immunity Statute"). As to all other parties, Buyer expressly reserves the right to invoke immunity for any claim arising out of this Easement pursuant to the Immunity Statute.

12. Costs and Legal Requirements. Grantor retains all responsibilities and shall bear all costs and liabilities of any kind related to the ownership, operation, upkeep and maintenance of the Property and agrees that the Conservancy shall have no duty or responsibility for the operation or maintenance of the Property, the monitoring of hazardous conditions thereon, or the protection of Grantor, the public, or any third parties from risks relating to conditions on the Property. Grantor agrees to pay before delinquency any and all real property taxes and assessments levied by competent authority on the Property and that Grantor shall keep the Conservancy's interest in the Property free of any liens, including those arising out of any work performed for, materials furnished to or obligations incurred by Grantor. Grantor shall be solely responsible for any costs related to the maintenance of general liability insurance covering acts on the Property. Grantor remains solely responsible for obtaining any applicable governmental permits and approvals for any activity or use permitted by this Easement, and any activity or use shall be undertaken in accordance with all applicable federal, state, and local laws, regulations, and requirements. If more than one person or entity constitutes Grantor, the obligations of each and all of them under this Easement shall be joint and several.

U:\NIP\PHANTOMRED MNT\Cheyenne Out\RMRESERVED CE FINAL 7-8-05.doc
July 8, 2005

13. [Intentionally omitted]

14. Assignment. The Conservancy may assign the Easement with Grantee's consent; provided that:

- a. The Conservancy requires, as a condition of such transfer, that the conservation purposes of the Easement continue to be carried out; and
- b. An assignment may be made only to an organization qualified at the time of transfer as an eligible donee under the IRS Code.

The Conservancy may also assign separately, with the Grantee's consent, all restrictions and responsibilities in this Easement concerning the Water Rights subject to the terms of this Easement.

15. Change of Conditions. The fact that any use of the Property that is expressly prohibited by this Easement, or any other use as determined to be inconsistent with the purpose of this Easement, may become greatly more economically valuable than permitted uses, or that neighboring properties may in the future be put entirely to uses that are not permitted thereunder, has been considered by the Grantee in granting this Easement. It is Grantee's belief that any such changes will increase the benefit to the public of the continuation of this Easement, and it is the intent of both Grantee and the Conservancy that any changes should not be assumed to be circumstances justifying the termination or extinguishment of this Easement pursuant to this paragraph. In addition, the inability to carry on any or all of the permitted uses, or the unprofitability of doing so, shall not impair the validity of this Easement or be considered grounds for its termination or extinguishment pursuant to this paragraph.

16. Extinguishment. If circumstances arise in the future that render the purpose of this Easement impossible or impractical to accomplish, this Easement can only be terminated or extinguished, whether with respect to all or part of the Property, by judicial proceeding in a court of competent jurisdiction. Each party shall promptly notify the other when it first learns of such circumstances. The amount of proceeds to which the Conservancy shall be entitled, after satisfaction of prior claims, from any sale, exchange, or involuntary conversion of all or any portion of the Property subsequent to such termination or extinguishment, shall be determined, unless otherwise provided by Wyoming law at that time, in accordance with Paragraph 18 below. No loss of any or all of the Water Rights through injury or abandonment shall be considered a termination or extinguishment of all or any part of this Easement.

17. Condemnation. If the Easement is taken, in whole or in part, by exercise of the power of eminent domain, the Conservancy shall be entitled to compensation in accordance with Paragraph 18 below.

U:\NJ\PHANTOM\RED MNT\Cheyenne Out\RMRESERVED CE FINAL 7-8-05.doc
July 8, 2005

18. Proceeds. This Easement constitutes a real property interest immediately vested in the Conservancy, which the parties stipulate to have a fair market value equal to 38% of the full fair market value of the Property at the time of the grant of this Easement. For the purpose of this paragraph, the ratio of the value of the Easement to the value of the Property unencumbered by the Easement shall remain constant.

19. Amendment. If circumstances arise under which an amendment to or modification of the Easement would be appropriate, Grantee and the Conservancy may jointly amend the Easement. Any such amendment shall be consistent with the purposes of the Easement, shall not affect its perpetual duration, shall not permit additional development or improvements to be undertaken on the Property other than development or improvements currently permitted by the Easement, and shall not impair any of the significant Conservation Values of the Property. Any such amendment shall be recorded in the official records of the county in which the Property is located.

20. Interpretation. The provisions of this Easement shall be liberally construed to effectuate the purpose of preserving and protecting habitat for wildlife, unique native plants, and diverse forest, meadow and riparian vegetative communities. No remedy or election given by any provision in this Easement shall be deemed exclusive unless so indicated, but it shall, wherever possible, be cumulative with all other remedies at law or in equity. The parties acknowledge that each party and its counsel have reviewed and revised this Easement and that no rule of construction that ambiguities are to be resolved against the drafting party shall be employed in the interpretation of this Easement. In the event of any conflict between the provisions of this Easement and the provisions of any use and zoning restrictions of the state or county in which the Property is located, or any other governmental entity with jurisdiction, the more restrictive provisions shall apply. This Easement shall be interpreted in accordance with the laws of the state in which the Property is located.

21. Miscellaneous.

c. Definitions. The terms "Grantee" and "Conservancy" as used herein shall be deemed to include, respectively, the Grantee, the Grantee's heirs, successors, personal representatives, and assigns, and the Conservancy, its successors and assigns.

d. Binding Effect. Grantee intends that the Easement shall run with and burden title to the Property in perpetuity, and shall bind Grantee, his/her heirs, successors, personal representatives, and assigns.

e. Severability. If any provision of this Easement or the application thereof to any person or circumstance is found to be invalid, the remainder of the provisions hereof and the application of such provision to persons or circumstances other than those to which it is found to be invalid, shall not be affected thereby.

U:\NJ\FPHANTOM\RED MNT\Cheyenne Out\RMRESERVED CB FINAL 7-8-05.doc
July 8, 2005

- f. Entire Agreement. This instrument sets forth the entire agreement of the parties with respect to the Easement and supersedes all prior discussions, negotiations, understandings, or agreements relating to the Easement, all of which are merged herein. No alteration or variation of this instrument shall be valid or binding unless contained in an amendment that complies with paragraph 19 above.

U:\N\F\PHANTOM\RED MNT\Cheyenne Out\RM R RESERVED CE FINAL 7-8-05.doc
July 8, 2005

TO HAVE AND TO HOLD the said Easement unto the said Conservancy, its successors and assigns, forever.

IN WITNESS WHEREOF, Grantee has hereunto set its hand this 12th day of July, 2005.

GRANTEE:

City of Cheyenne Wyoming, a municipal corporation

By: 

Its: 

Attest: Carol A. Jindal
City Clerk

STATE OF Wyo)
COUNTY OF Laramie) ss.

On this 12th day of July, 2005, before me personally appeared Jack R. Spiker to me known to be the Mayer of the City of Cheyenne Wyoming, and acknowledged the said instrument to be the free and voluntary act and deed of said corporation, for the uses and purposes therein mentioned, and on oath stated that s/he was authorized to execute said instrument and that the seal affixed is the corporate seal of said corporation.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal on the day and year first above written.

[SEAL]

Cathie A. Tabor
Notary Public

My Commission expires on _____, 20____.



U:\NJ\FPHANTOM\RED MNT\Cheyenne Out\RMR RESERVED CB FINAL 7-8-05.doc
July 8, 2005

The foregoing Deed of Conservation Easement is hereby duly reserved by The Nature Conservancy and has been executed on this 12 day of July, 2005. Execution of the instrument is deemed to be accepted under W.S. 34-1-202(b) by the holder of the conservation easement.

CONSERVANCY:

The Nature Conservancy,
a District of Columbia nonprofit corporation

By: Nancy
Its: Land Conservation Program Mgr.

STATE OF Wyo)
COUNTY OF Laramie)ss.

On this 12 day of July, 2005 before me personally appeared Nancy Fishbein, to me known to be the Land Conservator of The Nature Conservancy, a District of Columbia non-profit corporation, and acknowledged the said instrument to be the free and voluntary act and deed of said corporation, for the uses and purposes therein mentioned, and on oath stated that she was authorized to execute said instrument.

Cathie A Tabor
Notary Public



My Commission expires on , 20 .

Property Description

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

Township 12 North, Range 69 West of the 6th P.M.

- Section 18: All lying South of the Union Pacific Railroad Company Right-of-Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.
- Section 19: Lots 1, 2, 3 and 4 in Wyoming

Township 12 North, Range 70 West of the 6th P.M.

- Section 12: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.
- Section 13: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.
- Section 23: Lots 1, 2, 3, 4, in Wyoming.
- Section 24: Lots 1, 2, 3, 4, in Wyoming.

Also known by the following surveyed legal description:

LEGAL DESCRIPTION OF PARCEL 1:

A PORTION OF SECTIONS 18 AND 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., AND A PORTION OF SECTIONS 12, 13, 23, AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., ALL IN THE COUNTY OF LARAMIE, STATE OF WYOMING BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

CONSIDERING THE COLORADO AND WYOMING STATE LINE BETWEEN MILE POST 59 AND MILE POST 61 TO BEAR NORTH 89°59'29" EAST ALSO BEING THE SOUTH LINE OF LARAMIE COUNTY, WYOMING AND THE NORTH LINE OF LARIMER COUNTY, COLORADO WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO; BEGINNING AT A POINT ON THE COLORADO AND WYOMING STATE LINE, FROM WHICH MILE POST 56 BEARS SOUTH 89°56'32" EAST, A DISTANCE OF 11,274.92 FEET; THENCE NORTH 09°46'12" EAST, A DISTANCE OF 1053.43 FEET;

THENCE NORTH 44°38'47" WEST, A DISTANCE OF 826.47 FEET; THENCE NORTH 64°05'39" WEST, A DISTANCE OF 2456.63 FEET; THENCE NORTH 44°50'48" WEST, A DISTANCE OF 3565.62 FEET; THENCE NORTH 56°57'37" WEST, A DISTANCE OF 2447.93 FEET TO A POINT ON THE NORTH LINE OF SECTION 13, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M.; FROM WHICH THE NORTHWEST CORNER OF SAID SECTION 13 BEARS NORTH 89°10'56" WEST, A DISTANCE OF 738.78 FEET; THENCE NORTH 00°00'23" EAST, PARALLEL WITH THE EAST LINE OF THE SOUTHWEST 1/4 OF SECTION

12, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 812.53 FEET TO THE SOUTH RIGHT-OF-WAY LINE OF THE UNION PACIFIC RAILROAD; THENCE NORTH 63°33'54" WEST, PARALLEL WITH AND 200 FEET SOUTHERLY FROM THE CENTERLINE OF THE UNION PACIFIC RAILROAD, A DISTANCE OF 208.82 FEET TO THE BEGINNING OF A CURVE, CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 3525.66 FEET AND A CENTRAL ANGLE OF 09°44'24", AND BEING SUBTENDED BY A CHORD WHICH BEARS NORTH 67°09'42" WEST, A DISTANCE OF 598.62 FEET; THENCE NORTHWESTERLY AND WESTERLY ALONG SAID CURVE, A DISTANCE OF 599.34 FEET TO A POINT OF CUSP ON THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 12; THENCE SOUTH 00°00'23" WEST, ALONG THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 12, A DISTANCE OF 1127.29 FEET TO THE NORTHWEST CORNER OF SAID SECTION 13; THENCE SOUTH 00°26'17" WEST, ALONG THE WEST LINE OF THE NORTHWEST 1/4 OF SAID SECTION 13, A DISTANCE OF 2621.78 FEET TO THE WEST 1/4 CORNER OF SAID SECTION 13; THENCE SOUTH 00°26'26" WEST, ALONG THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 13, A DISTANCE OF 2621.53 FEET TO THE SOUTHWEST CORNER OF SAID SECTION 13; THENCE NORTH 89°51'46" WEST, ALONG THE NORTH LINE OF THE LOTS 1 AND 2 OF SECTION 23, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 2713.37 FEET TO THE NORTH 1/4 CORNER OF SAID SECTION 23; THENCE SOUTH 89°52'05" WEST, ALONG THE NORTH LINE OF LOTS 3 AND 4 OF SAID SECTION 23, A DISTANCE OF 2523.67 FEET TO THE NORTHWEST CORNER OF SAID SECTION 23; THENCE SOUTH 02°48'19" WEST, ALONG THE WEST LINE OF LOT 4 OF SAID SECTION 23, A DISTANCE OF 1328.56 FEET TO THE CLOSING CORNER FOR SECTIONS 22 AND 23, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., SAID CORNER BEING ON THE COLORADO AND WYOMING STATE LINE; FROM WHICH MILE POST 61 BEARS SOUTH 89°59'29" WEST, A DISTANCE OF 1763.52 FEET; THENCE NORTH 89°59'29" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 5304.41 FEET TO THE CLOSING CORNER BETWEEN SECTIONS 23 AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., THENCE CONTINUING NORTH 89°59'29" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 3454.64 FEET TO MILE POST 59; THENCE SOUTH 89°56'32" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 1908.62 FEET TO THE CLOSING CORNER BETWEEN SECTIONS 19 AND 24,

TOWNSHIP 12 NORTH, RANGES 69 AND 70 WEST OF THE 6TH P.M.; THENCE CONTINUING SOUTH 89°56'32" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 2591.69 FEET TO THE TRUE POINT OF BEGINNING. COUNTY OF LARAMIE, STATE OF WYOMING. CONTAINING 923.74 ACRES, MORE OR LESS.

LEGAL DESCRIPTION OF PARCEL 2:

A PORTION OF SECTIONS 18 AND 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., AND A PORTION OF SECTIONS 12, 13, 23, AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., ALL IN THE COUNTY OF LARAMIE, STATE OF WYOMING BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

CONSIDERING THE COLORADO AND WYOMING STATE LINE BETWEEN MILE POST 59 AND MILE POST 61 TO BEAR NORTH 89°59'29" EAST ALSO BEING THE SOUTH LINE OF LARAMIE COUNTY, WYOMING AND THE NORTH LINE OF LARIMER COUNTY, COLORADO WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO; BEGINNING AT A POINT ON THE COLORADO AND WYOMING STATE LINE, FROM WHICH MILE POST 56 BEARS SOUTH 89°56'32" EAST, A DISTANCE OF 11,274.92 FEET; THENCE NORTH 09°46'12" EAST, A DISTANCE OF 1053.43 FEET; THENCE NORTH 44°38'47" WEST, A DISTANCE OF 826.47 FEET; THENCE NORTH 64°05'39" WEST, A DISTANCE OF 2456.63 FEET; THENCE NORTH 44°50'48" WEST, A DISTANCE OF 3565.62 FEET; THENCE NORTH 56°57'37" WEST, A DISTANCE OF 2447.93 FEET TO A POINT ON THE NORTH LINE OF SECTION 13, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M.; FROM WHICH THE NORTHWEST CORNER OF SAID SECTION 13 BEARS NORTH 89°10'56" WEST, A DISTANCE OF 738.78 FEET; THENCE NORTH 00°00'23" EAST, PARALLEL WITH THE EAST LINE OF SECTION 12, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 812.53 FEET TO THE SOUTH RIGHT-OF-WAY LINE OF THE UNION PACIFIC RAILROAD; THENCE SOUTH 63°33'54" EAST, PARALLEL WITH AND 200 FEET SOUTHERLY FROM THE CENTERLINE OF THE MAIN TRACK OF THE UNION PACIFIC RAILROAD, A DISTANCE OF 147.67 FEET TO THE BEGINNING OF A CURVE, CONCAVE TO THE NORTH, HAVING A RADIUS OF 3305.55 FEET, AND A CENTRAL ANGLE OF 27°58'53", AND BEING SUBTENDED BY A CHORD WHICH BEARS SOUTH 75°28'29" EAST, A DISTANCE OF 1598.33 FEET; THENCE SOUTHEASTERLY AND EASTERLY ALONG SAID CURVE, AND ALONG SAID RIGHT-OF-WAY LINE, A DISTANCE OF 1614.33 FEET; THENCE SOUTH 87°29'29" EAST, ALONG SAID RIGHT-OF-WAY LINE, A DISTANCE OF 2872.76 FEET TO THE EAST LINE OF SAID SECTION 12; THENCE SOUTH 00°28'50" EAST, ALONG THE EAST LINE OF THE SOUTHEAST 1/4 OF SAID SECTION 12, A DISTANCE OF 317.79 FEET TO THE NORTHWEST CORNER OF SECTION 18, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M.; THENCE NORTH 89°30'51" EAST, ALONG THE NORTH LINE OF THE NORTHWEST 1/4 OF SAID SECTION 18, A DISTANCE OF 2540.90 FEET TO THE NORTH 1/4 CORNER OF SAID SECTION 18; THENCE SOUTH 89°51'18" EAST, ALONG THE NORTH LINE OF THE NORTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2631.47 FEET TO THE NORTHEAST CORNER OF SAID SECTION 18; THENCE SOUTH 03°40'06" EAST, ALONG THE EAST LINE OF THE NORTHEAST 1/4 OF SAID SECTION 18, A

DISTANCE OF 2667.75 FEET TO THE EAST ¼ CORNER OF SAID SECTION 18; THENCE SOUTH 00°57'52" EAST, ALONG THE EAST LINE OF THE SOUTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2588.84 FEET TO THE SOUTHEAST CORNER OF SAID SECTION 18; THENCE SOUTH 00°24'42" EAST, ALONG THE EAST LINE OF LOT 1 OF SAID SECTION 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., A DISTANCE OF 1231.46 FEET TO THE COLORADO AND WYOMING STATE LINE; FROM WHICH MILE POST 56 BEARS SOUTH 89°56'32" EAST, A DISTANCE OF 8505.72 FEET;

THENCE NORTH 89°56'32" WEST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 2769.20 FEET TO THE TRUE POINT OF BEGINNING.

COUNTY OF LARAMIE, STATE OF WYOMING.

CONTAINING 884.18 ACRES, MORE OR LESS.

Map created with TOPO!® ©2003 National Geographic (www.nationalgeographic.com/topo)

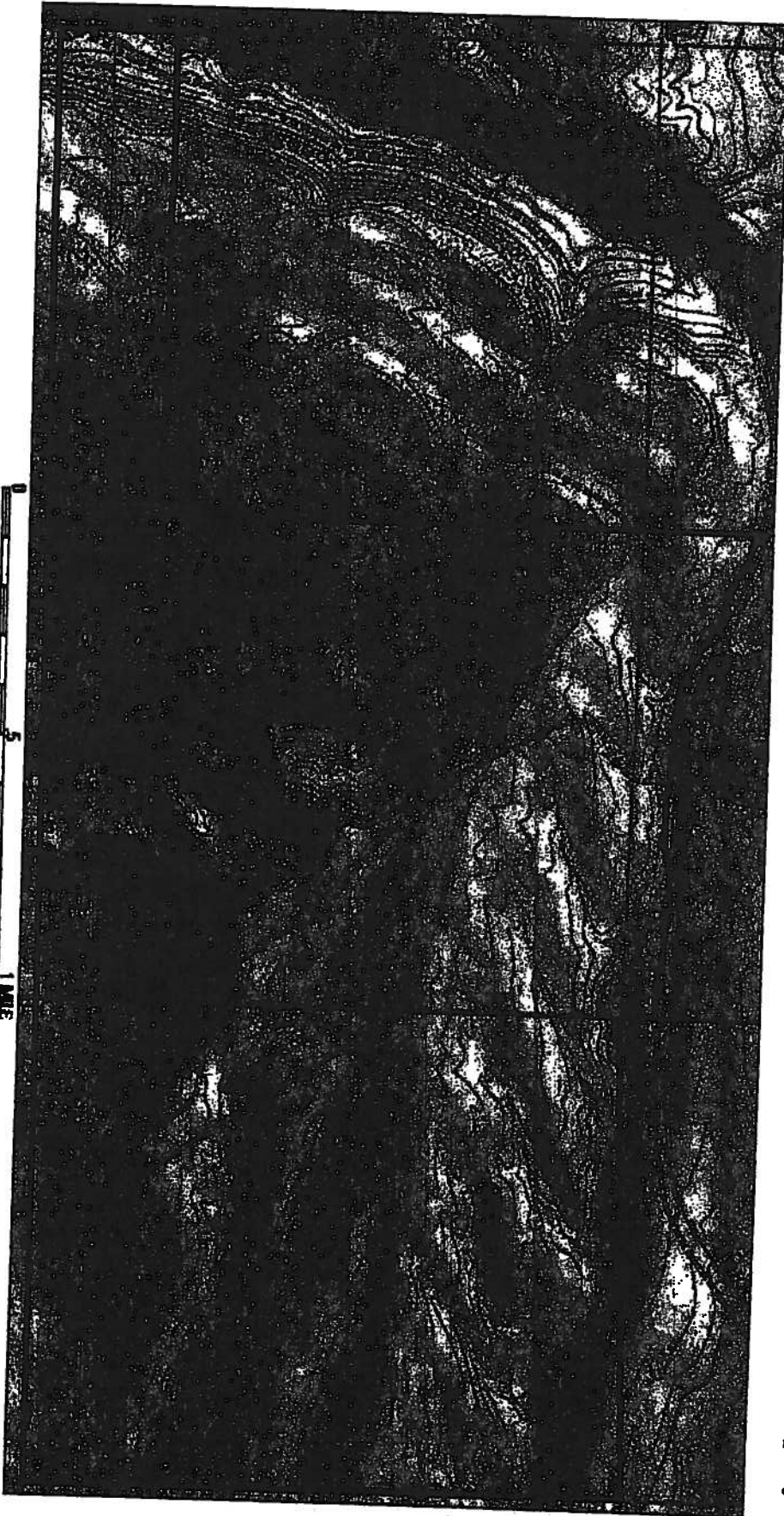


Exhibit B
Map of the Property

Acknowledgment of Easement Documentation Report

Grantee and the Conservancy acknowledge that each has read the "Red Mountain Ranch - Wyoming Easement Documentation Report," dated July 1, 2005, and that the report accurately reflects the condition of the Property subject to the Easement as of the date of conveyance of the Easement.

THE NATURE CONSERVANCY,
a District of Columbia
non-profit corporation

By: Nancy J. [Signature]
Its Land Conservation Program Manager
Date: 7/12/05

CITY OF CHEYENNE WYOMING,
a municipal corporation

By: [Signature]
Date: 7/12/05
ATTEST: [Signature]
City Clerk
STATE OF WYOMING

Exhibit D
Water Rights

Specific Water Rights

- Spring #13 a/k/a Permit #UW 59501 (SW1/4NW1/4 Section 13, T12N-R70W)
- Spring #19 a/k/a Permit #UW 59502 (NW1/4NW1/4 Section 19, T12N-R69W)

Subject to the reservation by Larimer County of all rights to use the existing supply of water from Spring #19 as more specifically set forth in the Bargain and Sale Deed (Water Rights - Wyoming) dated December 21, 2004, recorded December 31, 2004 in Book 1857 Page 306 Laramie County, Wyoming records.

L:\FORMS\CONSEASE\CONSEASE.FRM
July 8, 2005

EXHIBIT 2

**COOPERATIVE PLAN
DECEMBER 31, 2007**

Updated Interim Management Plan
Red Mountain Ranch Wyoming - City of Cheyenne
Updated Dec 31st, 2007

Background Information & Interim Plan Update

The Nature Conservancy reserved a conservation easement on the approximately 1800-acre Red Mountain Ranch Wyoming property (also known as the Big Hole) in Laramie County, Wyoming (the "Property") when it transferred the Property to the City of Cheyenne (the "Grantee") on July 12th, 2005.

The conservation easement stipulates that an Interim Management Plan will be developed by The Nature Conservancy to guide public access to and use of the Property during the period of time between the transfer of the Property from the Conservancy to Grantee and the drafting and adoption of a Cooperative Management Plan by the Conservancy, the Grantee and Larimer County, Colorado Parks and Open Lands (the "County") (collectively, the "Parties"), owner of the adjacent Red Mountain Open Space, Colorado, prior to December 2007. If the Cooperative Plan is not completed by December 31, 2007, the Conservancy will update the Interim Management Plan and it shall continue to guide land use on the Property until a Cooperative Plan is completed by the Parties.

Protection of the Property through the conservation easement will contribute to the conservation of important significant relatively natural habitat for wildlife and plants, including particularly native foothills grasslands, Ponderosa pine forest, mountain mahogany, skunkbush sumac and rabbitbrush shrublands, elk, deer, antelope, nesting raptors, migratory and breeding birds and mammals (the "Conservation Values"). In addition, the Property harbors scenic and agricultural values worthy of protection.

As of December 30th, 2007, the Parties had not completed a Cooperative Plan. Therefore, and in accordance with the language of the conservation easement, this document is the updated Interim Management Plan whose purpose is to outline continued and appropriate public access to and use and land management of the Property in the short term, and until such time as a Cooperative Plan is completed by the Parties..

Public Use

Goal: To restrict public access until a comprehensive land management plan can be developed by the Parties while allowing limited public visitation for project support.

1. There will be no unrestricted public access to the Property from either the Wyoming or Colorado property boundary. Notwithstanding anything to the contrary included in the conservation easement, during the duration of the Interim Management Plan, unless amended, non-commercial, non-motorized passive recreational activities, such as horseback riding, hiking, cross-county skiing, and other similar low-impact recreational uses by the public are prohibited on the Property.

2. The Grantee, the County and the Conservancy each may guide a limited number of public tours provided:
- All activity is limited to the existing roads, as documented in the Easement Documentation Report
 - No more than 15 people, including Conservancy, Grantee and County staff, may participate in any one trip
 - No more than eight trips per year per entity shall be allowed
 - At least one staff person shall be present and responsible for the group
 - The user will notify the other Parties at least twenty four (24) hours prior to the date of impending trips and parties will coordinate schedules so that visits are staggered
 - If conditions are such that use will cause negative impacts to roads, such as overly wet conditions, trips will be postponed
 - To facilitate visitation and minimize impacts to the resource, each entity shall stop, park, and turn around on the existing two-track roads as indicated on the attached map; the County at the top of the rim on the south side of the barbed wire fence gate in section 18 and the City as shown in section 13. Every effort shall be made to minimize impacts to the resource.
 - If impacts to resource occur then an appropriate stopping site for tours will be cooperatively established between the Parties. Per the terms of the conservation easement, the stopping site shall be temporary and thus restored and will not be paved, oiled, or improved in any way.

County, Grantee, Conservancy Access to Property

Goal: To establish access for the Parties to the Property as described in the conservation easement.

There are (or will be) three access agreements affecting the Property.

1. The Grantee will grant access to the County across existing road so that the County can access a portion of its Colorado property that is inaccessible from Colorado. The access is for emergency, property management, and patrol purposes.
2. The Grantee will grant temporary access to the County for the purpose of conducting limited guided public tours of the Property.
3. The County will grant access to the Conservancy across the Red Mountain Ranch Colorado property to enable the Conservancy to access the Property to monitor and enforce the terms of the conservation easement. Access to the Property by the Conservancy is granted by Grantee via the conservation easement.

The Grantee, the County and any others who are a Party to the access agreements, may access the Property so long as they meet the requirements of the access agreements in place. Such agreements are in place for emergency and management purposes, and for surveys and other activities that allow for the development of the Cooperative Management Plan or conservation easement monitoring. The general public is not included in any of these agreements.

Land Management

Goal: The Interim Management Plan allows for all land management activities as described in the conservation easement. This plan prioritizes the current land management issues but is not intended to direct general land management decisions on the Property. The overarching goal of land management activities is to conserve the Conservation Values as described in the Red Mountain Open Space - Wyoming Easement Documentation Report (the Report) and conservation easement while facilitating public enjoyment. Based on this goal, the following land management activities would be allowed by and are prioritized by the owner of the Property:

1. Grazing of domestic livestock.

Grazing and pasturing horses, cattle, mules, sheep, and llamas, provided that range conditions shall be maintained at, or improved from, those documented in the Report. Grazing of other livestock species shall be subject to prior approval by the Conservancy.

The Parties acknowledge that given the topography, historic ownership and management of the Property, grazing management has occurred across the Colorado and Wyoming Property boundary. Further, the Parties agree that grazing pastures on the Property shall be defined by existing fences, and not by Property ownership. Properly managed grazing is expected to have no significant impact on the conservation values and in some cases is necessary to maintain the conservation values. In addition grazing practices on the adjacent Red Mountain Open Space Property shall also occur in a manner such that it maintains range condition in a "good" or "excellent" condition as defined by the Natural Resources Conservation Service.

2. Fence Maintenance and Repair.

Maintenance, repair, and, if destroyed, reconstruction of existing fencing, as documented in the Report, and the construction of new fences; provided that boundary or pasture-division fences shall not unduly restrict or exclude wildlife use of the Property. Wildlife friendly fences are defined by research and various agencies. Specifications are available in various textbooks, agency publications, and from the CSU extension service and NRCS. These fences facilitate the movement of pronghorn, mule deer, and elk through fenced landscapes.

3. Control of Noxious Weeds.

Use of agricultural chemicals for the following purposes and under the following conditions:

- For the control of noxious weeds, as required by Wyoming state law, and for the control of other invasive exotic plant species; provided that chemical herbicides may be used only in those amounts and with a frequency of application that constitute the minimum necessary for control; and that the herbicide is not applied by aerial spraying.
- For the control of agricultural or forest pests, subject to prior approval by the Conservancy.

Use of biological weed and insect control agents, subject to prior approval by the Conservancy.

For many or even most noxious weeds, chemical treatment is the only effective or feasible means of control. Therefore chemicals should be allowed for use on the property to treat noxious weeds when appropriate as long as used as directed on the labels and in consideration with the identified conservation values. Eradication and/or control of noxious weeds are considered an essential step in successful conservation.

4. Water Rights.

Continue the historic use of the Water Rights on the Property and to maintain, repair, and if destroyed, reconstruct any existing facilities related to the Water Rights (such as ditches, wells and reservoirs) unless the Conservation Values of the Property would be adversely impacted thereby, as determined by the Conservancy in its sole judgment. Grantor's use of the Water Rights on the Property is subject to the reservation recorded in Laramie County at Reception # 40689 whereby Larimer County reserves to itself and its assigns all rights to use of the existing supply of water from Spring #19, as may be permitted by law, serving an existing stock tank on the County's adjacent property including the reasonable right of entry for the County to inspect the spring, maintain existing structures for the spring and delivery of water, provided that the County will not develop the spring to increase the historic water flow.

Amendment

If the Parties determine that the Interim Management Plan requires amendment prior to December 31, 2009, the Parties may amend the Interim Management Plan by mutual agreement, and such amendments shall be binding upon the Parties.

THE NATURE CONSERVANCY, a District of Columbia non-profit corporation

By: [Signature]

Its: Heather Knight, Laramie Foothills Project Director

Date: 31st December, 2007

THE CITY OF CHEYENNE, a municipal corporation

By: [Signature]

Its: Michael E. Abel, Planning Services Director

Date: 31st December, 2007

LARIMER COUNTY, COLORADO PARKS AND OPEN LANDS

By: _____

Its: _____

Date: 31st December, 2007

EXHIBIT 3

EASEMENT DOCUMENTATION REPORT

Laramie Foothills
(Red Mountain Ranch) CO/WY.
Sale out to City of Cheyenne w/
reserved CE

Red Mountain Ranch – Wyoming Easement Documentation Report

Prepared by
Heather Knight
Laramie Foothills Project Director
The Nature Conservancy
Laramie Foothills Project
1235 Cherokee Park Road
Livermore CO 80536
(970) 416-8620

July 1st, 2005

Acknowledgment of Easement Documentation Report

Grantor and the Conservancy acknowledge that each has read the "Red Mountain Ranch-Wyoming Easement Documentation Report," dated July 1st, 2005 (the Report) and acknowledges that the Report accurately reflects the condition of the Property subject to the Conservation Easement as of the date of conveyance of the Conservation Easement.

THE NATURE CONSERVANCY,
a District of Columbia
non-profit corporation

THE CITY OF CHEYENNE Wyoming
a municipal corporation

By: _____

By: _____

Its: _____

Its: _____

Date: _____

Date: _____

Table of Contents

Conservation Easement Background Information

Ecological Site Description

Location and General Property Description

Biological Significance

Agricultural and Cultural Resources

Scenic and Recreational Values

Consistent Uses and Existing Condition

Inconsistent Uses and Existing Condition

Exhibit A: Property and Legal Description

Exhibit B: Maps

1. Laramie Foothills Mountains to Plains Map
2. TNC legal access from Colorado
3. Roads Map
4. Photo Points and GPS locations

Exhibit C: Photographs

Conservation Easement Background Information

The Nature Conservancy acquired the Red Mountain Ranch-Wyoming as part of a larger conservation efforts known as the Mountains to Plains Project. This project is a partnership among the Conservancy, Larimer County, City of Fort Collins, Legacy Land Trust, Great Outdoors Colorado and private ranchers and will conserve over 55,000 acres of land for conservation.

The Conservancy currently owns the approximately 1,800-acre Red Mountain Ranch-Wyoming property, located in Laramie County, Wyoming. The legal description of the property is as follows:

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

Township 12 North, Range 69 West of the 6th P.M.

Section 18: All lying South of the Union Pacific Railroad Company Right-of-Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

Section 19: Lots 1, 2, 3 and 4 in Wyoming

Township 12 North, Range 70 West of the 6th P.M.

Section 12: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.

Section 13: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.

Section 23: Lots 1, 2, 3, 4, in Wyoming.

Section 24: Lots 1, 2, 3, 4, in Wyoming.

A more detailed survey legal description is included in Exhibit A.

The Conservancy, a District of Columbia non-profit corporation, plans to encumber the entire property with a conservation easement prior to the time of conveyance of the property to the City of Cheyenne (the "City"), a municipal corporation. The City, known as the Grantee, shall purchase the property from the Conservancy encumbered with the conservation easement.

The Property currently remains in a substantially undisturbed, natural state and has significant ecological and open-space values and provides significant relatively natural habitat for native plants and wildlife. The Property will contribute to the conservation of important significant relatively natural habitat for wildlife and plants, including particularly native foothills grasslands, mountain mahogany, skunkbush sumiac and rabbitbrush shrublands, elk, deer, antelope, nesting raptors, migratory and breeding birds and mammals (known as the Conservation Values). In addition, the property harbors scenic and agricultural values worthy of protection. The Property lies adjacent to Red Mountain Ranch – Colorado, a property owned and managed as open space by Larimer County, Colorado, and the opportunity exists for cooperative and compatible management across the state boundary line, facilitating landscape-scale conservation. All of these natural elements and ecological values are of great importance to the City and to the people of the State of Wyoming, and are worthy of conservation.

The State of Wyoming has recognized the importance of private efforts toward the preservation of natural systems in the state by enactment of Wyoming Statue 34-1-201-207, Uniform Conservation Easement Act. The Conservancy is a private organization organized to protect and conserve natural areas and ecologically significant land for scientific, charitable and educational purposes, and is a "qualified organization" within the provisions of Section 170(h) of the Internal Revenue Code of 1986, as amended (the "IRS Code"), qualified to acquire and hold conservation easements and meets the requirements of the IRS Code as a Sec. 501(c)(3) exempt organization. Thus the Conservancy, as owner of the Property, owns the affirmative rights to identify, preserve, and protect in perpetuity its open space character and its significant relatively natural features and values. The property is identified in the Laramie Foothills Conservation Plan as a vital wildlife connection between high-elevation public lands and predominantly private low-elevation grasslands.

It is the intention of the conservation easement to preserve and protect in perpetuity and, in the event of their degradation or destruction, to enhance and restore the open space, agricultural, and significant relatively natural features and values of the property. It is further the specific purpose of the Easement to conserve important habitat for wildlife; to protect rare or unique native plants currently known or later identified; and to conserve the diverse forest, meadow, and riparian vegetative communities and the wildlife inhabiting these communities. In achieving these purposes, it is the intent of the Easement to permit the continuation of such uses of the property as may be conducted consistent with the Conservation Values protected herein.

The Property shall be operated and managed in accordance with a cooperative land management plan prepared by Grantee, the Conservancy and Larimer County Parks and Open Lands (County), which plan shall be initially agreed upon by December 31, 2007 and shall be updated at least every five years (Cooperative

Plan). The Cooperative Plan shall include but not be limited to guidelines for appropriate land stewardship, recreational uses, and public access.

Prior to the completion of the Cooperative Plan, as defined above, the Conservancy solely shall develop an Interim Management Plan to guide land use on the Property until such time as the Cooperative Plan is completed (Interim Plan). If the Cooperative Plan is not completed by December 31, 2007, the Conservancy will update the Interim Plan and it shall continue to guide land use on the Property until a Cooperative Plan is completed by the Grantee, the Conservancy and the County.

This easement documentation report is produced to document the condition, consistent and inconsistent uses on the property at the time of this conveyance, and to describe the Laramie Foothills Site within which the property is located, and to identify biological and cultural significance of the property. The property is further described by the attached Exhibits (A-C).

Directions to the Property

The Conservancy has been granted an access easement from Larimer County for annual easement monitoring and enforcement. This access is from the Colorado side of the border through the adjacent Red Mountain Ranch-Colorado property. The Conservancy must notify the County prior to accessing the Property, except in emergency situations. Directions are as follows: 125 North to Buckeye Road (82 Rd) west (Rawhide Exit). After about 5.5 miles, 82 Rd comes to a "T" intersection with 15 Rd. Head north (right) to 84 Rd. Take 84 Rd. west to 19 Rd. Head south to 21 Rd. Follow 21 Rd to the junction of 23 Rd. After about 1 mile, turn left into Red Mountain Ranch – Colorado property. Follow dirt access road to Property. See Map 2 for access route across Colorado property.

The property can also be accessed from the Wyoming side of the border with permission from the City, owners of the adjacent parcel known as the Belvoir Ranch. Directions are as follows. Start at junction of N. US Highway 287 and County Road 37, drive approximately 9.8 miles to Larimer County, Colorado and Laramie County, Wyoming line, continue on the same county road now known as the Granite Canyon Road or Harriman Road for another 0.5 miles where you cross the railroad tracks at the Harriman Siding on the UP railroad line, continue on for another 5.3 miles when the gravel road will change to black top, immediately at that location a black-metal pipe gate and fence is located on the south side of the road, this being the access gate off of the Belvoir.

Ecological Site Description

The Property lies in the northeastern portion of the Laramie Foothills, a Nature Conservancy conservation site that contains one of the most extensive high-quality foothills ecosystems remaining along the Front Range of Colorado and harbors a diverse assemblage of globally and state-listed rare plants, high quality

natural plant communities, state-listed rare fish, federally threatened mammal sub-species and other species of interest (mammals, birds, insects).

The Laramie Foothills is a broad transition zone between the Colorado Piedmont, the western edge of the Great Plains, and the Southern Rocky Mountains. The site consists of the foothills along the eastern and southern flanks of the Laramie Mountains, which comprise the northern extension of the Front Range; extending north from Colorado into southern Wyoming. It is both a north-south transition between the Laramie Plains and the Colorado Piedmont, and an east-west transition between the Great Plains and the Rocky Mountains. Here, the east-west transition zone is the broadest and most gradual on the eastern slope of the Rocky Mountains north of Trinidad, Colorado. Furthermore, the site lies at the junction of two large ecoregions, the Southern Rocky Mountains and the Central Shortgrass Prairie. The overarching conservation theme of the Laramie Foothills site is to maintain this strategic and relatively undeveloped landscape connection between the Rocky Mountains and the High Plains.

Lying within a localized rain shadow, the eastern portion of the site lies on a bed of sedimentary rock; pink and orange sandstones capped by grey and white limestone and shale outcrops (see Photo # 15). Extensive mixed-grass prairie grasslands cover rolling hills, and break away and blend into foothills shrublands on uplifted north-south formations of craggy ridges and hogbacks. Scattered Ponderosa pine woodlands are found on rocky outcrops and mesa tops. Abruptly the country grades into igneous formations; silver plume granite dominates the western portion of the site. Foothills shrublands cover the lower elevations and are dissected by winding river canyon systems. Ponderosa pine woodlands grade into the higher elevation forested systems reaching westward to the continental divide.

This is the North Fork of the Cache la Poudre Watershed. A broad, low elevation catchment; the eastern portion of which is predominantly spring fed with low lying seeps and wetlands and drainages. The western portion receives its precipitation predominantly from snow melt off of the continental divide.

The Red Mountain Ranch – Wyoming, lies within the Central Shortgrass Prairie portion of the Laramie Foothills Site. The property can be described as containing two pastures; the northern approximately 1,000 acres is known as the Rim Pasture and the southern approximately 800 acres is called the Big Hole. The Rim Pasture is dominated by low rolling hills that support good to excellent examples of mixed grass prairie running west from the eastern boundary. The western third of the Rim pasture grades from grasslands into foothills shrublands as the topography becomes more hilly and uplifted bedrock breaks the surface forming colorful sedimentary hogbacks; red sandstone with grey limestone and shale capping. These shrublands are dominated by good examples of Mountain mahogany shrublands at the higher elevations and on the steep slopes and rabbitbrush, snowberry and skunkbush sumac shrublands are found in the draws

and drainages. The Big Hole dominates the southern portion of the property. Here the rolling high plains prairie drops sharply off forming the head of a large depression rimmed on the east and west by dramatic north-south running hogbacks; mesas jut up out of the bottom. Ponderosa pine, Rocky Mountain juniper, and foothills shrublands, mostly mountain mahogany, cover the rugged slopes and tops of hogbacks and mesas. The occasional pinon pine, limber pine and Douglas fir can also be found. The deeper soils of the basin floor are once again mixed-grass prairie and the draws are lined with diverse foothills shrublands; rabbitbrush, skunkbush sumac, and mountain mahogany. Two natural springs are found on the entire property and they support wetland species and provide important natural watering sources for wildlife. All of these communities provide unfragmented habitat for species such as elk, mule deer, pronghorn, nesting raptors, a diversity of migratory and breeding songbirds and mammals.

Agricultural and Cultural Resources

There is a strong economic and cultural tradition of agriculture in Larimer County, Colorado and Laramie County, Wyoming. Much of the private land within the Laramie Foothills is currently utilized for agricultural production, primarily rangeland cattle grazing and hay production. A goal of the Laramie Foothills partners is to ensure that the site plays a fundamental role in sustaining compatible agriculture and thus that the natural heritage on the Front Range of Colorado and Wyoming is preserved. This is increasingly threatened by fast paced ex-urban population growth and development.

The Laramie Foothills also contains significant cultural resources including ruts from the Overland Trail, signature rocks, and stage stations. The Overland Trail was the historic wagon route that connected the Oregon Trail with the South Platte River drainage and the Santa Fe Trail. Pre-dating this history of course is a rich Native American and pre-history which has been protected by the private land tenure in the site. Of particular interest, is the Lindenmeier Site, which is located on the adjacent Soapstone Ranch and has been described as one of the most important early-human sites in North America. The site was declared a National Historical Landmark in 1984. Other important features include teepee rings, buffalo jumps and wallows, burial sites, and caches.

A detailed assessment of the cultural and historic values is planned for Red Mountain Ranch-Wyoming. Thus far numerous teepee rings are found along the canyon rim of the Big Hole, an agate mine is known to have been located and operated near spring #13, and remnants of old structures associated with the historic cattle ranching operation remain on the property.

Scenic and Recreational Values

The low density and private agricultural land tenure of a large portion of the Laramie Foothills has resulted in large intact healthy landscapes that provide functional working landscapes, high quality and undisturbed habitat for wildlife,

and expansive vistas. These scenic values become more rare and valuable as landscapes are built out; like those along the rest of Colorado's and parts of Wyoming's Front Range.

Red Mountain Ranch-Wyoming and the other neighboring protected lands, including adjacent public land held by Larimer County (Red Mountain Ranch-Colorado), the City of Ft. Collins (Soapstone Ranch), and the City of Cheyenne (Belvoir Ranch) create an unfragmented viewshed reminiscent of pre-settlement conditions.

Numerous recreational opportunities exist or are planned in the Laramie Foothills on public lands. This landscape if well managed will provide opportunities for land managers to exemplify the compatibility of both recreational and other land management activities, such as grazing. The historic agricultural land use has always meant that human impacts across this site have been minimal and localized. Therefore any change in human use will be significant and could have impacts on biotic and abiotic factors. It will be important for recreational opportunities to be well planned and managed with the goals of protecting conservation values and maintaining functional working landscapes in mind. Passive recreational opportunities such as hiking, wildlife viewing and horse back riding could be used to connect people to place and build support for future conservation and stewardship. Also involving citizens in ongoing land management activities provides a unique opportunity for people to experience a place and give back a little of themselves at the same time. The use of existing two-tracks for access is a simply way to minimize potential negative impacts.

The City plans to provide recreational opportunities on Red Mountain Ranch-Wyoming and the adjacent Belvoir Ranch. An Interim Plan provides for limited guided public use until December, 2007 when it is anticipated that the City, County and Conservancy shall have developed a Cooperative Plan that shall protect the conservation values and will also maintain land stewardship activities and recreational activities.

Current Conditions

This section is a series of paired statements, beginning with provisions in the easement then comparing each provision with what was observed during field work conducted for this report. This section provides a concise review of the current condition of the property as it relates to the exact conservation easement consistent and inconsistent uses.

A. Consistent Uses and Existing Condition

The following uses and practices by Grantee, though not an exhaustive recital of consistent uses and practices, are consistent with the Easement. Certain of these consistent uses and practices are identified as being subject to specified conditions or to the requirement of and procedures for prior approval by the Conservancy and procedures for such prior approval are provided below. The remainder of these consistent uses shall not be precluded, prevented, or limited by the Easement.

The property was visited most recently by the Conservancy and the City on June 21st, 2005, and the attached maps and photographs illustrate the current condition.

A. Education Programs.

Easement Provision: Educational programs, natural history interpretation, and scientific research, provided such activities are conducted according to the Interim Plan, as subsequently replaced by the Cooperative Plan (the "Plan"), and in a manner that does not have adverse impacts on the Conservation Values.

Existing Condition: Activities thus far have had no detrimental impact on the Conservation Values. Prior to 2004 no education programs were conducted on the property. Occasionally the landowner would invite local experts to conduct surveys or scientific research on the property. Since 2004 a very limited number of trips have been conducted by either the City, the County or the Conservancy for the purpose of either surveying and documenting the condition, conservation and other values on the property, planning or conducting ongoing land management, or interpreting the natural and human history of the site to a small guided groups of targeted community members (e.g., politicians, funders, staff, media). Formal access agreements have facilitated this use. Upon execution of the conveyance of the property to the City, new access agreements will be in place between these parties and the Interim Plan will control these activities. All vehicular use has been limited to the existing two-tracks on the property.

B. Recreational Activities.

Easement Provision: Non-commercial, non-motorized passive recreational activities, such as horseback riding, hiking, cross-country skiing, bicycle riding, and other similar low-impact recreational uses, to be enjoyed by the Grantee and the public, in accordance with the Plan. Fishing and hunting are likewise permitted, so long as they are undertaken in compliance with applicable state and federal laws

and regulations and pursued in a manner that does not substantially diminish or impair the Conservation Values.

Existing Condition: Activities thus far have had no detrimental impact on the Conservation Values. Prior to 2004 no recreational activities were conducted on the property, except that occasionally invited by the private landowner to very small groups of family, friends and associates. These activities have been limited to hiking, horseback riding and hunting. Since 2004 a very limited number of guided field trips have been conducted by either City, County or Conservancy staff on the property. Formal access agreements have facilitated these activities. Upon execution of the conveyance of the property to the City new access agreements will be in place between these parties and the Interim Plan will control these activities: All vehicular, pedestrian and equestrian use has been limited to the existing two-tracks on the property. Starting in summer of 2005 a maximum of 6-8 trips per party per year has been allowed on the property.

C. Roads.

Easement Provision: Maintenance and repair of existing roads, as documented in the Report, provided no roads shall be paved or oiled or have calcium carbonate applied or otherwise be improved with chemical coatings or other non-natural materials.

Existing Condition: All roads on the property are of native geology and are characterized as two-tracks ranging from approximately 10 to 20 feet wide. Map 3 shows road locations-indicated by red dashed lines. All roads above the Big Hole rim are well vegetated, predominantly by native species along the sides and down the center strip (see Photo # 12). The road below the rim, in the Big Hole, is the same except the center strip a partially vegetated (see Photo #18). It appears that these roads were historically created by use alone, except for the steep part of the road rising up to the big hole rim which was probably bladed in to the cliff line. The amount of historic use has required little ongoing active maintenance.

D. Temporary Viewing Area.

Easement Provision: The development of one small, unpaved, temporary stopping site to accommodate limited guided public access as specified in the Plan, provided (i) the area shall not be paved or oiled or have calcium carbonate applied or otherwise be improved with chemical coatings or other non-natural materials, (ii) the area shall be restored with native vegetation after the guided public access use is terminated, and (iii) the area shall not be located directly along the rim of the canyon.

Existing Condition: No viewing area currently exists on the property.

E. Motorized Vehicular Access.

Easement Provision: Motorized vehicular access on existing roads, as documented in the Report, for property maintenance, management, patrol, and emergency.

services, by the Grantee and/or its personal representatives and assigns. Limited off road use by motorized vehicles is permitted only for weed control, prescribed burns for ecological purposes, and for emergency purposes, provided impacts to the Conservation Values are minimized. The Easement expressly prohibits public vehicular access.

Existing Condition: All vehicular use has been limited to the existing roads on the property except for activities associated with the ongoing agricultural operations whereby off road use is required to maintain or repair fences, stock tanks or springs or to spray non-native weed species. Off road use has been kept to a minimum and hence no sign of overuse was observed on the property. In fact vehicular use on existing roads has also been minimal as indicated by the vegetation along the edges and in the center strip.

F. Trails.

Easement Provision: Construction of unpaved trails associated with public non-motorized recreation, provided such trails are located and constructed according to the Plan.

Existing Condition: No trails currently exist on the property.

G. Signage.

Easement Provision: Installation of small directional and interpretive signage along the existing roads, as documented in the Report, provided no sign is lighted.

Existing Condition: No signs currently exist on the property.

H. Grazing.

Easement Provision: Grazing and pasturing horses, cattle, mules, sheep, and llamas, provided that range conditions shall be maintained at, or improved from, those documented in the Report. Grazing of other livestock species shall be subject to prior approval by the Conservancy.

Existing Condition: Historically the property has been grazed by range cattle and sheep. The Property is not currently grazed by the owner, however because there is no fence line separating the property on the Colorado-Wyoming line, cattle do sometimes travel up from Colorado and graze or water temporarily on the property. There are no signs of overgrazing on the property. The native grasslands (see Photos # 2-4, 10, 11-13, 18, 24-25) and shrublands (see Photos # 5-8, 15, 19-20, 21) are in good to excellent condition. A diversity of native species is observed, the species appear to be reproductive and healthy producing flowers and seed, there is no over accumulation of litter, and no abnormal extent of bare ground. Few non-native plant species occur and those that do are limited to small isolated patches. Dalmatian toadflax however in the shrublands if not managed may expand and reduce the health and condition of that native communities in the future. A few standing dead junipers and Ponderosa pines were observed on the slopes above

the Big Hole. These are probably due to fire or disease and are probably typical and expected in this landscape at this current extent. The wetlands (see Photos # 9, 19-20) associated with the springs are in good condition. Localized non-native species are found at each mixed with native species. Ongoing management should control the spread of these non-native species.

I. Fencing.

Easement Provision: Maintenance, repair, and, if destroyed, reconstruction of existing fencing, as documented in the Report, and the construction of new fences; provided that boundary or pasture-division fences shall not unduly restrict or exclude wildlife use of the Property.

Existing Condition: The property is not entirely fenced. A 4-strand barbed wire fence with metal and wooden posts marks approximately the northern portion of the western property line (see Photos # 1 & 2). This fence ends as the topography drops off steeply to the south into the hogback/shrubland country. A 6-strand barbed wire fence with metal and wooden posts marks the northern boundary running between the property boundary and the UP right of way and then the along the adjacent Belvoir Ranch boundary (see Photos 22 & 23). The eastern fence line is a 7-strand barbed wire and or barbed wire/sheep wire fence with metal and wooden posts (see Photo # 24). The remaining boundary of the property remains unfenced. An internal 4-strand barbed wire pasture fence separates the property into a northern rim pasture and southern big hole pasture (indicated by the straight line seen on Map 3). This fence ties into the rough topography and therefore does not connect completely from one side of the property to the other.

J. Management of Noxious Weeds and Pests.

Easement Provision. Use of agricultural chemicals for the following purposes and under the following conditions:

1. For the control of noxious weeds, as required by Wyoming state law, and for the control of other invasive exotic plant species; provided that chemical herbicides may be used only in those amounts and with a frequency of application that constitute the minimum necessary for control; and that the herbicide is not applied by aerial spraying.
2. For the control of agricultural or forest pests, subject to prior approval by the Conservancy.

Existing Condition: Small isolated patches of non-native plant species were observed on the property including Canada thistle, wild licorice, Dalmatian toadflax, houndstongue, Jim Hill mustard, and common mullein. Dalmatian toadflax may be starting to spread on the property, especially in the mountain mahogany shrublands in the western part of the property. Large expanses of the property appear to be weed free. Historically the landowner has selectively sprayed or used grazing to control all of these species except for Dalmatian toadflax which has newly arrived.

The previous owner also sprayed a native species, larkspur, which contains toxins that are a threat to domestic cattle. No aerial spraying nor other chemical pest control has been known to have been used on the property.

K. Biological Control Agents.

Easement Provision: Use of biological weed and insect control agents, subject to prior approval by the Conservancy.

Existing Condition: None are known to have been used on the property.

L. Timber Harvest.

Easement Provision: The selective harvesting of timber only for the following purposes: controlling forest disease; protecting persons or property from the hazards of falling trees or branches or wildfire; providing firewood for domestic use on the Property; and enhancing wildlife habitat. These conditions apply to both living and standing dead trees.

Existing Condition: No timber harvest has been observed or known to have occurred on the property, except perhaps for the historic use of juniper for fence posts.

M. Water Rights.

Easement Provision: Grantee shall have the right to continue the historic use of the Water Rights on the Property (as described in the Report) and to maintain, repair, and if destroyed, reconstruct any existing facilities related to the Water Rights (such as ditches, wells and reservoirs) unless the Conservation Values of the Property would be adversely impacted thereby, as determined by the Conservancy in its sole judgment. Grantor's use of the Water Rights on the Property is subject to the reservation recorded in Laramie County at Reception # 40689 whereby Larimer County reserves to itself and its assigns all rights to use of the existing supply of water from Spring #19, as may be permitted by law, serving an existing stock tank on the County's adjacent property including the reasonable right of entry for the County to inspect the spring, maintain existing structures for the spring and delivery of water, provided that the County will not develop the spring to increase the historic water flow.

Existing Condition: There are two adjudicated springs on the property; known as spring #13 (see Photo 7; GPS 004) and spring #19 (see Photo 20; GPS 013). Both springs are developed and provide water for domestic livestock; a metal tank is located at spring #13 and a metal tank is located on the Colorado side of the border below spring # 19 (see Photo 19). Spring #19 is fenced out. Both springs are also accessible to wildlife. Three other stock tanks exist on the property (see Photo # 16: depicting the eastern most). These are filled by pumping water off of the adjacent Belvoir Ranch at a location north of Interstate 80 some 5-6 miles away. These tanks are filled by below ground black plastic pipe and are drained to protect

them from freezing when not in use. Overflow from these tanks has created an adjacent small wet area.

Unlawful Activities.

Easement Provision: Any activity or use on the Property that violates any applicable federal, state, county, or local law, rule, ordinance, or regulation is prohibited.

Existing Condition: There are no activities or use on the Property that violates any applicable federal, state, county, or local law, rule, ordinance, or regulation.

B. Inconsistent Uses and Existing Condition

The following uses and practices on the Property shall be prohibited, except as otherwise specifically provided for the Consistent Uses of the Easement. The property was visited most recently by the Conservancy and the City on June 21st, 2005, and the attached maps and photographs illustrate the current condition.

A. Toxic or Hazardous Materials.

Easement Provision: The dumping or other disposal, or other than in the normal course of ranch use, the storage of toxic and/or hazardous materials.

Existing Condition: No toxic or hazardous materials were observed on the property.

B. Non-compostable Refuse.

Easement Provision: Dumping or other disposal of non-compostable refuse, wildlife-attracting materials, or any other material which could reasonably be considered debris, including the establishment of a landfill.

Existing Condition: No non-compostable refuse, wildlife attracting materials or debris was observed on the property.

C. Conservation Values.

Easement Provision: The change, disturbance, alteration, or impairment of the Conservation Values.

Existing Condition: Conservation values exist on the property and are described and documented herein.

D. Septic Effluent, Sewage, Animal Waste.

Easement Provision: The application, storage or placement on the Property of domestic septic effluent, municipal, commercial or industrial sewage sludge, or animal waste created from intensive livestock operations on other properties.

Existing Condition: Septic effluent, sewage and animal waste have not been applied, stored or placed on the Property.

E. Non-native Plant Species.

Easement Provision: Conversion of native vegetation to exotic cover species or the introduction of non-native plant species; farming, plowing or any type of cultivation is prohibited.

Existing Condition: There is no evidence of conversion of native vegetation to exotic cover species. Non-native plant species exist in small patches on the property but have not been purposefully introduced. There is no evidence of farming, plowing or other cultivation.

F. Non-native Animal Species.

Easement Provision: Introduction or release of nonnative animal species.

Existing Condition: There is no evidence of introduction or release of non-native animal species on the property.

G. Livestock Feedlot.

Easement Provision: Establishment and operation of a livestock feedlot (which shall be defined for purposes of this Easement as a permanently constructed confined area or facility within which the land is not grazed or cropped annually for purposes of engaging in the business of the reception and feeding of livestock for hire) or any wild game farming or ranching facilities.

Existing Condition: No livestock feedlot was observed on the property.

H. Mineral Exploration and Extraction.

Easement Provision: Filling, excavating, dredging, mining, drilling, and the exploration for or extraction of minerals, hydrocarbons, soils, sand, gravel, rock, or other materials on or below the surface of the Property, except for purposes specifically permitted in this Easement.

Existing Condition: There was no evidence of filling, excavating, dredging, mining, drilling, and the exploration for or extraction of minerals, hydrocarbons, soils, sand, gravel, rock, or other materials on or below the surface of the property.

I. Sub-Division.

Easement Provision: Division, subdivision, or de facto subdivision of the Property.

Existing Condition: The property is unfragmented and not subdivided.

J. Buildings and Utilities.

Easement Provision: Construction or placement of any buildings, temporary living quarters of any sort, mobile homes, signs, billboards or other advertising materials, utility towers, wind powered electricity generators, or other structures.

Existing Condition: There was no observation of buildings, temporary living quarters of any sort, mobile homes, signs, billboards or other advertising materials, utility towers, wind powered electricity generators, or other structures on the property; except for the remains of a historic single windmill (see Photo 22, GPS location 015).

K. Roads and Trails.

Easement Provision: Construction of roads or vehicle trails.

Existing Condition: No observation of newly constructed roads and trails.

L. Road and Off Road Vehicle Use.

Easement Provision: Use of snowmobiles, all-terrain vehicles, motorcycles, or other motorized vehicles on or off roads, trails or travelways.

Existing Condition: No evidence of off road motorized vehicle use. A minimal amount of off road use has occurred on the property for the purposes as allowed to maintain the agricultural operations; fence, water and selectively spray weeds. There was no physical evidence however of this use resulting in negative impacts to the conservation values.

M. Removal or Destruction of Native Vegetation.

Easement Provision: Cutting, removing, or destruction of native vegetation, except by grazing, haying, non-commercial harvest of timber, herbicide application, or approved land management techniques such as periodic burning that are outlined in the Plan.

Existing Condition: No evidence of cutting, removal or destruction of native vegetation was observed on the property.

N. Animal Trapping.

Easement Provision: Animal trapping for purposes other than control of predatory animals which demonstrably have caused damage to property. Trapping methods employed must be selective for the target species and administered as humanely as is possible.

Existing Condition: No animal trapping has occurred on the property.

O. Shooting Ranges.

Easement Provision: The establishment or operation of any shooting ranges.

Existing Condition: Shooting ranges do not exist on the property.

P. Chemical Applications.

Easement Provision: Application of biocides, herbicides, defoliants, chemical fertilizers, or other chemicals.

Existing Condition: There has not been use of biocides, defoliants, chemical fertilizers or other chemicals on the property, except for the selective use of herbicides to control non-native noxious weeds and larkspur.

Q. Changing of Topography.

Easement Provision: Changing the topography of the Property by placing on it any soil, dredging spoils, land fill, or other material, except as necessary to conduct authorized road and trail construction activities.

Existing Condition: The topography of the Property has not been changed by placing of any soil, dredging spoils, land fill, or other materials on it.

R. Commercial Activities.

Easement Provision: Establishment of any commercial activity, including but not limited to operating a commercial lodging, outfitting, guiding or guest ranch facility, except for agricultural, recreation, and scientific and public visitation activities permitted herein, including guided horseback riding. Any commercial uses which are allowed shall be conducted in a manner that is consistent with § 170(h) of the United States Internal Revenue Code and the Treasury Regulations adopted pursuant thereto, shall be consistent with the purposes of the Easement, and shall not adversely affect the Property's Conservation Values.

Existing Condition: No commercial activities have been conducted on the property.

S. Water Resources.

Easement Provision: Any new manipulation, diversion, or other alteration of natural water courses, wetlands, or other natural bodies of water, any new pumping of groundwater whether tributary or not, any new practice that degrades or destabilizes their natural banks or shorelines, or any other new development of water resources. Grantee shall not develop any conditional water rights for use on the Property.

Existing Condition: There was no observation of any new manipulation, diversion, or other alteration of natural water courses, wetlands, or other natural bodies of water, nor any evidence of new pumping of groundwater, nor any new practice that degrades or destabilizes their natural banks or shorelines, nor any other new development of water resources on the property.

T. Water Rights.

Easement Provision: The Water Rights may never (i) be changed to or used for municipal, industrial, commercial uses, or other new uses, (ii) be changed for use other than on the Property, (iii) be sold, leased, encumbered separately from the Property or otherwise legally separated from the Property, or (iv) have their points of diversion, or their type or place of use within the Property changed, except after a written determination by the Conservancy in its sole judgment that such changes do not impair the Conservation Values of the Property. No loss of any or all of the Water Rights through injury or abandonment, shall be considered a loss, severance or other transfer of the Water Rights from the Property for federal or state tax or other purposes.

Existing Condition: The current water rights have not been used on the property for any municipal, industrial, commercial or new uses. The water rights remain used on the property for agricultural purposes as they are adjudicated. The water rights have not been changed, leased, nor sold, nor have the points of diversion been changed such that they impair conservation values on the property.

Exhibit A

Property Description

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

Township 12 North, Range 69 West of the 6th P.M.

Section 18: All lying South of the Union Pacific Railroad Company Right-of-Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

Section 19: Lots 1, 2, 3 and 4 in Wyoming

Township 12 North, Range 70 West of the 6th P.M.

Section 12: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.

Section 13: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.

Section 23: Lots 1, 2, 3, 4, in Wyoming.

Section 24: Lots 1, 2, 3, 4, in Wyoming.

TOGETHER WITH all corrals, fences, gates, cattle handling facilities, water tanks, windmills, scales, buildings, and other improvements owned by Seller now located on said property, including all fixtures of a permanent nature;

TOGETHER WITH all rights, title, and interest of Seller in and to easements, rights-of-way, and rights to same belonging and inuring to the benefit of the property;

TOGETHER WITH one hundred percent (100%) of all rights, title, and interest of Seller in and to all mineral rights or reversionary mineral rights owned by Seller in connection with the property; AND

TOGETHER WITH all leasehold interests owned by Seller in connection with the property.

Also known by the following surveyed legal description:

LEGAL DESCRIPTION OF PARCEL 1:

A PORTION OF SECTIONS 18 AND 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., AND A PORTION OF SECTIONS 12, 13, 23, AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., ALL IN THE COUNTY OF LARAMIE, STATE OF WYOMING BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

CONSIDERING THE COLORADO AND WYOMING STATE LINE BETWEEN MILE POST 59 AND MILE POST 61 TO BEAR NORTH 89°59'29" EAST ALSO BEING THE SOUTH LINE OF LARAMIE COUNTY, WYOMING AND THE NORTH LINE OF LARIMER COUNTY, COLORADO WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO; BEGINNING AT A POINT ON THE

COLORADO AND WYOMING STATE LINE, FROM WHICH MILE POST 56 BEARS SOUTH 89°56'32" EAST, A DISTANCE OF 11,274.92 FEET; THENCE NORTH 09°46'12" EAST, A DISTANCE OF 1053.43 FEET; THENCE NORTH 44°38'47" WEST, A DISTANCE OF 826.47 FEET; THENCE NORTH 64°05'39" WEST, A DISTANCE OF 2456.63 FEET; THENCE NORTH 44°50'48" WEST, A DISTANCE OF 3565.62 FEET; THENCE NORTH 56°57'37" WEST, A DISTANCE OF 2447.93 FEET TO A POINT ON THE NORTH LINE OF SECTION 13, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M.; FROM WHICH THE NORTHWEST CORNER OF SAID SECTION 13 BEARS NORTH 89°10'56" WEST, A DISTANCE OF 738.78 FEET; THENCE NORTH 00°00'23" EAST, PARALLEL WITH THE EAST LINE OF THE SOUTHWEST 1/4 OF SECTION 12, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 812.53 FEET TO THE SOUTH RIGHT-OF-WAY LINE OF THE UNION PACIFIC RAILROAD; THENCE NORTH 63°33'54" WEST, PARALLEL WITH AND 200 FEET SOUTHERLY FROM THE CENTERLINE OF THE UNION PACIFIC RAILROAD, A DISTANCE OF 208.82 FEET TO THE BEGINNING OF A CURVE, CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 3525.66 FEET AND A CENTRAL ANGLE OF 09°44'24", AND BEING SUBTENDED BY A CHORD WHICH BEARS NORTH 67°09'42" WEST, A DISTANCE OF 598.62 FEET; THENCE NORTHWESTERLY AND WESTERLY ALONG SAID CURVE, A DISTANCE OF 599.34 FEET TO A POINT OF CUSP ON THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 12; THENCE SOUTH 00°00'23" WEST, ALONG THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 12, A DISTANCE OF 1127.29 FEET TO THE NORTHWEST CORNER OF SAID SECTION 13; THENCE SOUTH 00°26'17" WEST, ALONG THE WEST LINE OF THE NORTHWEST 1/4 OF SAID SECTION 13, A DISTANCE OF 2621.78 FEET TO THE WEST 1/4 CORNER OF SAID SECTION 13; THENCE SOUTH 00°26'26" WEST, ALONG THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 13, A DISTANCE OF 2621.53 FEET TO THE SOUTHWEST CORNER OF SAID SECTION 13; THENCE NORTH 89°51'46" WEST, ALONG THE NORTH LINE OF THE LOTS 1 AND 2 OF SECTION 23, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 2713.37 FEET TO THE NORTH 1/4 CORNER OF SAID SECTION 23; THENCE SOUTH 89°52'05" WEST, ALONG THE NORTH LINE OF LOTS 3 AND 4 OF SAID SECTION 23, A DISTANCE OF 2523.67 FEET TO THE NORTHWEST CORNER OF SAID SECTION 23; THENCE SOUTH 02°48'19" WEST, ALONG THE WEST LINE OF LOT 4 OF SAID SECTION 23, A DISTANCE OF 1328.56 FEET TO THE CLOSING CORNER FOR SECTIONS 22 AND 23, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., SAID CORNER BEING ON THE COLORADO AND WYOMING STATE LINE; FROM WHICH MILE POST 61 BEARS SOUTH 89°59'29" WEST, A DISTANCE OF 1763.52 FEET; THENCE NORTH 89°59'29" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 5304.41 FEET TO THE CLOSING CORNER BETWEEN SECTIONS 23 AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., THENCE CONTINUING NORTH 89°59'29" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 3454.64 FEET TO MILE POST 59; THENCE SOUTH 89°56'32" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 1908.62 FEET TO THE CLOSING CORNER BETWEEN SECTIONS 19 AND 24, TOWNSHIP 12 NORTH, RANGES 69 AND 70 WEST OF THE 6TH P.M.; THENCE CONTINUING SOUTH 89°56'32" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 2591.69 FEET TO THE TRUE POINT OF BEGINNING. COUNTY OF LARAMIE, STATE OF WYOMING. CONTAINING 923.74 ACRES, MORE OR LESS.

LEGAL DESCRIPTION OF PARCEL 2:

A PORTION OF SECTIONS 18 AND 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., AND A PORTION OF SECTIONS 12, 13, 23, AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., ALL IN THE COUNTY OF LARAMIE, STATE OF WYOMING BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

CONSIDERING THE COLORADO AND WYOMING STATE LINE BETWEEN MILE POST 59 AND MILE POST 61 TO BEAR NORTH $89^{\circ}59'29''$ EAST ALSO BEING THE SOUTH LINE OF LARAMIE COUNTY, WYOMING AND THE NORTH LINE OF LARIMER COUNTY, COLORADO WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO; BEGINNING AT A POINT ON THE COLORADO AND WYOMING STATE LINE, FROM WHICH MILE POST 56 BEARS SOUTH $89^{\circ}56'32''$ EAST, A DISTANCE OF 11,274.92 FEET; THENCE NORTH $09^{\circ}46'12''$ EAST, A DISTANCE OF 1053.43 FEET; THENCE NORTH $44^{\circ}38'47''$ WEST, A DISTANCE OF 826.47 FEET; THENCE NORTH $64^{\circ}05'39''$ WEST, A DISTANCE OF 2456.63 FEET; THENCE NORTH $44^{\circ}50'48''$ WEST, A DISTANCE OF 3565.62 FEET; THENCE NORTH $56^{\circ}57'37''$ WEST, A DISTANCE OF 2447.93 FEET TO A POINT ON THE NORTH LINE OF SECTION 13, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M.; FROM WHICH THE NORTHWEST CORNER OF SAID SECTION 13 BEARS NORTH $89^{\circ}10'56''$ WEST, A DISTANCE OF 738.78 FEET; THENCE NORTH $00^{\circ}00'23''$ EAST, PARALLEL WITH THE EAST LINE OF SECTION 12, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 812.53 FEET TO THE SOUTH RIGHT-OF-WAY LINE OF THE UNION PACIFIC RAILROAD; THENCE SOUTH $63^{\circ}33'54''$ EAST, PARALLEL WITH AND 200 FEET SOUTHERLY FROM THE CENTERLINE OF THE MAIN TRACK OF THE UNION PACIFIC RAILROAD, A DISTANCE OF 147.67 FEET TO THE BEGINNING OF A CURVE, CONCAVE TO THE NORTH, HAVING A RADIUS OF 3305.55 FEET, AND A CENTRAL ANGLE OF $27^{\circ}58'53''$, AND BEING SUBTENDED BY A CHORD WHICH BEARS SOUTH $75^{\circ}28'29''$ EAST, A DISTANCE OF 1598.33 FEET; THENCE SOUTHEASTERLY AND EASTERLY ALONG SAID CURVE, AND ALONG SAID RIGHT-OF-WAY LINE, A DISTANCE OF 1614.33 FEET; THENCE SOUTH $87^{\circ}29'29''$ EAST, ALONG SAID RIGHT-OF-WAY LINE, A DISTANCE OF 2872.76 FEET TO THE EAST LINE OF SAID SECTION 12; THENCE SOUTH $00^{\circ}28'50''$ EAST, ALONG THE EAST LINE OF THE SOUTHEAST 1/4 OF SAID SECTION 12, A DISTANCE OF 317.79 FEET TO THE NORTHWEST CORNER OF SECTION 18, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M.; THENCE NORTH $89^{\circ}30'51''$ EAST, ALONG THE NORTH LINE OF THE NORTHWEST 1/4 OF SAID SECTION 18, A DISTANCE OF 2540.90 FEET TO THE NORTH 1/4 CORNER OF SAID SECTION 18; THENCE SOUTH $89^{\circ}51'18''$ EAST, ALONG THE NORTH LINE OF THE NORTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2631.47 FEET TO THE NORTHEAST CORNER OF SAID SECTION 18; THENCE SOUTH $03^{\circ}40'06''$ EAST, ALONG THE EAST LINE OF THE NORTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2667.75 FEET TO THE EAST 1/4 CORNER OF SAID SECTION 18; THENCE SOUTH $00^{\circ}57'52''$ EAST, ALONG THE EAST LINE OF THE SOUTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2588.84 FEET TO THE SOUTHEAST CORNER OF SAID SECTION 18; THENCE SOUTH $00^{\circ}24'42''$ EAST, ALONG THE EAST LINE OF LOT 1 OF SAID SECTION 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., A DISTANCE OF 1231.46 FEET TO THE COLORADO AND WYOMING STATE LINE; FROM WHICH MILE POST 56 BEARS SOUTH $89^{\circ}56'32''$ EAST, A DISTANCE OF 8505.72 FEET; THENCE NORTH $89^{\circ}56'32''$ WEST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 2769.20 FEET TO THE TRUE POINT OF BEGINNING.

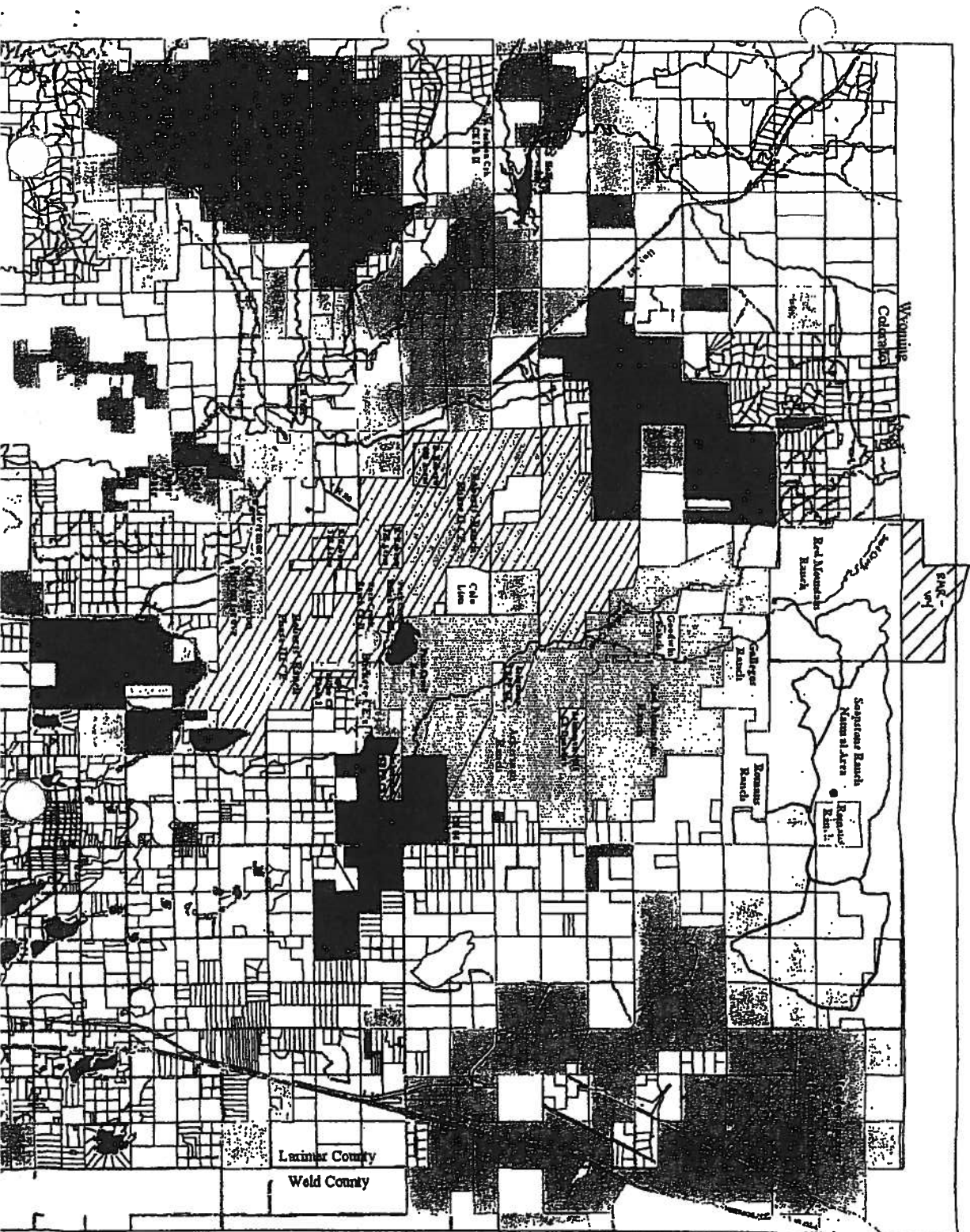
COUNTY OF LARAMIE, STATE OF WYOMING. CONTAINING 884.18 ACRES, MORE OR LESS.

Exhibit B

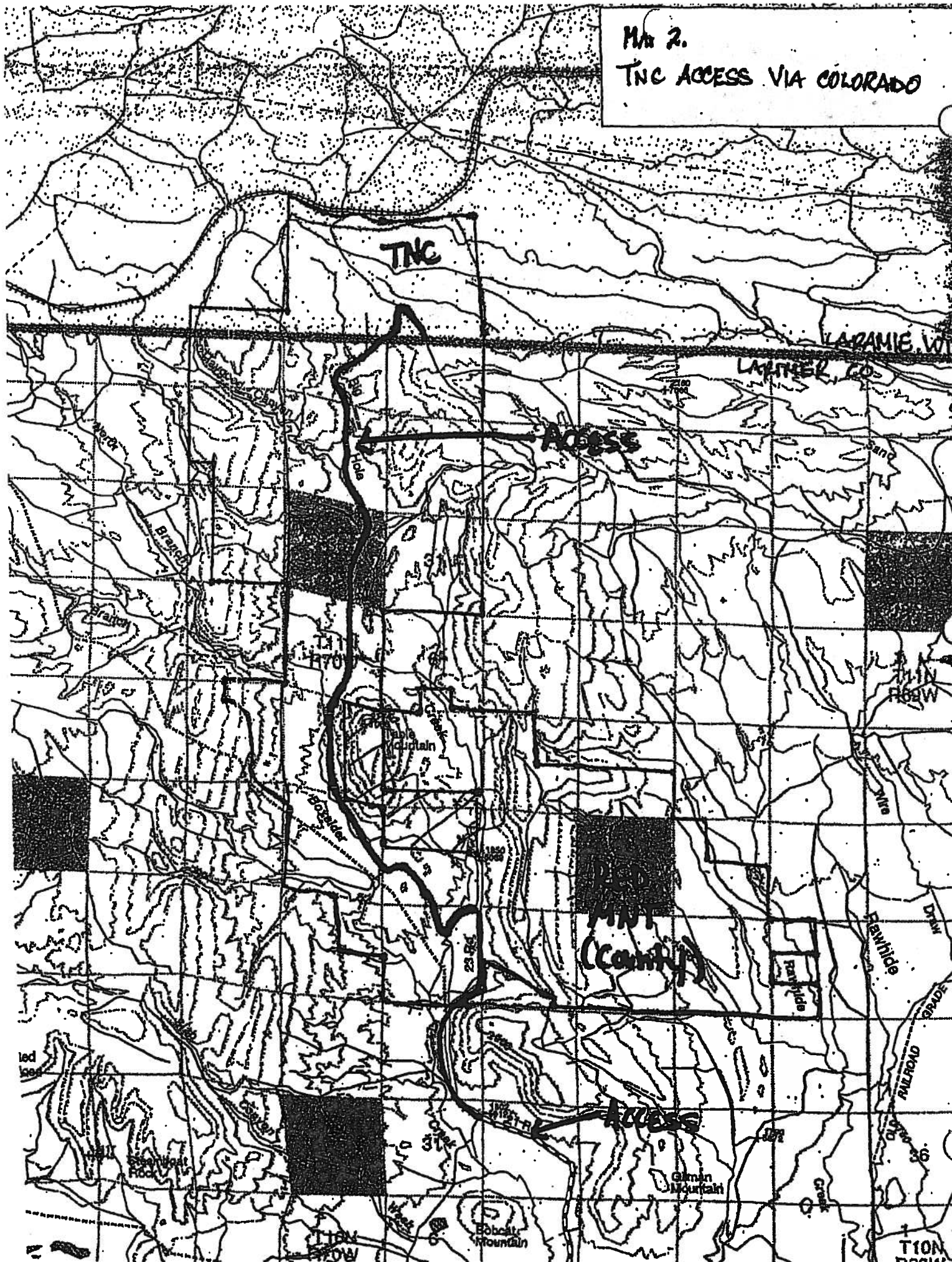
Maps

Map 1.
Laramie Foothills:
Mountains to Plains Project

-  Fee Simple Acquisitions
-  Future Conservation Easements
-  Future Conservation Easement Trade Lands
-  Future Phase II Land Protection Parcels
-  FWE-WY a EEO mountain ranch-wyoming
-  approx. property boundary
- Other Protected Lands**
 -  Protected Open Space
 -  Game Warden Easements
 -  USFS
 -  State Land Board
 -  Division of Wildlife
- Other Large Parcels**
 -  Meadow Springs Ranch
 -  Private Ranches
- Other Features**
 -  Railroads
 -  Roads
 -  Rivers
 -  Open Water
 -  Landowner Archeologic Site
 -  Proposed Future Trails
 -  Proposed Future Trailheads
 -  Parcel



TNC ACCESS VIA COLORADO



MAP 3 : ROAD
Map of the Property



Map created with TOPO!® ©2013 National Geographic (www.nationalgeographic.com/topo)



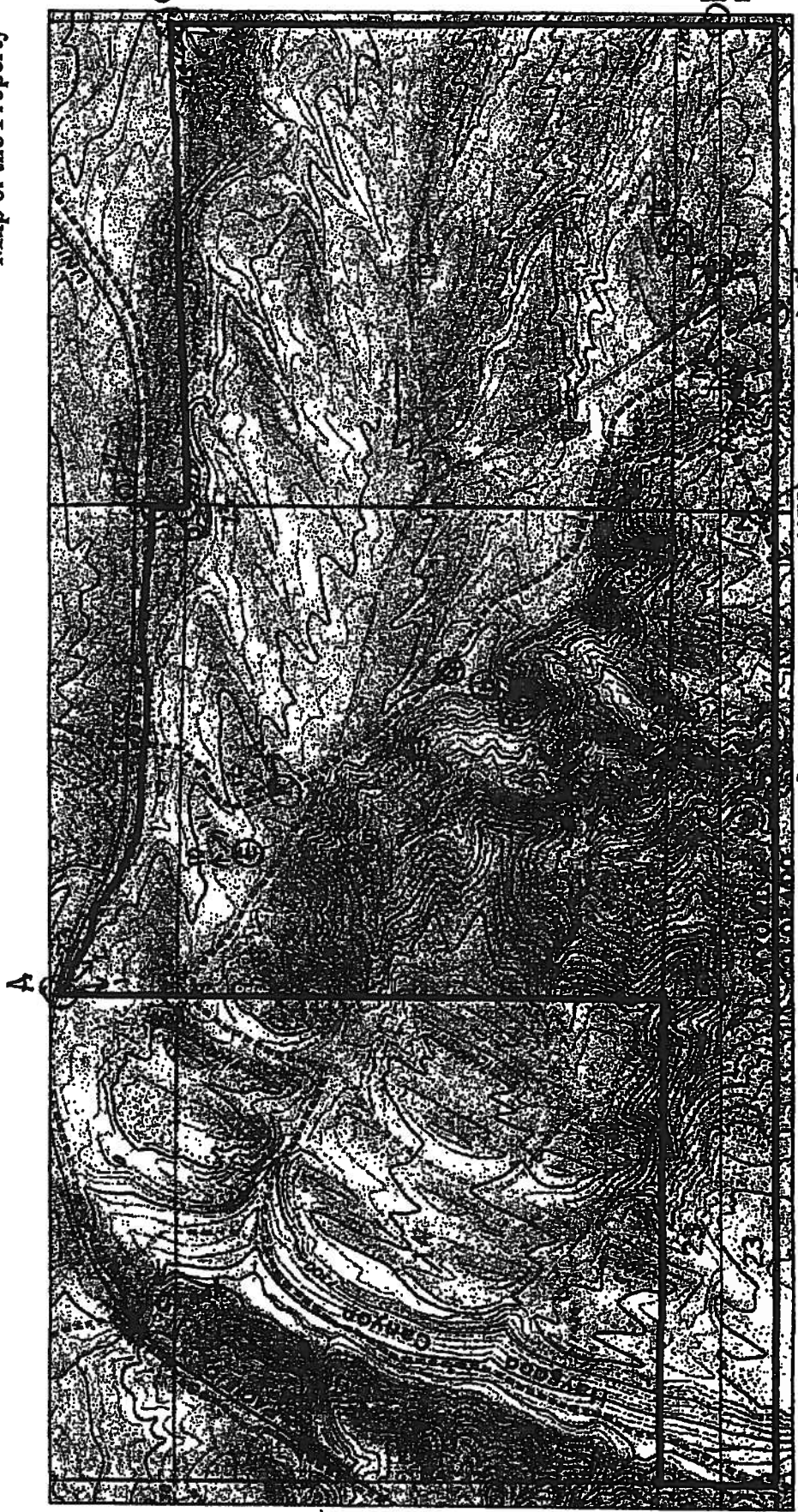
Map 4 :
Photo Points

Red Mountain Ranch - Photo Points



A - MAP/GPS POINT LOCATIONS
1-26 - PHOTO POINT LOCATIONS

Exhibit C
Map of the Property



Map created with TOPO!® ©2013 National Geographic (www.nationalgeographic.com/topo)



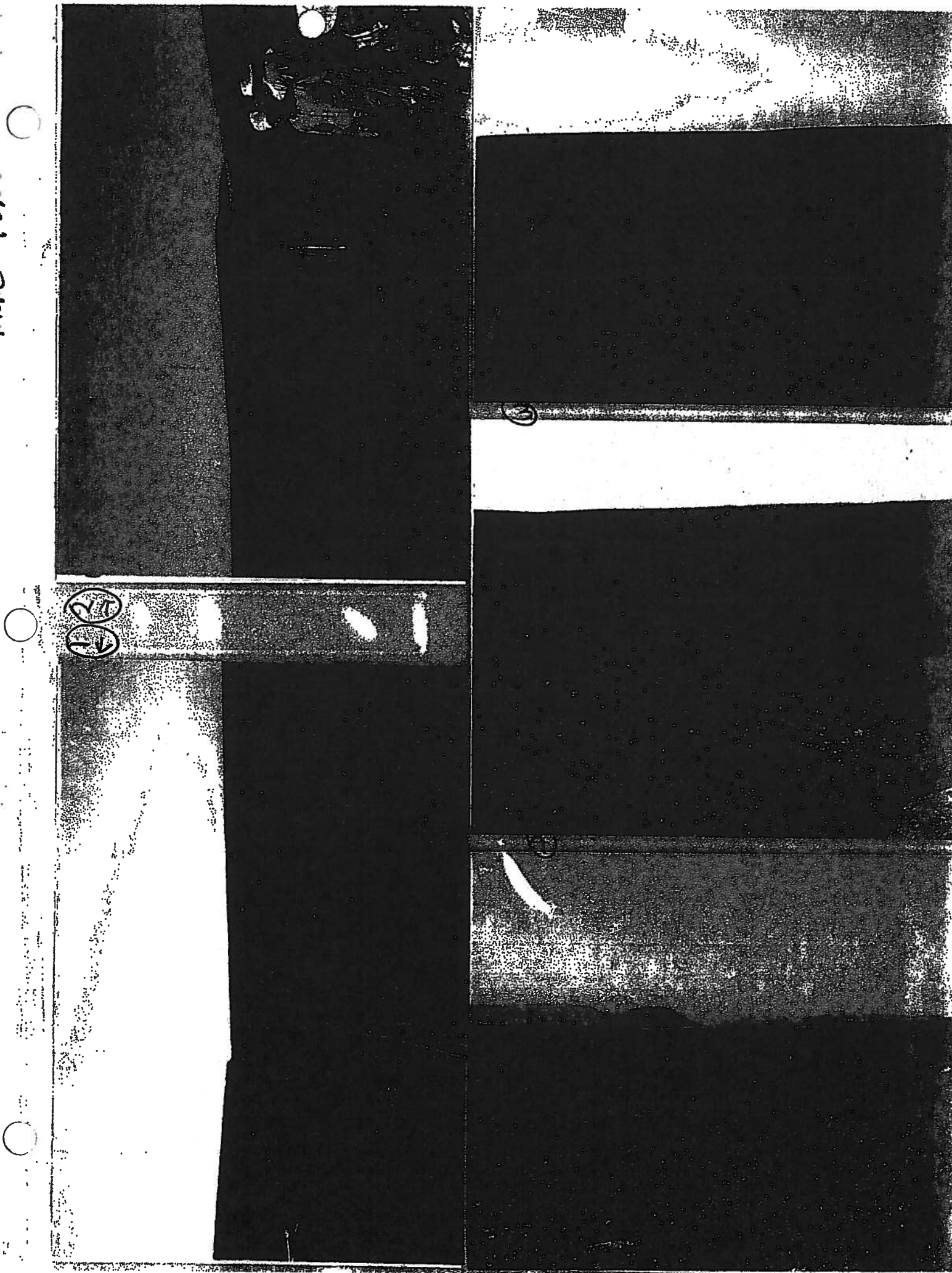
map 4(a)
GPS+ Photo Points

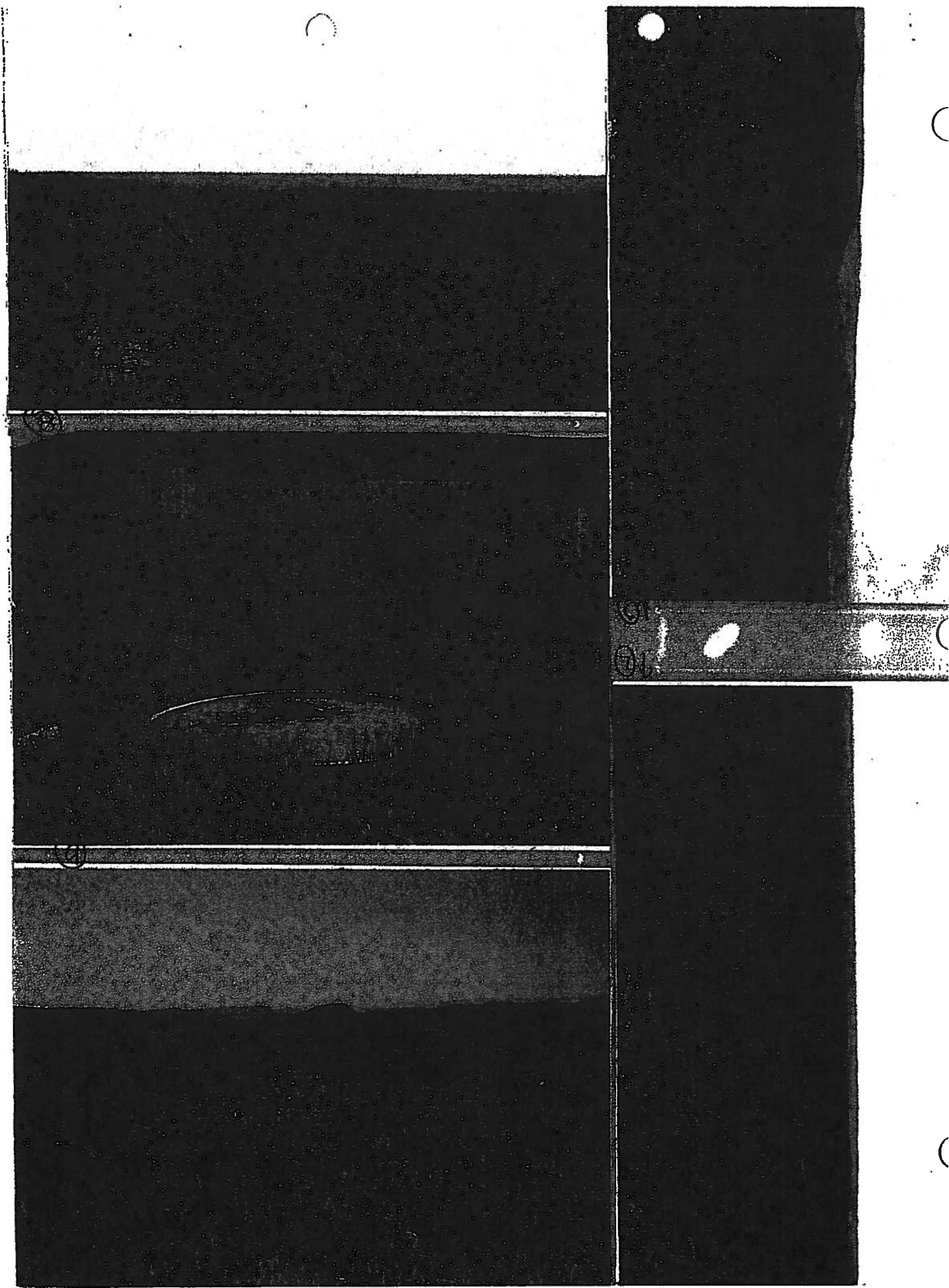
**Exhibit C
Photographs**

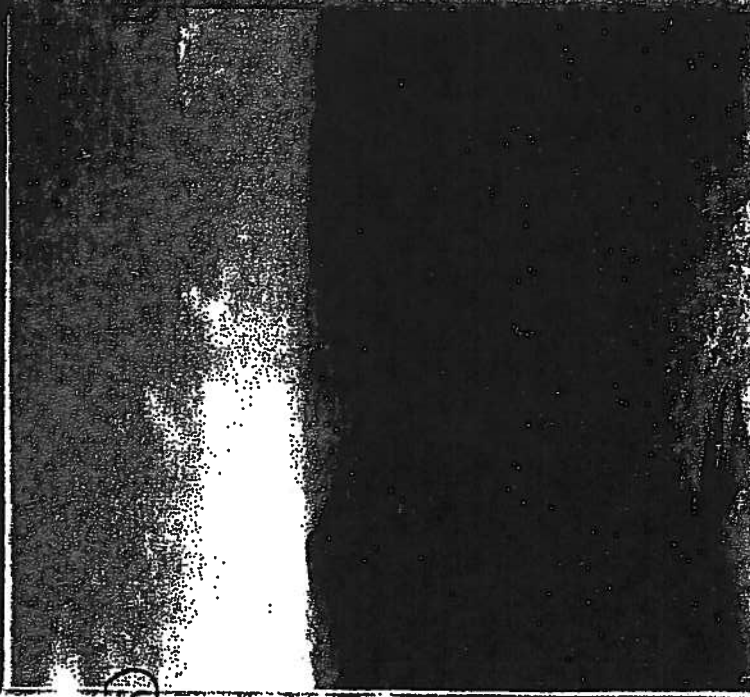
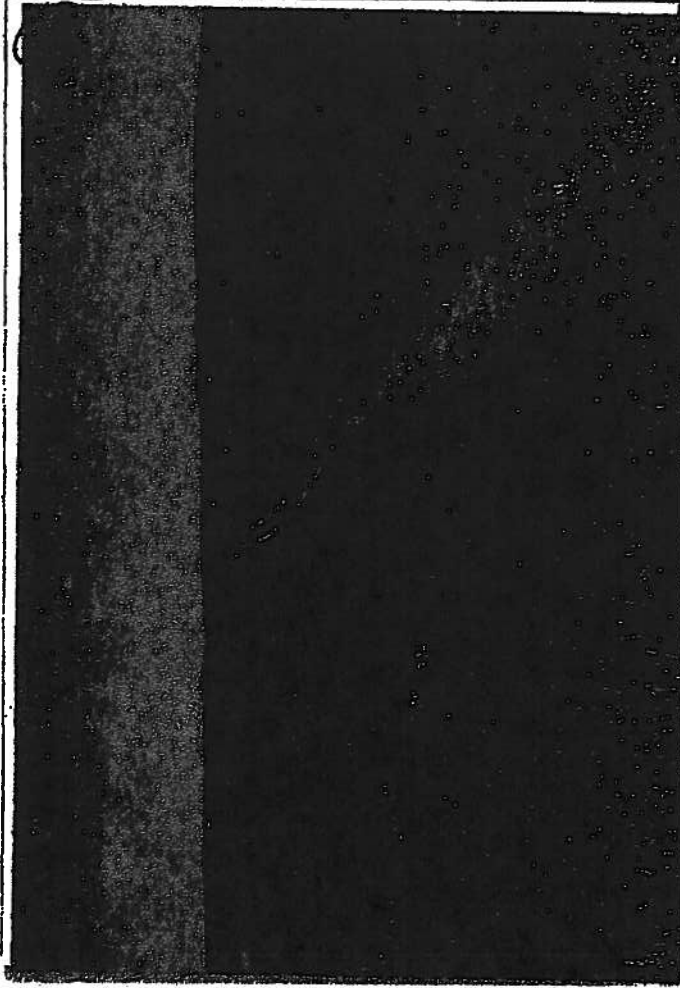
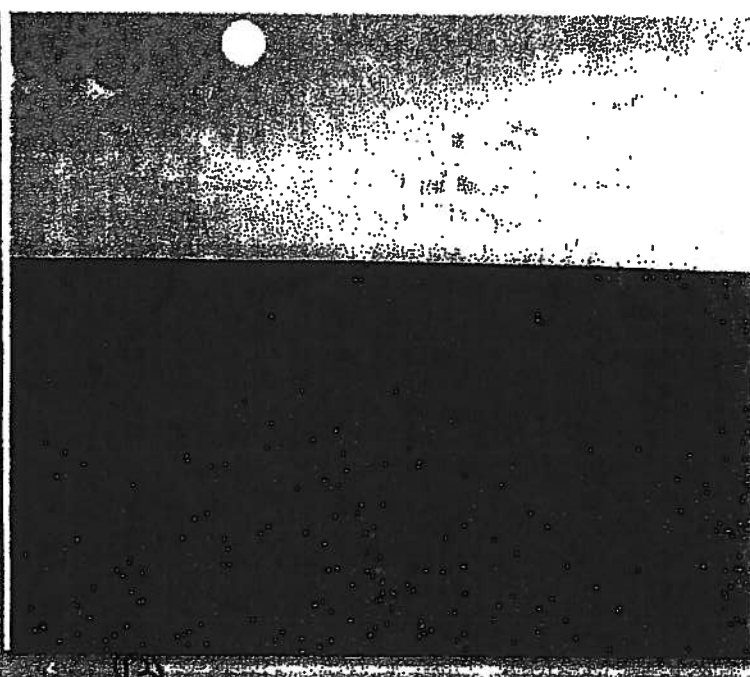
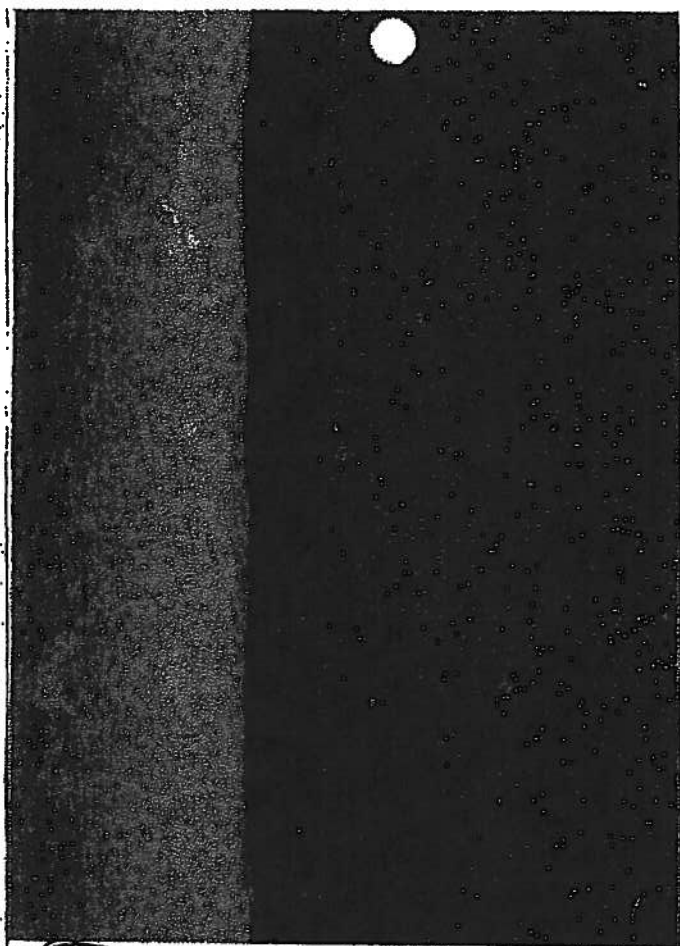
Red Mountain Ranch – Wyoming June 21st, 2005
EDR GPS Points and Photo Point Locations

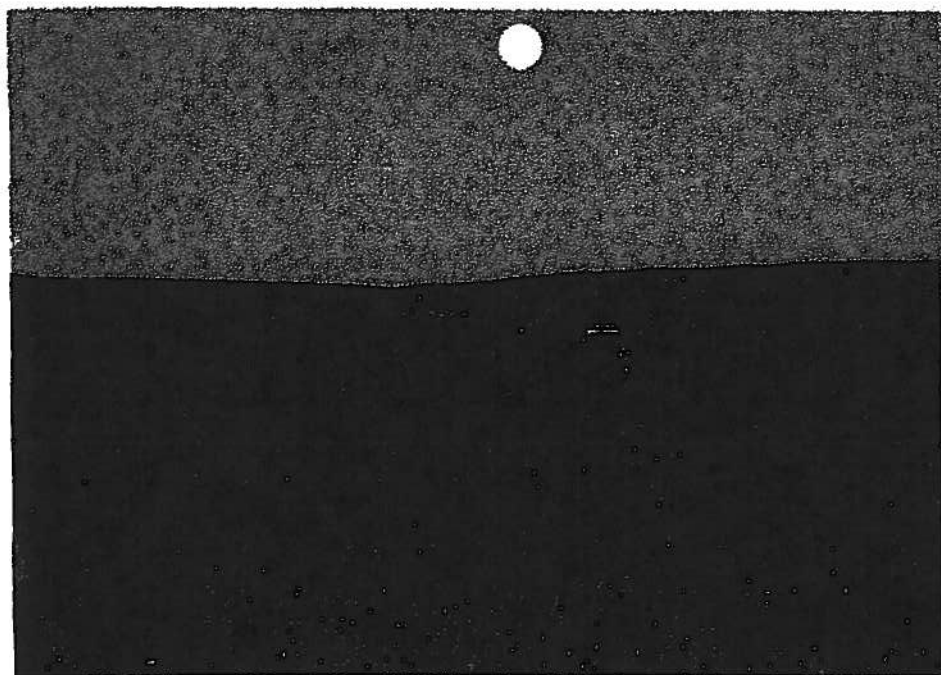
Map Point #	GPS Point #	GPS Reading	Photo Point #s	Descriptor/Comment
A	001	N41° 01.167", W105° 11.483"	1-3	NW corner of property; including UP railroad ROW
B	002	N41° 00.981", W105° 11.484"	4	NW corner of section 13
			5	Gate on fence line at old two-track crossing looking NNE
C	003	N41° 00.767", W105° 11.485"	6-8	Example of shrublands
D	004	N41° 00.582", W105° 11.111"	9	Spring # 13
E	005	N41° 00.755", W105° 11.062"	10-11	Tipl rings on the rim above spring # 13
F	006	N41° 00.721", W105° 10.942"	12-13	Photo 12-potential stop on two-track for City Photo 13-looking NE toward windmill at junction of sections 13 and 18
G	007	N41° 00.458", W105° 10.765"		Gate in fence crossing two-track to rim
H	008	N41° 00.356", W105° 10.787"	14-15	Potential viewing point on rim for City
I	009	N40° 59.903", W105° 09.766"		Tee-post at half section mark on Colorado-Wyoming boundary
J	010	N40° 59.913", W105° 09.721"	16	Eastern most stock tank
K	011	N40° 59.902", W105° 09.162"	17	SE corner of property on Colorado-Wyoming line
L	012	N40° 59.900", W105° 10.003"	18	Looking SE towards SE corner of property-example of grasslands
M	013	N40° 59.940", W105° 10.064"	19-20	View from rim down onto spring # 19 and stock tank in Colorado
N	014	N40° 59.836", W105° 10.459"	21	View of sumac shrublands along drainage in Colorado adjacent to access road from Colorado
O	015	N41° 01.016", W105° 10.334"	22	Northern boundary, jog corner at windmill
P	016	N41° 00.946", W105° 10.334"	23	Northern boundary juncture of R69W & R70W
Q	017	N41° 00.964", W105° 09.211"	24-26	NE corner of property

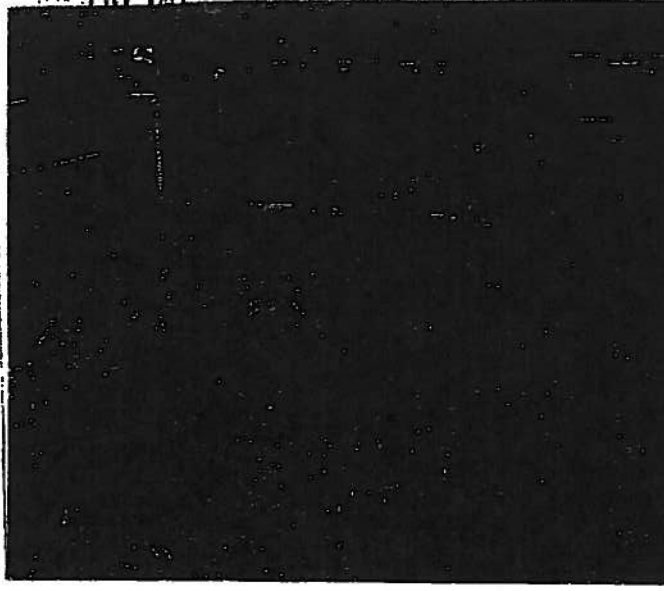
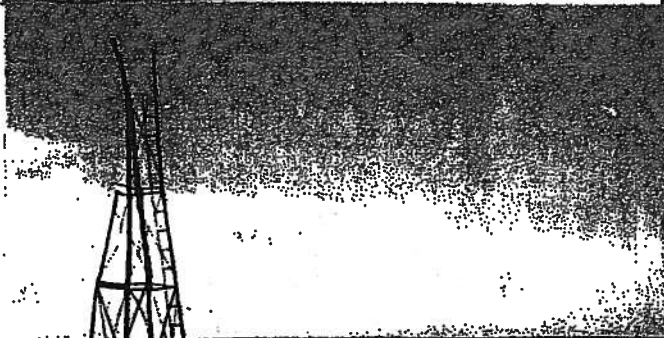
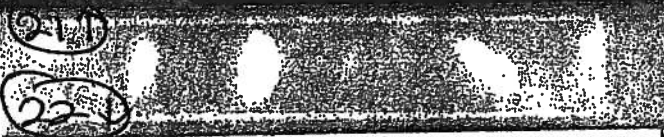
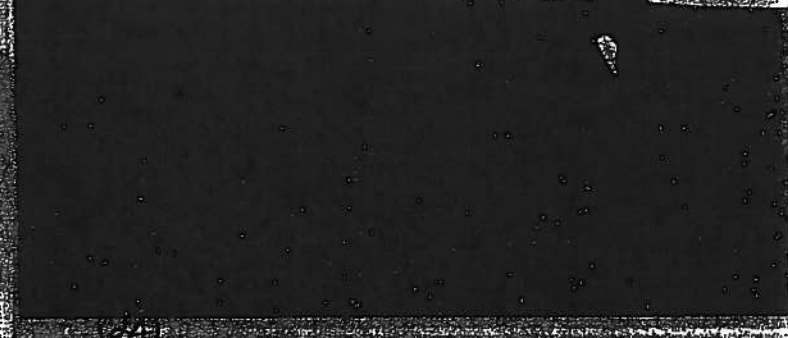
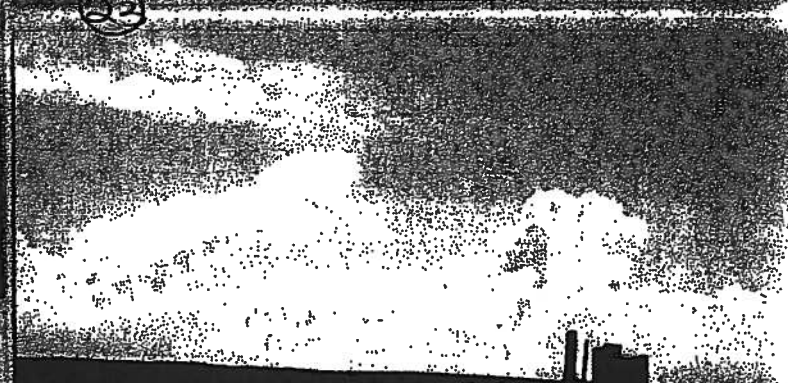
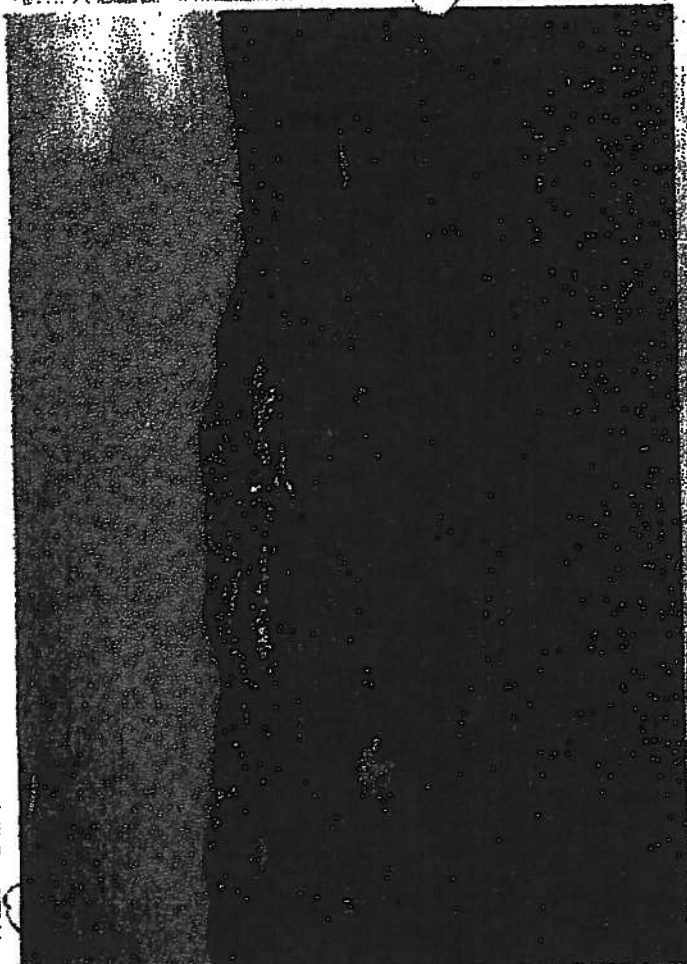
Garmin Venture Extrex, WGS 84











75

76

77

78

EXHIBIT 4

TRAIL AND MOTORIZED ACCESS MAP

**Cooperative Land Management Plan
Red Mountain Ranch -- The Big Hole**

Exhibit 4

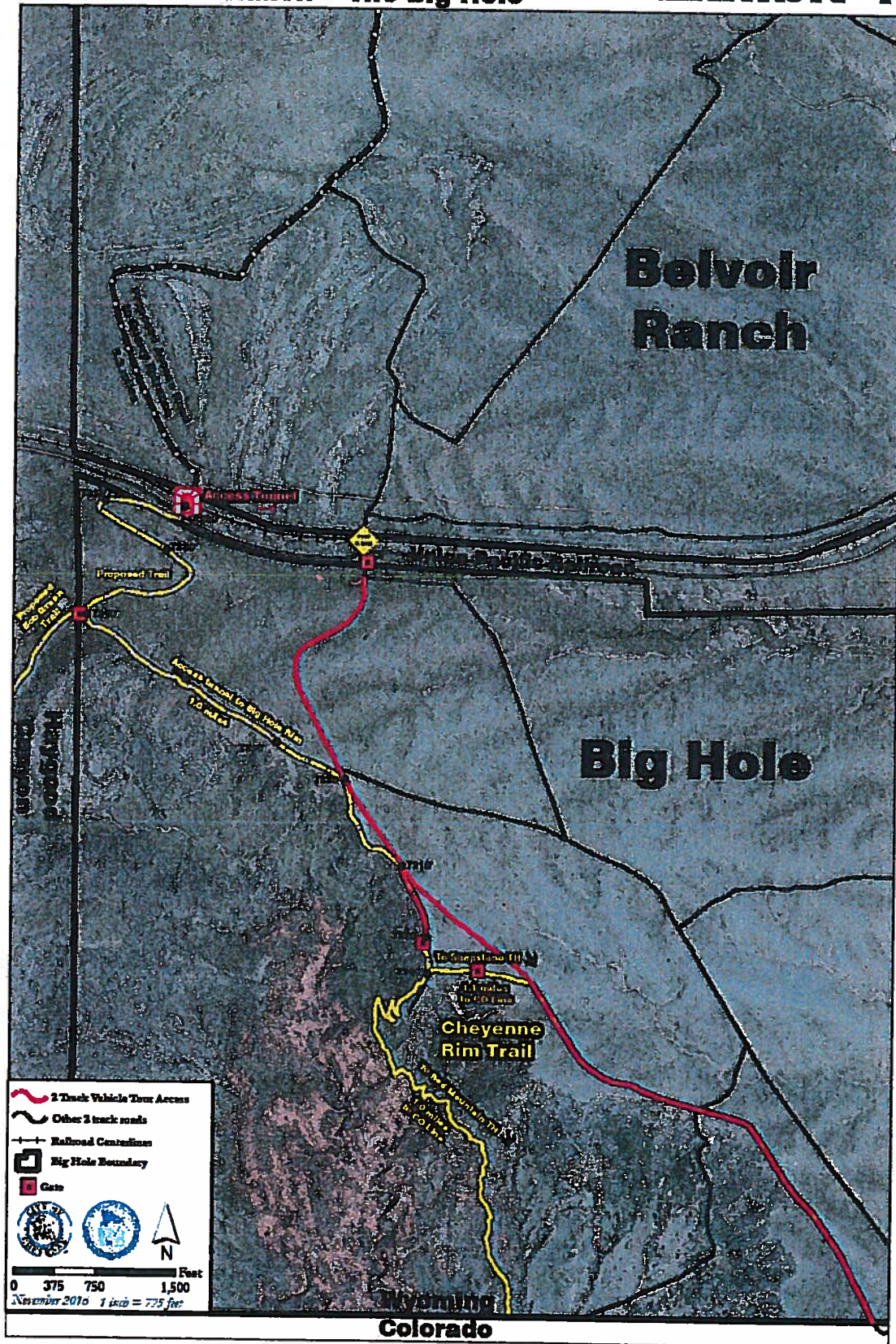


EXHIBIT 5

LARIMER COUNTY ACCESS

Risk Review

CONTRACT #5505

By: BS
Date: 10-27-09

MEMORANDUM OF AGREEMENT

Approved as to
form only:

Ann White
Date: 10/27/2009

This Agreement made this 1st day of December, 2009, by and between Larimer County, Colorado (Larimer County) and the City of Cheyenne, Wyoming (City of Cheyenne) and collectively referred to as the Parties, sets forth the terms and conditions regarding the management of properties owned by the City of Cheyenne and Larimer County and more particularly described in Exhibit A. The Parties hereby agree to the following:

1. Term—This Agreement shall commence on the date the last required signature is attached hereto and shall continue in full force and effect until terminated pursuant to paragraph 3 below.
2. Modification— Any mutually agreed upon changes, modifications, revisions or amendments to this Agreement shall be incorporated by written instrument and signed by all parties to this Agreement.
3. Termination—Either party may terminate this Agreement at any time by providing thirty (30) days written notice to the other party.
4. Grazing—The Parties agree that grazing practices on both properties shall occur in a manner that maintains the range in a "good" or "excellent" condition as defined and determined by the NRCS (Natural Resource Conservation Service) rating system. Grazing pastures on the subject properties shall be defined by existing fences, and not by property ownership. Exhibit B indicates those pastures which are owned by one party, but which may be utilized for grazing by the other party because of existing fencing. Fence maintenance and repair shall be the responsibility of the owner of the property upon which such fence is located.
5. Trails, Public Access and Emergency Access—The parties agree that the proposed trail shown on Exhibit C shall be constructed by Larimer County (including that portion which will be located within the City of Cheyenne property). Larimer County shall maintain said trails until such time as the Wyoming trailhead and trail connection are constructed, at which time the City of Cheyenne shall assume maintenance responsibilities for that portion of the trail within Wyoming. The City of Cheyenne hereby grants to Larimer County an easement to allow the construction, maintenance, and management of said trail. However, Larimer County shall not be obligated to provide law enforcement on that portion of the trail located within Wyoming. It is the intent of the Parties that public access will be allowed in a consistent manner for the full length of the trail, whether in Wyoming or in Colorado, as described in the "Resource Management and Implementation Plan for Red Mountain Open Space" and the "Belvoir Ranch Master Plan." Emergency access shall be allowed by each party on the property of the other party, for the purposes of fire protection, evacuation, law enforcement, and other emergency response activities (but not including training exercises).

6. **Management Plan**— It is agreed that the Larimer County property shall be managed in accordance with the "Resource Management and Implementation Plan for Red Mountain Open Space" and that the City of Cheyenne property shall be managed in accordance with the "Belvoir Ranch Master Plan." In the event that one party is managing property of the other party, the applicable management plan shall remain as set forth above in this paragraph. Management and use of both properties must also be in accordance with the Conservation Easement held by The Nature Conservancy on each property.

7. **Spring Maintenance**—The parties agree that Larimer County shall have the right to maintain the spring and water line located on the City of Cheyenne property, which feeds the stock tank on the Larimer County Property in Section 24.

8. **Weed Control**—The parties agree that Larimer County shall be responsible for weed control in the areas "below the rim" of the Big Hole, and City of Cheyenne shall be responsible for weed control above the rim. The parties shall communicate regarding weed control issues and strategies.

9. **Indemnity**—Each party to this Agreement shall assume the risk of any liability arising from their own negligent and/or willful acts, errors or omissions, to include those of their employees and/or subcontractors, in the performance of this Agreement and all of its terms and conditions.

10. **Governing Law, Jurisdiction and Venue**—The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

11. **Governmental Immunity**—The City of Cheyenne and the County of Larimer and their respective officials and employees do not waive governmental immunity by entering into this Agreement and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Stat. § 1-39-101, *et seq.*, Colo. Rev. Stat. §24-10-101, *et seq.* and all other applicable laws. Further, each party fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement. Designation of venue, choice of law and similar provisions should not be construed as a waiver of governmental immunity.

12. **Third Party Rights**—The Parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to this Agreement, and shall inure solely to the benefit of the parties to this Agreement. The parties to this Agreement intend and expressly agree that only the parties signatory to this Agreement shall have any legal or equitable right to seek to enforce this Agreement, to seek any remedy arising out of a

party's performance or failure to perform any term or condition of this Agreement, or to bring action for breach of this Agreement. This paragraph is not intended nor shall it be construed to waive all of the parties' immunities.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year above written.

CITY OF CHEYENNE WYOMING

BY:


Richard L. Kaysen, Mayor

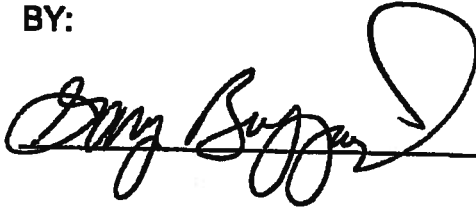
(SEAL)

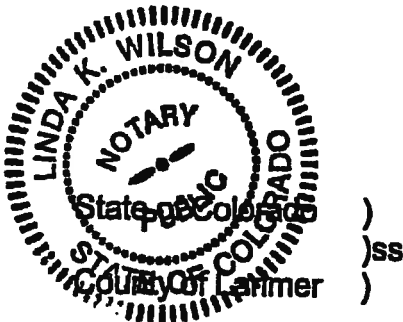
ATTEST:


Carol A. Intlekofer, City Clerk

LARIMER COUNTY, COLORADO

BY:





Subscribed and sworn before me this 1 day of December, 2009.


Notary Public

My Commission Expires: 12/12/2011

Linda K. Wilson
120 Greenwood Dr.
Loveland, CO 80537
My Commission Expires 12/12/2011

Exhibit A

LEGAL DESCRIPTION -- WYOMING PROPERTY

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

Township 12 North, Range 69 West of the 6th P.M.

Section 18: All lying South of the Union Pacific Railroad Company Right-of-Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

Section 19: Lots 1, 2, 3 and 4 in Wyoming

Township 12 North, Range 70 West of the 6th P.M.

Section 12: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.

Section 13: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.

Section 23: Lots 1, 2, 3, 4, in Wyoming.

Section 24: Lots 1, 2, 3, 4, in Wyoming.

TOGETHER WITH all rights, title, and interest of Seller in and to all water and water rights, water permits, ditches and ditch rights, ditch company stock, wells, well rights, irrigation wells, irrigation systems, pumping plants, artesian wells, windmills, springs, sumps and reservoir rights, and all motors, equipment and appliances used in the operation of the same, including, but not necessarily limited to, the following:

- ◆ Spring #19 a/k/a Permit #UW 59582
- ◆ Spring #13 a/k/a Permit #UW 59581

and all other water rights however evidenced which are appurtenant to said lands and which have not been previously reserved to another landowner. (Note: the water tanks located at the northern boundary of the Property have been disconnected from their water source.

TOGETHER WITH all corrals, fences, gates, cattle handling facilities, water tanks, windmills, scales, buildings, and other improvements owned by Seller now located on said property, including all fixtures of a permanent nature;

EXHIBIT A

Legal Description of the Red Mountain Ranch Colorado Property

Township 12 North, Range 69 West of the 6th P.M.:

Section 19: That part within the State of Colorado
Section 30: All
Section 31: All

Township 12 North, Range 70 West of the 6th P.M.:

Section 23: That part within the State of Colorado
Section 24: That part within the State of Colorado
Section 25: All
Section 26: All, EXCEPT the Southwest Quarter of the
Southwest Quarter
Section 35: E $\frac{1}{2}$; E $\frac{1}{2}$ W $\frac{1}{2}$
Section 36: All

Township 11 North, Range 69 West of the 6th P.M.:

Section 6: SW $\frac{1}{4}$ SE $\frac{1}{4}$; SE $\frac{1}{4}$ SW $\frac{1}{4}$
Section 7: N $\frac{1}{2}$ S $\frac{1}{2}$; N $\frac{1}{2}$
Section 8: W $\frac{1}{2}$ and the SE $\frac{1}{4}$
Section 9: All
Section 14: SW $\frac{1}{4}$
Section 15: S $\frac{1}{2}$ and the S $\frac{1}{2}$ NW $\frac{1}{4}$
Section 16: All
Section 17: All
Section 18: S $\frac{1}{2}$
Section 19: All, except that portion
conveyed in Deed recorded July 15, 2003, as
Reception No. 20030088897
Section 20: All, except that portion conveyed in Deed
recorded July 15, 2003, as Reception No.
20030088897
Section 21: All
Section 22: All
Section 23: W $\frac{1}{2}$

Township 11 North, Range 70 West of the 6th P.M.:

Section 1: All

Section 12: W½, except that portion conveyed by Deed recorded October 26, 1955, in Book 1005 at Page 308

Section 13: All

Section 24: NE¼

Sections 11 and 14: Those portions being more particularly described as follows:

Considering the East line of said Section 14 as bearing South 00°40'03" West and with all bearings contained herein relative thereto:

BEGINNING at the Northeast corner of said Section 14; thence along the East line of said Section 14 South 00°40'03" West 682.42 feet to a point on the approximate centerline of an existing fence line; thence departing said East line of said Section 14 and along said existing fence line the following 13 courses and distances:

- 1) North 66°28'50" West 219.74 feet;
- 2) North 22°32'01" West 637.44 feet;
- 3) North 10°10'41" West 762.58 feet;
- 4) North 33°19'10" West 362.52 feet;
- 5) North 57°51'46" West 69.21 feet;
- 6) North 37°25'38" West 927.01 feet;
- 7) North 03°14'19" East 480.70 feet;
- 8) North 06°03'09" West 668.89 feet;
- 9) North 10°25'20" West 1072.47 feet;
- 10) North 69°11'27" West 363.76 feet;
- 11) North 21°36'00" West 646.20 feet;
- 12) North 12°20'58" West 334.87 feet;
- 13) North 04°30'41" West 314.75 feet;

more or less, to a point on the North line of said Section 11, thence along said North line South 89°41'00" East 2347.86 feet to the Northeast corner of said Section 11; thence along the East line of said Section 11 South 00°16'58" West 5379.18 feet to the Northeast corner of said Section 14 and the POINT OF BEGINNING.

All in Larimer County, Colorado.

TOGETHER WITH all corrals, fences, gates, cattle handling facilities, water tanks, windmills, scales, buildings, and other improvements owned by Grantor now located on said property, including all fixtures of a permanent nature;

TOGETHER WITH all rights, title, and interest of Grantor in and to easements, rights-of way, and rights to same belonging and inuring to the benefit of the property;

TOGETHER WITH one hundred percent (100%) of all rights, title, and interest of Grantor in and to all mineral rights or reversionary mineral rights owned by Grantor in connection with the property; AND

TOGETHER WITH all leasehold interests owned by Grantor in connection with the property.

EXHIBIT B

Cheyenne MOU Grazing Map

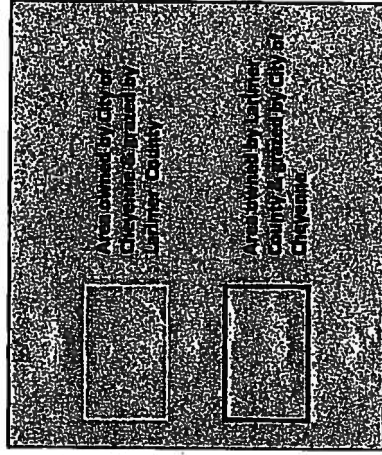
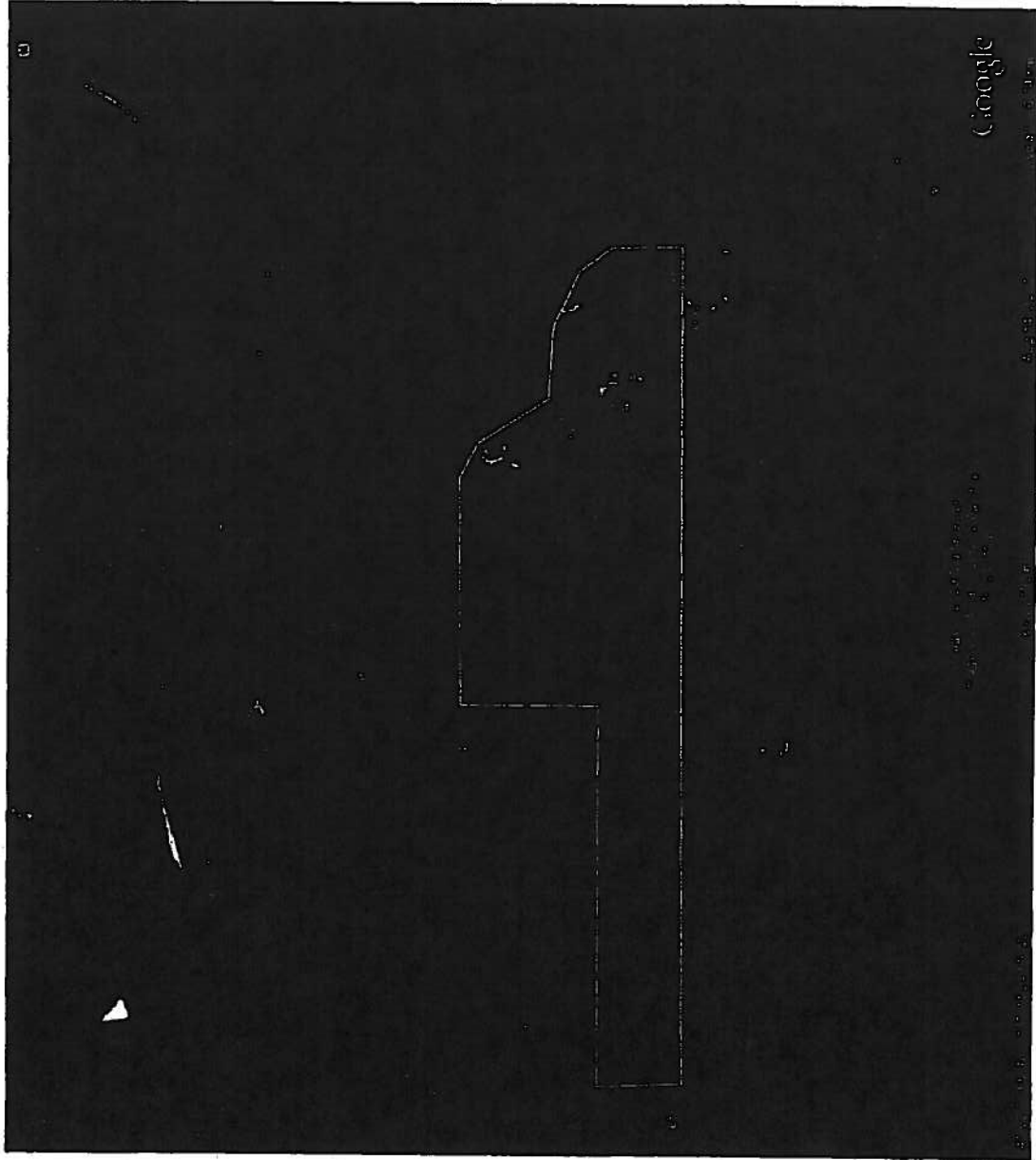


EXHIBIT C

Proposed Colorado-Wyoming Trail

RED MOUNTAIN OPEN SPACE

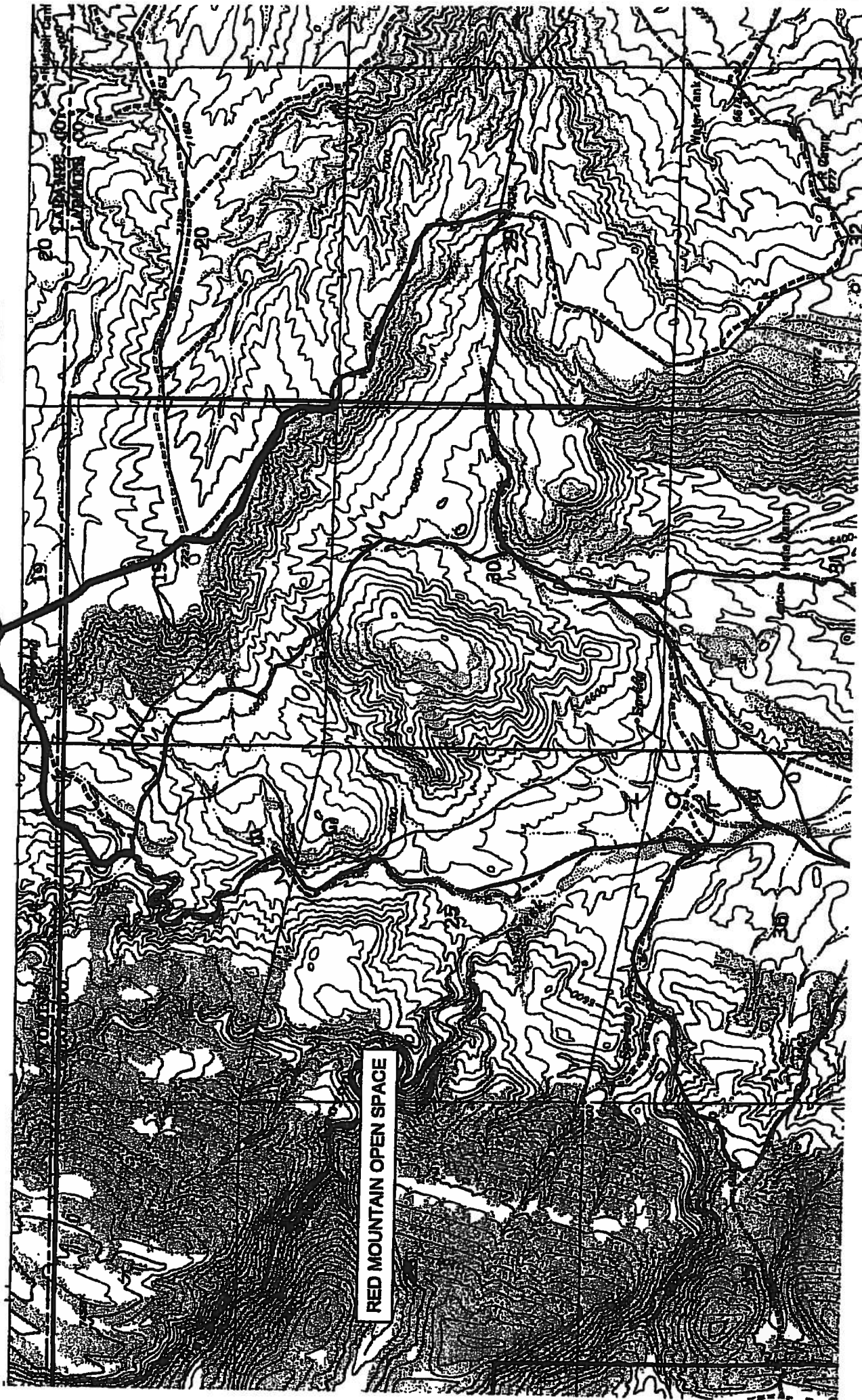


EXHIBIT 6

ROBERT E. GREEN TRAIL EASEMENT

form only:

P. White

Date: Nov 2, 2015

RECORDING REQUESTED BY AND
WHEN RECORDED RETURN TO:
City of Cheyenne

)
)
)
)
)
)

(space above this line reserved for recorder's use)

CITY CONTRACT #6431

EASEMENT AGREEMENT

THIS EASEMENT AGREEMENT (the "Agreement") is made this 9th day of November, 2015, by and between Robert E. Green, Sr., Trustee of the Robert E. Green, Sr., Living Trust, dated August 11, 2015, whose address is 279 Rd. 102, Granite Canon, WY 82059, (the "Grantor"), and the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, whose address is 2101 O'Neil Avenue, Cheyenne, WY 82001 (the "Grantee").

I. RECITALS

A. The Grantor is the owner in fee simple of certain real property located in Laramie County, Wyoming, more particularly described on Exhibit A attached hereto and by reference incorporated herein (the "Grantor's Property").

B. The Grantor's Property is encumbered by a Deed of Conservation Easement held by The Nature Conservancy (the "Conservancy") recorded February 27, 2015 at Reception #655698, Book 2431, Page 648 in the Public Records in Laramie County, Wyoming (the "Conservation Easement").

C. Grantee proposes to develop and maintain a public trails system and open space area called the Belvoir Ranch and Red Mountain (Big Hole) Open Space (the "Open Space Program") over property which is adjacent to and in the vicinity of Grantor's Property.

D. Grantor desires to grant to Grantee a trail easement (The Robert E. Green Trail) over and across Grantor's Property to be used in conjunction with the Open Space Program for the limited purposes and terms as described herein.



RECP #: 673887

RECORDED 11/17/2015 AT 2:27 PM BK# 2474 PG# 153
Debra K. Lathrop, CLERK OF LARAMIE COUNTY, WY PAGE 1 OF 9

II. AGREEMENT

NOW, THEREFORE, for Ten and no/100 Dollars (\$10.00) and other valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties hereto agree as follows:

1. Conveyance of Public Trail Easement. Grantor hereby grants to Grantee a non-exclusive easement (the "Easement") for non-motorized hiking and biking uses, as is more particularly depicted on Exhibit B attached hereto and incorporated herein by this reference, subject to the terms, conditions and limitations set forth herein. The Easement will consist of a corridor one hundred feet (100') in width and shall run from point to point as identified in Exhibit B. The trail corridor will be further identified by GIS coordinates of the point at which an access gate will be installed near a parking lot located on the Grantor's property and the points at which the trail corridor will intersect the boundary between the Grantor's and Grantee's properties. It is mutually understood and agreed that prior to construction, the alignment of the initial trail corridor may be altered if necessary to accommodate areas that are sensitive due to archeological, endangered species, and other findings that may affect the conservation values of the Conservation Easement. After the trail is constructed, the Easement will be fifty feet (50') in width centered on the centerline of the constructed trail. All ingress and egress points to the trail easement will be controlled by "V" gates to prevent motorized vehicular access to the trail easement.

2. Conservation Easement. The parties acknowledge and agree that the Easement is subordinate and subject to the terms and conditions of the Conservation Easement. To the extent there exists a conflict in terms or conditions between the Conservation Easement and this Easement, the Conservation Easement shall control.

3. Limitations on Grant and Conveyances. In granting the Easement, Grantor expressly represents that Grantor does not:

- A. Extend any assurance that the Easement is safe for any purpose;
- B. Confer upon any member of the public the legal status of an invitee or licensee to whom a duty or care is owed by Grantor; or
- C. Assume responsibility or incur any liability for injury to person or property or for the death of any person caused by the use of the Easement.

4. Management of the Easement.

- A. Except as necessary to construct the Robert E. Green Trail, Grantee shall oversee and manage the Easement so as to promote, protect and preserve the Easement in its present natural, essentially undisturbed state, and the Grantor's use and enjoyment of the Grantor's Property. Such oversight and management shall be consistent with the concepts and general principles contained in this Agreement.



- B. Grantor shall have no responsibility for maintaining, inspecting, policing or generally managing the Easement. Grantee or its designee shall be responsible for monitoring and overseeing the use of the Easement, and enforcing the terms of the Easement, pursuant to the terms set forth herein. It is mutually understood and agreed that the Grantor, the Grantee, the Nature Conservancy, and Larimer County, Colorado, will enter into a management agreement for the future maintenance of the Easement before the trail is opened for public access.
- C. Grantor shall have no obligation to insure or indemnify Grantee for any injury, claim or damage to any person or property while using the Easement, unless caused exclusively by Grantor. Nothing herein is intended to waive any limits on liability afforded to the parties pursuant to Wyo. Stat. Sections 34-19-101 through 34-19-107 (the "Wyoming Landowner Protection Statutes"). Nothing herein is intended to waive any limits on liability afforded to the parties pursuant to the Recreation Safety Act, W.S. § 1-1-121, *et seq.*
- D. Except for enforcement of the terms of this Easement between the parties hereto, the Grantee reserves all immunities and defenses available to Grantee as a governmental entity under the Wyoming Governmental Claims Act, W.S. § 1-39-101, *et seq.*, and other applicable laws of the State of Wyoming.

5. Use Restrictions.

- A. The Easement may be used by the Grantee and members of the public subject to the terms of this Easement and the Conservation Easement. For purposes of this Easement, members of the public are defined as persons who have been granted permission to access the Robert E. Green Trail by the City of Cheyenne.
- B. The Easement shall only be used for the limited non-motorized hiking and biking uses as set forth below. No other uses, express or implied, are authorized by this Agreement. Without limiting their generality, the following uses are strictly prohibited within or upon the Easement.
 - i. The operation of motorized vehicles including, but not limited to, cars, trucks, sport utility vehicles, motorcycles, snowmobiles, and all-terrain vehicles.
 - ii. Camping, fishing, hunting, campfires, and the discharge of firearm.
 - iii. All forms of sports or recreational activity, other than non-motorized hiking and biking in or within the Easement are prohibited without the prior written consent of the Grantor, which consent can be withheld for any reason or no reason.

iv. Littering, the creation of any unsanitary condition, defacing the Grantor's Property, damaging or injuring trail improvements or property within the Easement, impeding access to the Grantor's Property or to adjoining property, removing any survey staking, collecting or removing water, firewood, rocks or artifacts, or any other activity that results in harassment or injury to wildlife or plants, is strictly prohibited. Users of the Easement shall not bring dogs or any other domesticated or non-domesticated animals onto the Easement or the Grantor's property.

v. The Easement shall be closed to the general public every year during the period of time from August 15th to February 28th of the following year to coordinate with elk hunting season as prescribed by the Wyoming Game and Fish Department. Grantee shall be responsible for signage alerting the general public to the closure of the Easement.

C. Neither Grantor nor Grantee shall impose any fees or charges for lawful entry upon or use of the Easement.

6. Compliance. In the event that non-compliance with any restriction contained herein or in the Conservation Easement with respect to the Easement comes to attention of Grantee, Grantee shall notify the Grantor and the Conservancy in writing of such non-compliance and shall work with the Grantor and the Conservancy to correct such non-compliance. Grantee shall consult with the Grantor and the Conservancy and may elect to close or restrict the use of the Easement indefinitely should the Grantee determine, following consultation with the Grantor and the Conservancy, that the Grantor's intent as set forth herein or the Conservation Easement is being violated by the occurrence of verified incidents of trespass, vandalism, adverse environmental impacts, substantial littering, or such other similar incidents. Grantee shall provide prior notice to, and consult with, the Conservancy, before any decision is made by Grantee to restrict or close use of the Easement shall become effective.

7. Miscellaneous.

A. The Easement may not be transferred or assigned by Grantee without the prior written consent of the Grantor which consent shall not be unreasonably withheld.

B. All notices or other documents required or authorized to be sent by one party to the other shall be in writing and shall be deemed given to a party when personally delivered, or when deposited in the United States mail, sufficient postage prepaid, return receipt requested, addressed as follows:



If to Grantor:

**Robert E. Green, Sr.,
Trustee of the Robert E. Green Sr., Living Trust, dated August 11, 2015
279 Road 102
Granite Canon, WY 82059**

If to Grantee:

**City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001**

If to the Conservancy:

**The Nature Conservancy
258 Main Street
Lander, WY 82520**

With a copy to:

**The Nature Conservancy
Western Resource Office
2424 Spruce Street, Suite 100
Boulder, CO 80302**

Each party shall notify the other party if its address changes from time to time.

- C. Grantee agrees to be bound by all covenants, terms, conditions, restrictions and limitations expressed herein.**
- D. The Easement granted herein and all provisions of this Agreement shall run with the land and shall be applicable to, binding upon and inure to the benefit of the parties, their respective transferees, representatives, successors and assigns.**
- E. This Agreement contains the entire understanding of the parties. There are no representations, warranties, covenants or undertakings other than those expressly set forth herein.**



- F. This Agreement may not be modified or amended except in writing signed by all the parties hereto. The laws of the State of Wyoming shall govern the validity, performance and enforcement of this Agreement. In the event of litigation arising from a dispute under this Agreement, the prevailing party shall be entitled to recover its costs and expenses, including reasonable attorney fees from the non-prevailing party.
- G. A waiver of a breach of any term of this Agreement will not be considered a waiver of a further breach of the same term, a waiver of a breach of any other term, or a waiver of such waiving party's right to declare an immediate or a subsequent default.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the day and year first written above.

GRANTOR:

Robert E. Green, Sr., Trustee
Robert E. Green, Sr., Trustee of the Robert E. Green,
Sr., Living Trust dated August 11, 2015.

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me this 13th day of November, 2015, by Robert E. Green, Sr., Trustee of the Robert E. Green, Sr., Living Trust.

Witness my hand and official seal.

(SEAL)



Marilyn Sutherland
Notary Public
My Commission expires on Dec. 27, 2018



Carol Littlekofer
Carol Littlekofer, City Clerk

GRANTEE:

City of Cheyenne, Wyoming

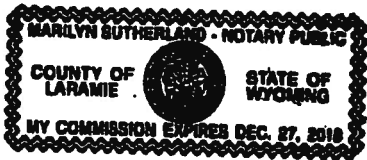
Richard L. Kaysen
Richard L. Kaysen, Mayor

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me this 13th day of November, 2015, by Richard L. Kaysen, Mayor of the City of Cheyenne, Wyoming.

Witness my hand and official seal.

(SEAL)



Marilyn Sutherland
Notary Public

My Commission expires on Dec, 27, 2018



EXHIBIT A

Property Description

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

All of Sections 11 and 14, Township 12 North, Range 70 West of the 6th P.M., Laramie County, Wyoming, lying Southerly of the Union Pacific Railroad right of way.



RECP #: 673887

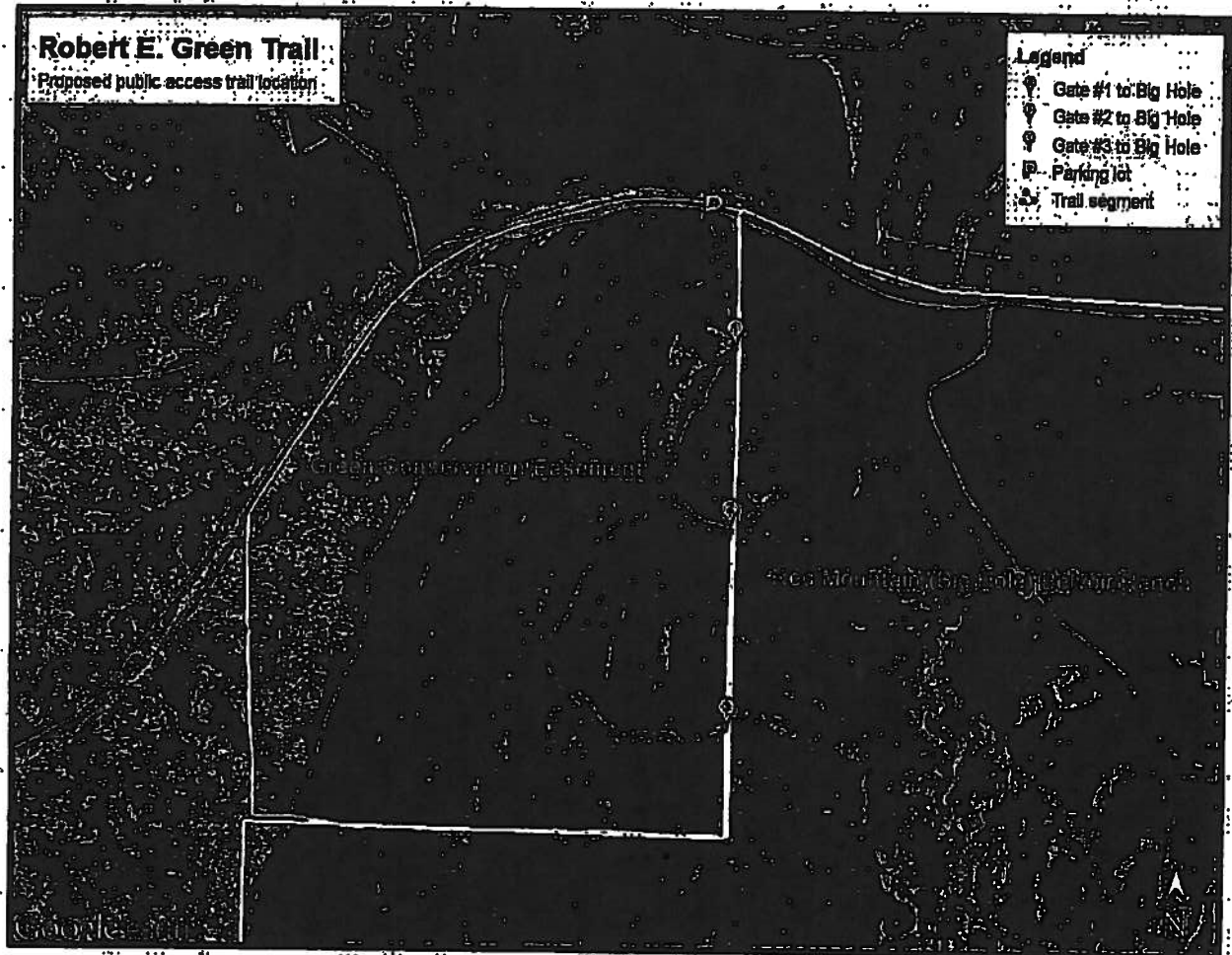
RECORDED 11/17/2015 AT 2:27 PM BK# 2474 PG# 160
Debra K. Lathrop, CLERK OF LARAMIE COUNTY, WY PAGE 8 OF 9

Exhibit B

Trail Corridor

Robert E. Green Trail GPS points

Parking gate: 41° 1'10.68"N
105°11'33.13"W
Gate #1: 41° 0'57.06"N
105°11'29.45"W
Gate #2: 41° 0'38.26"N
105°11'29.58"W
Gate #3: 41° 0'17.46"N
105°11'29.30"W



RECP #: 673887

RECORDED 11/17/2015 AT 2:27 PM BK# 2474 PG# 161
Debra K. Lathrop, CLERK OF LARAMIE COUNTY, WY PAGE 9 OF 9

EXHIBIT 7

ACCESS EASEMENT
BETWEEN
LARIMER COUNTY, COLORADO
AND
THE NATURE CONSERVANCY

Laramie Footwalls
(Red Mountain Ranch) WY/CO -
Sale to City of Cheyenne w/ reserved CE
8/31/05

RECORDING REQUESTED BY AND
WHEN RECORDED RETURN TO:
The Nature Conservancy
Western Resource Office
2424 Spruce Street
Boulder, Colorado 80302
Attention: Legal Department



RCPTN#

2005-0067849

PAGES - 8

FEE \$41.00

DOC \$0.00

08/12/2005
15:42:00

#501955

SCOTT DOYLE, CLERK
LARIMER COUNTY CO

RECORDED 7/13/2005 AT 1:20 PM REC# 422040 BK# 1892 PG# 1590
DEBRA K. LATHROP, CLERK OF LARAMIE COUNTY, WY PAGE 1 OF 8

GRANT OF ACCESS EASEMENT FOR INGRESS AND EGRESS

THIS GRANT OF EASEMENT FOR INGRESS AND EGRESS (this "Easement") is made this 12th day of July, 2005, by and between LARIMER COUNTY, a political subdivision of the State of Colorado, whose address is 200 West Oak, Ft. Collins, Colorado 80521 (the "County"), and THE NATURE CONSERVANCY (the "Conservancy"), a District of Columbia non-profit corporation, whose address is 4245 North Fairfax Drive, Arlington, VA 22203-1606 (the "Conservancy").

WHEREAS:

A. The Conservancy is the holder of a conservation easement on that certain real estate situated in Laramie County, Wyoming, which is more particularly described on Exhibit A (the "Easement Property") attached hereto;

B. The County is the owner of real estate adjacent to the Easement Property, situated in Larimer County, Colorado, which is more particularly described on Exhibit B (the "County Property"), attached hereto;

C. The County desires to grant to the Conservancy, its employees, agents, successors, assigns and transferees, an easement over and across the County Property as described below.

NOW THEREFORE, for good and valuable consideration, the sufficiency of which is hereby acknowledged by the parties:

1. Conservancy Easement. The County does hereby grant to the Conservancy, a perpetual easement over and across the existing ranch road that extends from Larimer County Road 23 to the southern boundary of the Easement Property, as depicted on Exhibit C attached hereto, and subject to the following:

A. This Easement shall allow for clear and unhindered, non-exclusive access for vehicular, pedestrian and equestrian ingress and egress to the Easement Property.

B. The sole and only purpose of this Easement is to afford the Conservancy, its employees, agents, successors, assigns, invitees, and transferees, access across the County Property to the Easement Property for the enforcement and monitoring of the conservation easement and for periodic site visits to conduct ecological research on the Easement Property, subject to the following limitations:

C:\Documents and Settings\hknigh\Local Settings\Temporary Internet Files\OLK2\Access Agreement 6-19-05 clean.doc

✓ LARAMIE COUNTY ABSTRACT & TITLE CO
ATTN: CATHIE
PO BX 1244
CHEYENNE, WY 82001

1. that the Conservancy shall notify the County not less than forty eight (48) hours prior to the proposed time of exercising its rights to inspect, monitor and enforce the provisions of the conservation easement, unless, in the Conservancy's sole judgment, the Conservancy's immediate access to the Easement Property is necessary to prevent damage to or the destruction of the conservation values protected by the Easement in which event no prior notice shall be required.
2. that the use of the access for periodic site visits to conduct ecological research is conditioned upon the Conservancy obtaining the prior approval of the County, provided, however, that such approval shall not be unreasonably withheld.

C. Nothing in this grant of Easement is to be construed as a grant of right-of-way to the general public over and across the County Property.

D. The Conservancy shall hold harmless, indemnify, and defend the County and the County's members, directors, officers, employees, agents, and contractors and the successors, and assigns of each of them from and against all liabilities, penalties, costs, losses, damages, expenses, causes of action, claims, demands, or judgments, including, without limitation, reasonable attorney's fees, arising from or in any way connected with the Conservancy's exercise of its rights granted in this Easement. This paragraph shall not apply in the case of any incident on the County Property caused by the County or the County's representatives or agents.

2. Termination of Previous Easement. The parties agree that the Mutual Grant of Access Easement for Ingress and Egress dated December 30, 2004 and recorded in Laramie County, Wyoming at Book 1864, Page 497 (Recording # 409277) is hereby terminated, with no further force and effect, and shall be replaced with this Easement.

3. Default. In the event either of the respective parties hereto shall default in any of its covenants or obligations herein provided, and the party not in default commences legal or equitable action against the defaulting party, the defaulting party expressly agrees to pay all reasonable sums for attorneys' fees.

4. Run With Land. The terms and conditions set forth herein shall be binding upon, inure to, and be enforceable against the County and the Conservancy, it being expressly understood and agreed that, upon transfer of such party's ownership interest therein, such transferor shall be released from liabilities subsequently occurring pursuant to the terms and conditions of this Easement from and after the date of such transfer; and, commencing with such date, the transferee shall be deemed responsible for and shall assume the obligations imposed under this Easement. All provisions of this Easement, including the benefits and burdens hereof, shall be deemed to run with the County Property and the Easement Property, and shall be binding upon and inure to the benefit of the successors, assigns and transferees of the parties hereto.

5. Costs. The parties to this Easement agree that the cost of any maintenance of any access roads shall be borne by the County. The County shall have no obligation to maintain, repair or restore any access roads.

C:\Documents and Settings\hknigh\Local Settings\Temporary Internet Files\OLK2\Access Agreement 8-19-05 clean.doc

IN WITNESS WHEREOF the Conservancy and the County have executed this Grant of Easement for Ingress and Egress as of the date and year first above written.

THE CONSERVANCY:

THE NATURE CONSERVANCY, a District
of Columbia non-profit corporation

By: Nancy J.

Its: Land Conservation Program manager

THE COUNTY:

THE BOARD OF COUNTY
COMMISSIONERS OF THE COUNTY OF
LARIMER

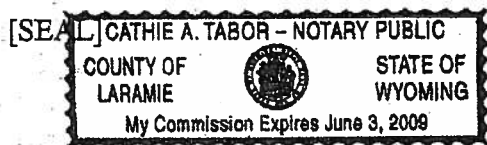
By: Kathleen
Chair

DATE: 6/29/05
APPROVED AS TO FORM:
64
COUNTY ATTORNEY

STATE OF Wyo)
) ss.
COUNTY OF Laramie)

On this 2nd day of July, 2005, before me, the undersigned, a Notary Public in and for said State, personally appeared Dancy Fishbein, known or identified to me to be the Land Conservation Program Manager of THE NATURE CONSERVANCY who executed the above instrument on behalf of the corporation and acknowledged to me that such corporation executed the same.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal on the day and year in this certificate first above written.



Notary Public

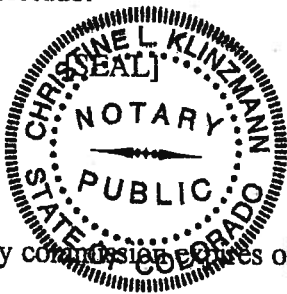
Printed Name

Residing at

My Commission expires _____

STATE OF Colorado)
) ss.
COUNTY OF Larimer)

The foregoing instrument was acknowledged before me this 5 day of July, 2005, by Kathy Rennels as Chairperson, Board of County Commissioners for Larimer County, Colorado.



Notary Public in and for the State of Colorado

Residing at 200 W. Oak St
FTC CO 80521

My commission expires on MY COMMISSION EXPIRES 4/29/2007

Exhibit A

Description of Conservancy Conservation Easement Property

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

Township 12 North, Range 69 West of the 6th P.M.

Section 18: All lying South of the Union Pacific Railroad Company Right-of-Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.

Section 19: Lots 1, 2, 3 and 4 in Wyoming

Township 12 North, Range 70 West of the 6th P.M.

Section 12: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.

Section 13: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.

Section 23: Lots 1, 2, 3, 4, in Wyoming.

Section 24: Lots 1, 2, 3, 4, in Wyoming.

EXHIBIT B

Legal Description of the Red Mountain Ranch Colorado Property

Township 12 North, Range 69 West of the 6th P.M.:

Section 19: That part within the State of Colorado
Section 30: All
Section 31: All

Township 12 North, Range 70 West of the 6th P.M.:

Section 23: That part within the State of Colorado
Section 24: That part within the State of Colorado
Section 25: All
Section 26: All, EXCEPT the Southwest Quarter of the
Southwest Quarter
Section 35: E $\frac{1}{2}$; E $\frac{1}{2}$ W $\frac{1}{2}$
Section 36: All

Township 11 North, Range 69 West of the 6th P.M.:

Section 6: SW $\frac{1}{4}$ SE $\frac{1}{4}$; SE $\frac{1}{4}$ SW $\frac{1}{4}$
Section 7: N $\frac{1}{2}$ S $\frac{1}{2}$; N $\frac{1}{2}$
Section 8: W $\frac{1}{2}$ and the SE $\frac{1}{4}$
Section 9: All
Section 14: SW $\frac{1}{4}$
Section 15: S $\frac{1}{2}$ and the S $\frac{1}{2}$ NW $\frac{1}{4}$
Section 16: All
Section 17: All
Section 18: S $\frac{1}{2}$

Section 19: All, except that po rtion
conveyed in Deed recorded July 15, 2003, as
Reception No. 20030088897

Section 20: All, except that portion conveyed in Deed
recorded July 15, 2003, as Reception No.
20030088897

Section 21: All
Section 22: All
Section 23: W $\frac{1}{2}$

Township 11 North, Range 70 West of the 6th P.M.:

Section 1: All

Section 12: W $\frac{1}{2}$, except that portion conveyed by Deed recorded October 26, 1955, in Book 1005 at Page 308

Section 13: All

Section 24: NE $\frac{1}{4}$

Sections 11 and 14: Those portions being more particularly described as follows:

Considering the East line of said Section 14 as bearing South 00°40'03" West and with all bearings contained herein relative thereto:

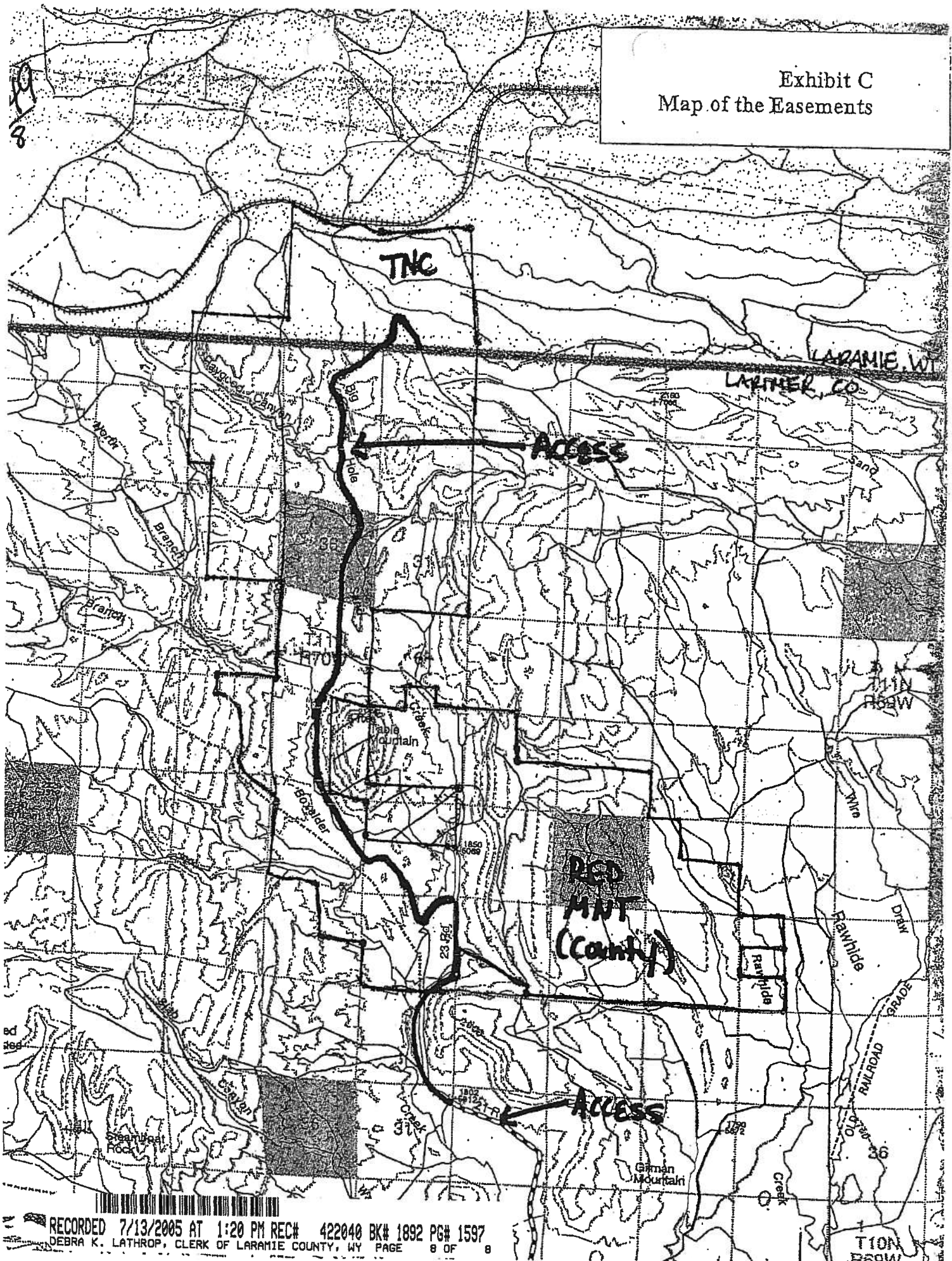
BEGINNING at the Northeast corner of said Section 14; thence along the East line of said Section 14 South 00°40'03" West 682.42 feet to a point on the approximate centerline of an existing fence line; thence departing said East line of said Section 14 and along said existing fence line the following 13 courses and distances:

- 1) North 66°28'50" West 219.74 feet;
- 2) North 22°32'01" West 637.44 feet;
- 3) North 10°10'41" West 762.58 feet;
- 4) North 33°19'10" West 362.52 feet;
- 5) North 57°51'46" West 69.21 feet;
- 6) North 37°25'38" West 927.01 feet;
- 7) North 03°14'19" East 480.70 feet;
- 8) North 06°03'09" West 668.89 feet;
- 9) North 10°25'20" West 1072.47 feet;
- 10) North 69°11'27" West 363.76 feet;
- 11) North 21°36'00" West 646.20 feet;
- 12) North 12°20'58" West 334.87 feet;
- 13) North 04°30'41" West 314.75 feet;

more or less, to a point on the North line of said Section 11, thence along said North line South 89°41'00" East 2347.86 feet to the Northeast corner of said Section 11; thence along the East line of said Section 11 South 00°16'58" West 5379.18 feet to the Northeast corner of said Section 14 and the POINT OF BEGINNING.

All in Larimer County, Colorado.

Exhibit C
Map of the Easements



2022 Agreement - Exhibit 3

Easement Documentation Report

[Please see separate attached EDR document]

Laramie Foothills
(Red Mountain Ranch) CO/WY -
Sale Out to City of Cheyenne w/
reserved CE

Red Mountain Ranch – Wyoming Easement Documentation Report

Prepared by
Heather Knight
Laramie Foothills Project Director
The Nature Conservancy
Laramie Foothills Project
1235 Cherokee Park Road
Livermore CO 80536
(970) 416-8620

July 1st, 2005

Acknowledgment of Easement Documentation Report

Grantor and the Conservancy acknowledge that each has read the "Red Mountain Ranch-Wyoming Easement Documentation Report," dated July 1st, 2005 (the Report) and acknowledges that the Report accurately reflects the condition of the Property subject to the Conservation Easement as of the date of conveyance of the Conservation Easement.

THE NATURE CONSERVANCY,
a District of Columbia
non-profit corporation

By: _____

Its: _____

Date: _____

THE CITY OF CHEYENNE Wyoming
a municipal corporation

By: _____

Its: _____

Date: _____

Table of Contents

Conservation Easement Background Information

Ecological Site Description

Location and General Property Description

Biological Significance

Agricultural and Cultural Resources

Scenic and Recreational Values

Consistent Uses and Existing Condition

Inconsistent Uses and Existing Condition

Exhibit A: Property and Legal Description

Exhibit B: Maps

1. Laramie Foothills Mountains to Plains Map
2. TNC legal access from Colorado
3. Roads Map
4. Photo Points and GPS locations

Exhibit C: Photographs

Conservation Easement Background Information

The Nature Conservancy acquired the Red Mountain Ranch-Wyoming as part of a larger conservation efforts known as the Mountains to Plains Project. This project is a partnership among the Conservancy, Larimer County, City of Fort Collins, Legacy Land Trust, Great Outdoors Colorado and private ranchers and will conserve over 55,000 acres of land for conservation.

The Conservancy currently owns the approximately 1,800-acre Red Mountain Ranch-Wyoming property, located in Laramie County, Wyoming. The legal description of the property is as follows:

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

Township 12 North, Range 69 West of the 6th P.M.

- Section 18: All lying South of the Union Pacific Railroad Company Right-of-Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.
- Section 19: Lots 1, 2, 3 and 4 in Wyoming

Township 12 North, Range 70 West of the 6th P.M.

- Section 12: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.
- Section 13: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.
- Section 23: Lots 1, 2, 3, 4, in Wyoming.
- Section 24: Lots 1, 2, 3, 4, in Wyoming.

A more detailed survey legal description is included in Exhibit A.

The Conservancy, a District of Columbia non-profit corporation, plans to encumber the entire property with a conservation easement prior to the time of conveyance of the property to the City of Cheyenne (the "City"), a municipal corporation. The City, known as the Grantee, shall purchase the property from the Conservancy encumbered with the conservation easement.

The Property currently remains in a substantially undisturbed, natural state and has significant ecological and open-space values and provides significant relatively natural habitat for native plants and wildlife. The Property will contribute to the conservation of important significant relatively natural habitat for wildlife and plants, including particularly native foothills grasslands, mountain mahogany, skunkbush sumac and rabbitbrush shrublands, elk, deer, antelope, nesting raptors, migratory and breeding birds and mammals (known as the Conservation Values). In addition, the property harbors scenic and agricultural values worthy of protection. The Property lies adjacent to Red Mountain Ranch – Colorado, a property owned and managed as open space by Larimer County, Colorado, and the opportunity exists for cooperative and compatible management across the state boundary line, facilitating landscape-scale conservation. All of these natural elements and ecological values are of great importance to the City and to the people of the State of Wyoming, and are worthy of conservation.

The State of Wyoming has recognized the importance of private efforts toward the preservation of natural systems in the state by enactment of Wyoming Statute 34-1-201-207, Uniform Conservation Easement Act. The Conservancy is a private organization organized to protect and conserve natural areas and ecologically significant land for scientific, charitable and educational purposes, and is a "qualified organization" within the provisions of Section 170(h) of the Internal Revenue Code of 1986, as amended (the "IRS Code"), qualified to acquire and hold conservation easements and meets the requirements of the IRS Code as a Sec. 501(c)(3) exempt organization. Thus the Conservancy, as owner of the Property, owns the affirmative rights to identify, preserve, and protect in perpetuity its open space character and its significant relatively natural features and values. The property is identified in the Laramie Foothills Conservation Plan as a vital wildlife connection between high-elevation public lands and predominantly private low-elevation grasslands.

It is the intention of the conservation easement to preserve and protect in perpetuity and, in the event of their degradation or destruction, to enhance and restore the open space, agricultural, and significant relatively natural features and values of the property. It is further the specific purpose of the Easement to conserve important habitat for wildlife; to protect rare or unique native plants currently known or later identified; and to conserve the diverse forest, meadow, and riparian vegetative communities and the wildlife inhabiting these communities. In achieving these purposes, it is the intent of the Easement to permit the continuation of such uses of the property as may be conducted consistent with the Conservation Values protected herein.

The Property shall be operated and managed in accordance with a cooperative land management plan prepared by Grantee, the Conservancy and Larimer County Parks and Open Lands (County), which plan shall be initially agreed upon by December 31, 2007 and shall be updated at least every five years (Cooperative

Plan). The Cooperative Plan shall include but not be limited to guidelines for appropriate land stewardship, recreational uses, and public access.

Prior to the completion of the Cooperative Plan, as defined above, the Conservancy solely shall develop an Interim Management Plan to guide land use on the Property until such time as the Cooperative Plan is completed (Interim Plan). If the Cooperative Plan is not completed by December 31, 2007, the Conservancy will update the Interim Plan and it shall continue to guide land use on the Property until a Cooperative Plan is completed by the Grantee, the Conservancy and the County.

This easement documentation report is produced to document the condition, consistent and inconsistent uses on the property at the time of this conveyance, and to describe the Laramie Foothills Site within which the property is located, and to identify biological and cultural significance of the property. The property is further described by the attached Exhibits (A-C).

Directions to the Property

The Conservancy has been granted an access easement from Larimer County for annual easement monitoring and enforcement. This access is from the Colorado side of the border through the adjacent Red Mountain Ranch-Colorado property. The Conservancy must notify the County prior to accessing the Property, except in emergency situations. Directions are as follows: 125 North to Buckeye Road (82 Rd) west (Rawhide Exit). After about 5.5 miles, 82 Rd comes to a "T" intersection with 15 Rd. Head north (right) to 84 Rd. Take 84 Rd. west to 19 Rd. Head south to 21 Rd. Follow 21 Rd to the junction of 23 Rd. After about 1 mile, turn left into Red Mountain Ranch – Colorado property. Follow dirt access road to Property. See Map 2 for access route across Colorado property.

The property can also be accessed from the Wyoming side of the border with permission from the City, owners of the adjacent parcel known as the Belvoir Ranch. Directions are as follows. Start at junction of N. US Highway 287 and County Road 37, drive approximately 9.8 miles to Larimer County, Colorado and Laramie County, Wyoming line, continue on the same county road now known as the Granite Canyon Road or Harriman Road for another 0.5 miles where you cross the railroad tracks at the Harriman Siding on the UP railroad line, continue on for another 5.3 miles when the gravel road will change to black top, immediately at that location a black metal pipe gate and fence is located on the south side of the road, this being the access gate off of the Belvoir.

Ecological Site Description

The Property lies in the northeastern portion of the Laramie Foothills, a Nature Conservancy conservation site that contains one of the most extensive high-quality foothills ecosystems remaining along the Front Range of Colorado and harbors a diverse assemblage of globally and state-listed rare plants, high quality

natural plant communities, state-listed rare fish, federally threatened mammal sub-species and other species of interest (mammals, birds, insects).

The Laramie Foothills is a broad transition zone between the Colorado Piedmont, the western edge of the Great Plains, and the Southern Rocky Mountains. The site consists of the foothills along the eastern and southern flanks of the Laramie Mountains, which comprise the northern extension of the Front Range; extending north from Colorado into southern Wyoming. It is both a north-south transition between the Laramie Plains and the Colorado Piedmont, and an east-west transition between the Great Plains and the Rocky Mountains. Here, the east-west transition zone is the broadest and most gradual on the eastern slope of the Rocky Mountains north of Trinidad, Colorado. Furthermore, the site lies at the junction of two large ecoregions, the Southern Rocky Mountains and the Central Shortgrass Prairie. The overarching conservation theme of the Laramie Foothills site is to maintain this strategic and relatively undeveloped landscape connection between the Rocky Mountains and the High Plains.

Lying within a localized rain shadow, the eastern portion of the site lies on a bed of sedimentary rock; pink and orange sandstones capped by grey and white limestone and shale outcrops (see Photo # 15). Extensive mixed-grass prairie grasslands cover rolling hills, and break away and blend into foothills shrublands on uplifted north-south formations of craggy ridges and hogbacks. Scattered Ponderosa pine woodlands are found on rocky outcrops and mesa tops. Abruptly the country grades into igneous formations; silver plume granite dominates the western portion of the site. Foothills shrublands cover the lower elevations and are dissected by winding river canyon systems. Ponderosa pine woodlands grade into the higher elevation forested systems reaching westward to the continental divide.

This is the North Fork of the Cache la Poudre Watershed. A broad, low elevation catchment; the eastern portion of which is predominantly spring fed with low lying seeps and wetlands and drainages. The western portion receives its precipitation predominantly from snow melt off of the continental divide.

The Red Mountain Ranch – Wyoming, lies within the Central Shortgrass Prairie portion of the Laramie Foothills Site. The property can be described as containing two pastures; the northern approximately 1,000 acres is known as the Rim Pasture and the southern approximately 800 acres is called the Big Hole. The Rim Pasture is dominated by low rolling hills that support good to excellent examples of mixed grass prairie running west from the eastern boundary. The western third of the Rim pasture grades from grasslands into foothills shrublands as the topography becomes more hilly and uplifted bedrock breaks the surface forming colorful sedimentary hogbacks; red sandstone with grey limestone and shale capping. These shrublands are dominated by good examples of Mountain mahogany shrublands at the higher elevations and on the steep slopes and rabbitbrush, snowberry and skunkbush sumac shrublands are found in the draws

and drainages. The Big Hole dominates the southern portion of the property. Here the rolling high plains prairie drops sharply off forming the head of a large depression rimmed on the east and west by dramatic north-south running hogbacks; mesas jut up out of the bottom. Ponderosa pine, Rocky Mountain juniper, and foothills shrublands, mostly mountain mahogany, cover the rugged slopes and tops of hogbacks and mesas. The occasional pinon pine, limber pine and Douglas fir can also be found. The deeper soils of the basin floor are once again mixed-grass prairie and the draws are lined with diverse foothills shrublands; rabbitbrush, skunkbush sumac, and mountain mahogany. Two natural springs are found on the entire property and they support wetland species and provide important natural watering sources for wildlife. All of these communities provide unfragmented habitat for species such as elk, mule deer, pronghorn, nesting raptors, a diversity of migratory and breeding songbirds and mammals.

Agricultural and Cultural Resources

There is a strong economic and cultural tradition of agriculture in Larimer County, Colorado and Laramie County, Wyoming. Much of the private land within the Laramie Foothills is currently utilized for agricultural production, primarily rangeland cattle grazing and hay production. A goal of the Laramie Foothills partners is to ensure that the site plays a fundamental role in sustaining compatible agriculture and thus that the natural heritage on the Front Range of Colorado and Wyoming is preserved. This is increasingly threatened by fast paced ex-urban population growth and development.

The Laramie Foothills also contains significant cultural resources including ruts from the Overland Trail, signature rocks, and stage stations. The Overland Trail was the historic wagon route that connected the Oregon Trail with the South Platte River drainage and the Santa Fe Trail. Pre-dating this history of course is a rich Native American and pre-history which has been protected by the private land tenure in the site. Of particular interest, is the Lindenmeier Site, which is located on the adjacent Soapstone Ranch and has been described as one of the most important early-human sites in North America. The site was declared a National Historical Landmark in 1984. Other important features include teepee rings, buffalo jumps and wallows, burial sites, and caches.

A detailed assessment of the cultural and historic values is planned for Red Mountain Ranch-Wyoming. Thus far numerous teepee rings are found along the canyon rim of the Big Hole, an agate mine is known to have been located and operated near spring #13, and remnants of old structures associated with the historic cattle ranching operation remain on the property.

Scenic and Recreational Values

The low density and private agricultural land tenure of a large portion of the Laramie Foothills has resulted in large intact healthy landscapes that provide functional working landscapes, high quality and undisturbed habitat for wildlife,

and expansive vistas. These scenic values become more rare and valuable as landscapes are built out; like those along the rest of Colorado's and parts of Wyoming's Front Range.

Red Mountain Ranch-Wyoming and the other neighboring protected lands, including adjacent public land held by Larimer County (Red Mountain Ranch-Colorado), the City of Ft. Collins (Soapstone Ranch), and the City of Cheyenne (Belvoir Ranch) create an unfragmented viewshed reminiscent of pre-settlement conditions.

Numerous recreational opportunities exist or are planned in the Laramie Foothills on public lands. This landscape if well managed will provide opportunities for land managers to exemplify the compatibility of both recreational and other land management activities, such as grazing. The historic agricultural land use has always meant that human impacts across this site have been minimal and localized. Therefore any change in human use will be significant and could have impacts on biotic and abiotic factors. It will be important for recreational opportunities to be well planned and managed with the goals of protecting conservation values and maintaining functional working landscapes in mind. Passive recreational opportunities such as hiking, wildlife viewing and horse back riding could be used to connect people to place and build support for future conservation and stewardship. Also involving citizens in ongoing land management activities provides a unique opportunity for people to experience a place and give back a little of themselves at the same time. The use of existing two-tracks for access is a simply way to minimize potential negative impacts.

The City plans to provide recreational opportunities on Red Mountain Ranch-Wyoming and the adjacent Belvoir Ranch. An Interim Plan provides for limited guided public use until December, 2007 when it is anticipated that the City, County and Conservancy shall have developed a Cooperative Plan that shall protect the conservation values and will also maintain land stewardship activities and recreational activities.

Current Conditions

This section is a series of paired statements, beginning with provisions in the easement then comparing each provision with what was observed during field work conducted for this report. This section provides a concise review of the current condition of the property as it relates to the exact conservation easement consistent and inconsistent uses.

A. Consistent Uses and Existing Condition

The following uses and practices by Grantee, though not an exhaustive recital of consistent uses and practices, are consistent with the Easement. Certain of these consistent uses and practices are identified as being subject to specified conditions or to the requirement of and procedures for prior approval by the Conservancy and procedures for such prior approval are provided below. The remainder of these consistent uses shall not be precluded, prevented, or limited by the Easement.

The property was visited most recently by the Conservancy and the City on June 21st, 2005, and the attached maps and photographs illustrate the current condition.

A. Education Programs.

Easement Provision: Educational programs, natural history interpretation, and scientific research, provided such activities are conducted according to the Interim Plan, as subsequently replaced by the Cooperative Plan (the "Plan"), and in a manner that does not have adverse impacts on the Conservation Values.

Existing Condition: Activities thus far have had no detrimental impact on the Conservation Values. Prior to 2004 no education programs were conducted on the property. Occasionally the landowner would invite local experts to conduct surveys or scientific research on the property. Since 2004 a very limited number of trips have been conducted by either the City, the County or the Conservancy for the purpose of either surveying and documenting the condition, conservation and other values on the property, planning or conducting ongoing land management, or interpreting the natural and human history of the site to a small guided groups of targeted community members (e.g., politicians, funders, staff, media). Formal access agreements have facilitated this use. Upon execution of the conveyance of the property to the City, new access agreements will be in place between these parties and the Interim Plan will control these activities. All vehicular use has been limited to the existing two-tracks on the property.

B. Recreational Activities.

Easement Provision: Non-commercial, non-motorized passive recreational activities, such as horseback riding, hiking, cross-county skiing, bicycle riding, and other similar low-impact recreational uses, to be enjoyed by the Grantee and the public, in accordance with the Plan. Fishing and hunting are likewise permitted, so long as they are undertaken in compliance with applicable state and federal laws

and regulations and pursued in a manner that does not substantially diminish or impair the Conservation Values.

Existing Condition: Activities thus far have had no detrimental impact on the Conservation Values. Prior to 2004 no recreational activities were conducted on the property, except that occasionally invited by the private landowner to very small groups of family, friends and associates. These activities have been limited to hiking, horseback riding and hunting. Since 2004 a very limited number of guided field trips have been conducted by either City, County or Conservancy staff on the property. Formal access agreements have facilitated these activities. Upon execution of the conveyance of the property to the City new access agreements will be in place between these parties and the Interim Plan will control these activities. All vehicular, pedestrian and equestrian use has been limited to the existing two-tracks on the property. Starting in summer of 2005 a maximum of 6-8 trips per party per year has been allowed on the property.

C. Roads.

Easement Provision: Maintenance and repair of existing roads, as documented in the Report, provided no roads shall be paved or oiled or have calcium carbonate applied or otherwise be improved with chemical coatings or other non-natural materials.

Existing Condition: All roads on the property are of native geology and are characterized as two-tracks ranging from approximately 10 to 20 feet wide. Map 3 shows road locations-indicated by red dashed lines. All roads above the Big Hole rim are well vegetated, predominantly by native species along the sides and down the center strip (see Photo # 12). The road below the rim, in the Big Hole, is the same except the center strip is partially vegetated (see Photo #18). It appears that these roads were historically created by use alone, except for the steep part of the road rising up to the big hole rim which was probably bladed in to the cliff line. The amount of historic use has required little ongoing active maintenance.

D. Temporary Viewing Area.

Easement Provision: The development of one small, unpaved, temporary stopping site to accommodate limited guided public access as specified in the Plan, provided (i) the area shall not be paved or oiled or have calcium carbonate applied or otherwise be improved with chemical coatings or other non-natural materials, (ii) the area shall be restored with native vegetation after the guided public access use is terminated, and (iii) the area shall not be located directly along the rim of the canyon.

Existing Condition: No viewing area currently exists on the property.

E. Motorized Vehicular Access.

Easement Provision: Motorized vehicular access on existing roads, as documented in the Report, for property maintenance, management, patrol, and emergency.

services, by the Grantee and/or its personal representatives and assigns. Limited off road use by motorized vehicles is permitted only for weed control, prescribed burns for ecological purposes, and for emergency purposes, provided impacts to the Conservation Values are minimized. The Easement expressly prohibits public vehicular access.

Existing Condition: All vehicular use has been limited to the existing roads on the property except for activities associated with the ongoing agricultural operations whereby off road use is required to maintain or repair fences, stock tanks or springs or to spray non-native weed species. Off road use has been kept to a minimum and hence no sign of overuse was observed on the property. In fact vehicular use on existing roads has also been minimal as indicated by the vegetation along the edges and in the center strip.

F. Trails.

Easement Provision: Construction of unpaved trails associated with public non-motorized recreation, provided such trails are located and constructed according to the Plan.

Existing Condition: No trails currently exist on the property.

G. Signage.

Easement Provision: Installation of small directional and interpretive signage along the existing roads, as documented in the Report, provided no sign is lighted.

Existing Condition: No signs currently exist on the property.

H. Grazing.

Easement Provision: Grazing and pasturing horses, cattle, mules, sheep, and llamas, provided that range conditions shall be maintained at, or improved from, those documented in the Report. Grazing of other livestock species shall be subject to prior approval by the Conservancy.

Existing Condition: Historically the property has been grazed by range cattle and sheep. The Property is not currently grazed by the owner, however because there is no fence line separating the property on the Colorado-Wyoming line, cattle do sometimes travel up from Colorado and graze or water temporarily on the property. There are no signs of overgrazing on the property. The native grasslands (see Photos # 2-4, 10, 11-13, 18, 24-25) and shrublands (see Photos # 5-8, 15, 19-20, 21) are in good to excellent condition. A diversity of native species is observed, the species appear to be reproductive and healthy producing flowers and seed, there is no over accumulation of litter, and no abnormal extent of bare ground. Few non-native plant species occur and those that do are limited to small isolated patches. Dalmatian toadflax however in the shrublands if not managed may expand and reduce the health and condition of that native communities in the future. A few standing dead junipers and Ponderosa pines were observed on the slopes above

the Big Hole. These are probably due to fire or disease and are probably typical and expected in this landscape at this current extent. The wetlands (see Photos # 9, 19-20) associated with the springs are in good condition. Localized non-native species are found at each mixed with native species. Ongoing management should control the spread of these non-native species.

I. Fencing.

Easement Provision: Maintenance, repair, and, if destroyed, reconstruction of existing fencing, as documented in the Report, and the construction of new fences; provided that boundary or pasture-division fences shall not unduly restrict or exclude wildlife use of the Property.

Existing Condition: The property is not entirely fenced. A 4-strand barbed wire fence with metal and wooden posts marks approximately the northern portion of the western property line (see Photos # 1 & 2). This fence ends as the topography drops off steeply to the south into the hogback/shrubland country. A 6-strand barbed wire fence with metal and wooden posts marks the northern boundary running between the property boundary and the UP right of way and then the along the adjacent Belvoir Ranch boundary (see Photos 22 & 23). The eastern fence line is a 7-strand barbed wire and or barbed wire/sheep wire fence with metal and wooden posts (see Photo # 24). The remaining boundary of the property remains unfenced. An internal 4-strand barbed wire pasture fence separates the property into a northern rim pasture and southern big hole pasture (indicated by the straight line seen on Map 3). This fence ties into the rough topography and therefore does not connect completely from one side of the property to the other.

J. Management of Noxious Weeds and Pests.

Easement Provision. Use of agricultural chemicals for the following purposes and under the following conditions:

1. For the control of noxious weeds, as required by Wyoming state law, and for the control of other invasive exotic plant species; provided that chemical herbicides may be used only in those amounts and with a frequency of application that constitute the minimum necessary for control; and that the herbicide is not applied by aerial spraying.
2. For the control of agricultural or forest pests, subject to prior approval by the Conservancy.

Existing Condition: Small isolated patches of non-native plant species were observed on the property including Canada thistle, wild licorice, Dalmatian toadflax, houndstongue, Jim Hill mustard, and common mullein. Dalmatian toadflax may be starting to spread on the property, especially in the mountain mahogany shrublands in the western part of the property. Large expanses of the property appear to be weed free. Historically the landowner has selectively sprayed or used grazing to control all of these species except for Dalmatian toadflax which has newly arrived.

The previous owner also sprayed a native species, larkspur, which contains toxins that are a threat to domestic cattle. No aerial spraying nor other chemical pest control has been known to have been used on the property.

K. Biological Control Agents.

Easement Provision: Use of biological weed and insect control agents, subject to prior approval by the Conservancy.

Existing Condition: None are known to have been used on the property.

L. Timber Harvest.

Easement Provision: The selective harvesting of timber only for the following purposes: controlling forest disease; protecting persons or property from the hazards of falling trees or branches or wildfire; providing firewood for domestic use on the Property; and enhancing wildlife habitat. These conditions apply to both living and standing dead trees.

Existing Condition: No timber harvest has been observed or known to have occurred on the property, except perhaps for the historic use of juniper for fence posts.

M. Water Rights.

Easement Provision: Grantee shall have the right to continue the historic use of the Water Rights on the Property (as described in the Report) and to maintain, repair, and if destroyed, reconstruct any existing facilities related to the Water Rights (such as ditches, wells and reservoirs) unless the Conservation Values of the Property would be adversely impacted thereby, as determined by the Conservancy in its sole judgment. Grantor's use of the Water Rights on the Property is subject to the reservation recorded in Laramie County at Reception # 40689 whereby Larimer County reserves to itself and its assigns all rights to use of the existing supply of water from Spring #19, as may be permitted by law, serving an existing stock tank on the County's adjacent property including the reasonable right of entry for the County to inspect the spring, maintain existing structures for the spring and delivery of water, provided that the County will not develop the spring to increase the historic water flow.

Existing Condition: There are two adjudicated springs on the property; known as spring #13 (see Photo 7; GPS 004) and spring #19 (see Photo 20; GPS 013). Both springs are developed and provide water for domestic livestock; a metal tank is located at spring #13 and a metal tank is located on the Colorado side of the border below spring # 19 (see Photo 19). Spring #19 is fenced out. Both springs are also accessible to wildlife. Three other stock tanks exist on the property (see Photo # 16: depicting the eastern most). These are filled by pumping water off of the adjacent Belvoir Ranch at a location north of Interstate 80 some 5-6 miles away. These tanks are filled by below ground black plastic pipe and are drained to protect

them from freezing when not in use. Overflow from these tanks has created an adjacent small wet area.

Unlawful Activities.

Easement Provision: Any activity or use on the Property that violates any applicable federal, state, county, or local law, rule, ordinance, or regulation is prohibited.

Existing Condition: There are no activities or use on the Property that violates any applicable federal, state, county, or local law, rule, ordinance, or regulation.

B. Inconsistent Uses and Existing Condition

The following uses and practices on the Property shall be prohibited, except as otherwise specifically provided for the Consistent Uses of the Easement. The property was visited most recently by the Conservancy and the City on June 21st, 2005, and the attached maps and photographs illustrate the current condition.

A. Toxic or Hazardous Materials.

Easement Provision: The dumping or other disposal, or other than in the normal course of ranch use, the storage of toxic and/or hazardous materials.

Existing Condition: No toxic or hazardous materials were observed on the property.

B. Non-compostable Refuse.

Easement Provision: Dumping or other disposal of non-compostable refuse, wildlife-attracting materials, or any other material which could reasonably be considered debris, including the establishment of a landfill.

Existing Condition: No non-compostable refuse, wildlife attracting materials or debris was observed on the property.

C. Conservation Values.

Easement Provision: The change, disturbance, alteration, or impairment of the Conservation Values.

Existing Condition: Conservation values exist on the property and are described and documented herein.

D. Septic Effluent, Sewage, Animal Waste.

Easement Provision: The application, storage or placement on the Property of domestic septic effluent, municipal, commercial or industrial sewage sludge, or animal waste created from intensive livestock operations on other properties.

Existing Condition: Septic effluent, sewage and animal waste have not been applied, stored or placed on the Property.

E. Non-native Plant Species.

Easement Provision: Conversion of native vegetation to exotic cover species or the introduction of non-native plant species; farming, plowing or any type of cultivation is prohibited.

Existing Condition: There is no evidence of conversion of native vegetation to exotic cover species. Non-native plant species exist in small patches on the property but have not been purposefully introduced. There is no evidence of farming, plowing or other cultivation.

F. Non-native Animal Species.

Easement Provision: Introduction or release of nonnative animal species.

Existing Condition: There is no evidence of introduction or release of non-native animal species on the property.

G. Livestock Feedlot.

Easement Provision: Establishment and operation of a livestock feedlot (which shall be defined for purposes of this Easement as a permanently constructed confined area or facility within which the land is not grazed or cropped annually for purposes of engaging in the business of the reception and feeding of livestock for hire) or any wild game farming or ranching facilities.

Existing Condition: No livestock feedlot was observed on the property.

H. Mineral Exploration and Extraction.

Easement Provision: Filling, excavating, dredging, mining, drilling, and the exploration for or extraction of minerals, hydrocarbons, soils, sand, gravel, rock, or other materials on or below the surface of the Property, except for purposes specifically permitted in this Easement.

Existing Condition: There was no evidence of filling, excavating, dredging, mining, drilling, and the exploration for or extraction of minerals, hydrocarbons, soils, sand, gravel, rock, or other materials on or below the surface of the property.

I. Sub-Division.

Easement Provision: Division, subdivision, or de facto subdivision of the Property.

Existing Condition: The property is unfragmented and not subdivided.

J. Buildings and Utilities.

Easement Provision: Construction or placement of any buildings, temporary living quarters of any sort, mobile homes, signs, billboards or other advertising materials, utility towers, wind powered electricity generators, or other structures.

Existing Condition: There was no observation of buildings, temporary living quarters of any sort, mobile homes, signs, billboards or other advertising materials, utility towers, wind powered electricity generators, or other structures on the property; except for the remains of a historic single windmill (see Photo 22, GPS location 015).

K. Roads and Trails.

Easement Provision: Construction of roads or vehicle trails.

Existing Condition: No observation of newly constructed roads and trails.

L. Road and Off Road Vehicle Use.

Easement Provision: Use of snowmobiles, all-terrain vehicles, motorcycles, or other motorized vehicles on or off roads, trails or travelways.

Existing Condition: No evidence of off road motorized vehicle use. A minimal amount of off road use has occurred on the property for the purposes as allowed to maintain the agricultural operations; fence, water and selectively spray weeds. There was no physical evidence however of this use resulting in negative impacts to the conservation values.

M. Removal or Destruction of Native Vegetation.

Easement Provision: Cutting, removing, or destruction of native vegetation, except by grazing, haying, non-commercial harvest of timber, herbicide application, or approved land management techniques such as periodic burning that are outlined in the Plan.

Existing Condition: No evidence of cutting, removal or destruction of native vegetation was observed on the property.

N. Animal Trapping.

Easement Provision: Animal trapping for purposes other than control of predatory animals which demonstrably have caused damage to property. Trapping methods employed must be selective for the target species and administered as humanely as is possible.

Existing Condition: No animal trapping has occurred on the property.

O. Shooting Ranges.

Easement Provision: The establishment or operation of any shooting ranges.

Existing Condition: Shooting ranges do not exist on the property.

P. Chemical Applications.

Easement Provision: Application of biocides, herbicides, defoliants, chemical fertilizers, or other chemicals.

Existing Condition: There has not been use of biocides, defoliants, chemical fertilizers or other chemicals on the property, except for the selective use of herbicides to control non-native noxious weeds and larkspur.

Q. Changing of Topography.

Easement Provision: Changing the topography of the Property by placing on it any soil, dredging spoils, land fill, or other material, except as necessary to conduct authorized road and trail construction activities.

Existing Condition: The topography of the Property has not been changed by placing of any soil, dredging spoils, land fill, or other materials on it.

R. Commercial Activities.

Easement Provision: Establishment of any commercial activity, including but not limited to operating a commercial lodging, outfitting, guiding or guest ranch facility, except for agricultural, recreation, and scientific and public visitation activities permitted herein, including guided horseback riding. Any commercial uses which are allowed shall be conducted in a manner that is consistent with § 170(h) of the United States Internal Revenue Code and the Treasury Regulations adopted pursuant thereto, shall be consistent with the purposes of the Easement, and shall not adversely affect the Property's Conservation Values.

Existing Condition: No commercial activities have been conducted on the property.

S. Water Resources.

Easement Provision: Any new manipulation, diversion, or other alteration of natural water courses, wetlands, or other natural bodies of water, any new pumping of groundwater whether tributary or not, any new practice that degrades or destabilizes their natural banks or shorelines, or any other new development of water resources. Grantee shall not develop any conditional water rights for use on the Property.

Existing Condition: There was no observation of any new manipulation, diversion, or other alteration of natural water courses, wetlands, or other natural bodies of water, nor any evidence of new pumping of groundwater, nor any new practice that degrades or destabilizes their natural banks or shorelines, nor any other new development of water resources on the property.

T. Water Rights.

Easement Provision: The Water Rights may never (i) be changed to or used for municipal, industrial, commercial uses, or other new uses, (ii) be changed for use other than on the Property, (iii) be sold, leased, encumbered separately from the Property or otherwise legally separated from the Property, or (iv) have their points of diversion, or their type or place of use within the Property changed, except after a written determination by the Conservancy in its sole judgment that such changes do not impair the Conservation Values of the Property. No loss of any or all of the Water Rights through injury or abandonment, shall be considered a loss, severance or other transfer of the Water Rights from the Property for federal or state tax or other purposes.

Existing Condition: The current water rights have not been used on the property for any municipal, industrial, commercial or new uses. The water rights remain used on the property for agricultural purposes as they are adjudicated. The water rights have not been changed, leased, nor sold, nor have the points of diversion been changed such that they impair conservation values on the property.

Exhibit A

Property Description

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

Township 12 North, Range 69 West of the 6th P.M.

- Section 18: All lying South of the Union Pacific Railroad Company Right-of-Way as described in Warranty Deed recorded in Book 515, Page 362, Laramie County, Wyoming records.
- Section 19: Lots 1, 2, 3 and 4 in Wyoming

Township 12 North, Range 70 West of the 6th P.M.

- Section 12: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.
- Section 13: All lying South of the Union Pacific Railroad Company as described in Warranty Deed recorded Book 515, Page 362, Laramie County, Wyoming records.
- Section 23: Lots 1, 2, 3, 4, in Wyoming.
- Section 24: Lots 1, 2, 3, 4, in Wyoming.

TOGETHER WITH all corrals, fences, gates, cattle handling facilities, water tanks, windmills, scales, buildings, and other improvements owned by Seller now located on said property, including all fixtures of a permanent nature;

TOGETHER WITH all rights, title, and interest of Seller in and to easements, rights-of-way, and rights to same belonging and inuring to the benefit of the property;

TOGETHER WITH one hundred percent (100%) of all rights, title, and interest of Seller in and to all mineral rights or reversionary mineral rights owned by Seller in connection with the property; AND

TOGETHER WITH all leasehold interests owned by Seller in connection with the property.

Also known by the following surveyed legal description:

LEGAL DESCRIPTION OF PARCEL 1:

A PORTION OF SECTIONS 18 AND 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., AND A PORTION OF SECTIONS 12, 13, 23, AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., ALL IN THE COUNTY OF LARAMIE, STATE OF WYOMING BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

CONSIDERING THE COLORADO AND WYOMING STATE LINE BETWEEN MILE POST 59 AND MILE POST 61 TO BEAR NORTH 89°59'29" EAST ALSO BEING THE SOUTH LINE OF LARAMIE COUNTY, WYOMING AND THE NORTH LINE OF LARIMER COUNTY, COLORADO WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO; BEGINNING AT A POINT ON THE

COLORADO AND WYOMING STATE LINE, FROM WHICH MILE POST 56 BEARS SOUTH 89°56'32" EAST, A DISTANCE OF 11,274.92 FEET; THENCE NORTH 09°46'12" EAST, A DISTANCE OF 1053.43 FEET; THENCE NORTH 44°38'47" WEST, A DISTANCE OF 826.47 FEET; THENCE NORTH 64°05'39" WEST, A DISTANCE OF 2456.63 FEET; THENCE NORTH 44°50'48" WEST, A DISTANCE OF 3565.62 FEET; THENCE NORTH 56°57'37" WEST, A DISTANCE OF 2447.93 FEET TO A POINT ON THE NORTH LINE OF SECTION 13, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M.; FROM WHICH THE NORTHWEST CORNER OF SAID SECTION 13 BEARS NORTH 89°10'56" WEST, A DISTANCE OF 738.78 FEET; THENCE NORTH 00°00'23" EAST, PARALLEL WITH THE EAST LINE OF THE SOUTHWEST 1/4 OF SECTION 12, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 812.53 FEET TO THE SOUTH RIGHT-OF-WAY LINE OF THE UNION PACIFIC RAILROAD; THENCE NORTH 63°33'54" WEST, PARALLEL WITH AND 200 FEET SOUTHERLY FROM THE CENTERLINE OF THE UNION PACIFIC RAILROAD, A DISTANCE OF 208.82 FEET TO THE BEGINNING OF A CURVE, CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 3525.66 FEET AND A CENTRAL ANGLE OF 09°44'24", AND BEING SUBTENDED BY A CHORD WHICH BEARS NORTH 67°09'42" WEST, A DISTANCE OF 598.62 FEET; THENCE NORTHWESTERLY AND WESTERLY ALONG SAID CURVE, A DISTANCE OF 599.34 FEET TO A POINT OF CUSP ON THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 12; THENCE SOUTH 00°00'23" WEST, ALONG THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 12, A DISTANCE OF 1127.29 FEET TO THE NORTHWEST CORNER OF SAID SECTION 13; THENCE SOUTH 00°26'17" WEST, ALONG THE WEST LINE OF THE NORTHWEST 1/4 OF SAID SECTION 13, A DISTANCE OF 2621.78 FEET TO THE WEST 1/4 CORNER OF SAID SECTION 13; THENCE SOUTH 00°26'26" WEST, ALONG THE WEST LINE OF THE SOUTHWEST 1/4 OF SAID SECTION 13, A DISTANCE OF 2621.53 FEET TO THE SOUTHWEST CORNER OF SAID SECTION 13; THENCE NORTH 89°51'46" WEST, ALONG THE NORTH LINE OF THE LOTS 1 AND 2 OF SECTION 23, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 2713.37 FEET TO THE NORTH 1/4 CORNER OF SAID SECTION 23; THENCE SOUTH 89°52'05" WEST, ALONG THE NORTH LINE OF LOTS 3 AND 4 OF SAID SECTION 23, A DISTANCE OF 2523.67 FEET TO THE NORTHWEST CORNER OF SAID SECTION 23; THENCE SOUTH 02°48'19" WEST, ALONG THE WEST LINE OF LOT 4 OF SAID SECTION 23, A DISTANCE OF 1328.56 FEET TO THE CLOSING CORNER FOR SECTIONS 22 AND 23, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., SAID CORNER BEING ON THE COLORADO AND WYOMING STATE LINE; FROM WHICH MILE POST 61 BEARS SOUTH 89°59'29" WEST, A DISTANCE OF 1763.52 FEET; THENCE NORTH 89°59'29" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 5304.41 FEET TO THE CLOSING CORNER BETWEEN SECTIONS 23 AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., THENCE CONTINUING NORTH 89°59'29" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 3454.64 FEET TO MILE POST 59; THENCE SOUTH 89°56'32" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 1908.62 FEET TO THE CLOSING CORNER BETWEEN SECTIONS 19 AND 24, TOWNSHIP 12 NORTH, RANGES 69 AND 70 WEST OF THE 6TH P.M.; THENCE CONTINUING SOUTH 89°56'32" EAST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 2591.69 FEET TO THE TRUE POINT OF BEGINNING. COUNTY OF LARAMIE, STATE OF WYOMING. CONTAINING 923.74 ACRES, MORE OR LESS.

LEGAL DESCRIPTION OF PARCEL 2:

A PORTION OF SECTIONS 18 AND 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., AND A PORTION OF SECTIONS 12, 13, 23, AND 24, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., ALL IN THE COUNTY OF LARAMIE, STATE OF WYOMING BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

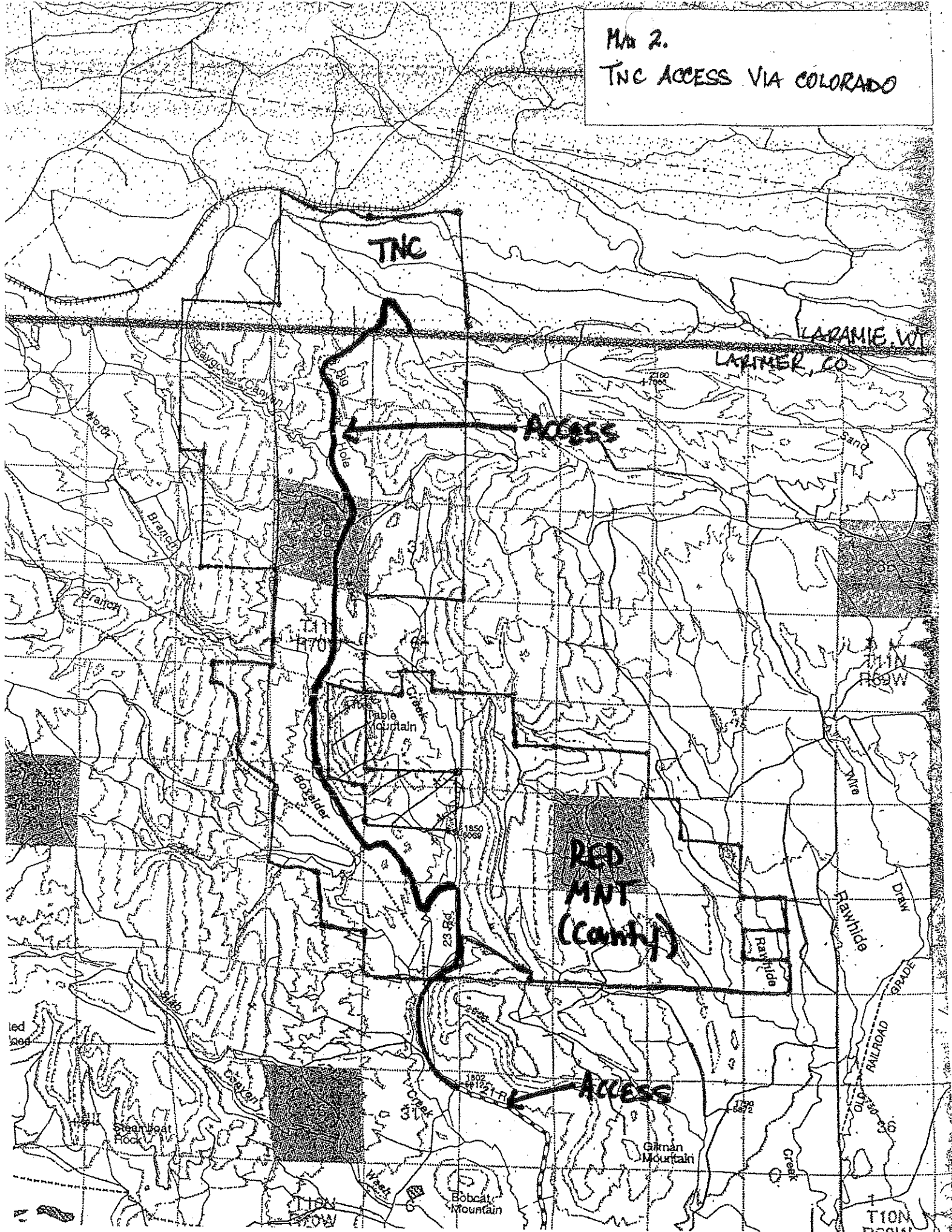
CONSIDERING THE COLORADO AND WYOMING STATE LINE BETWEEN MILE POST 59 AND MILE POST 61 TO BEAR NORTH $89^{\circ}59'29''$ EAST ALSO BEING THE SOUTH LINE OF LARAMIE COUNTY, WYOMING AND THE NORTH LINE OF LARIMER COUNTY, COLORADO WITH ALL BEARINGS CONTAINED HEREIN RELATIVE THERETO; BEGINNING AT A POINT ON THE COLORADO AND WYOMING STATE LINE, FROM WHICH MILE POST 56 BEARS SOUTH $89^{\circ}56'32''$ EAST, A DISTANCE OF 11,274.92 FEET; THENCE NORTH $09^{\circ}46'12''$ EAST, A DISTANCE OF 1053.43 FEET; THENCE NORTH $44^{\circ}38'47''$ WEST, A DISTANCE OF 826.47 FEET; THENCE NORTH $64^{\circ}05'39''$ WEST, A DISTANCE OF 2456.63 FEET; THENCE NORTH $44^{\circ}50'48''$ WEST, A DISTANCE OF 3565.62 FEET; THENCE NORTH $56^{\circ}57'37''$ WEST, A DISTANCE OF 2447.93 FEET TO A POINT ON THE NORTH LINE OF SECTION 13, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M.; FROM WHICH THE NORTHWEST CORNER OF SAID SECTION 13 BEARS NORTH $89^{\circ}10'56''$ WEST, A DISTANCE OF 738.78 FEET; THENCE NORTH $00^{\circ}00'23''$ EAST, PARALLEL WITH THE EAST LINE OF SECTION 12, TOWNSHIP 12 NORTH, RANGE 70 WEST OF THE 6TH P.M., A DISTANCE OF 812.53 FEET TO THE SOUTH RIGHT-OF-WAY LINE OF THE UNION PACIFIC RAILROAD; THENCE SOUTH $63^{\circ}33'54''$ EAST, PARALLEL WITH AND 200 FEET SOUTHERLY FROM THE CENTERLINE OF THE MAIN TRACK OF THE UNION PACIFIC RAILROAD, A DISTANCE OF 147.67 FEET TO THE BEGINNING OF A CURVE, CONCAVE TO THE NORTH, HAVING A RADIUS OF 3305.55 FEET, AND A CENTRAL ANGLE OF $27^{\circ}58'53''$, AND BEING SUBTENDED BY A CHORD WHICH BEARS SOUTH $75^{\circ}28'29''$ EAST, A DISTANCE OF 1598.33 FEET; THENCE SOUTHEASTERLY AND EASTERLY ALONG SAID CURVE, AND ALONG SAID RIGHT-OF-WAY LINE, A DISTANCE OF 1614.33 FEET; THENCE SOUTH $87^{\circ}29'29''$ EAST, ALONG SAID RIGHT-OF-WAY LINE, A DISTANCE OF 2872.76 FEET TO THE EAST LINE OF SAID SECTION 12; THENCE SOUTH $00^{\circ}28'50''$ EAST, ALONG THE EAST LINE OF THE SOUTHEAST 1/4 OF SAID SECTION 12, A DISTANCE OF 317.79 FEET TO THE NORTHWEST CORNER OF SECTION 18, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M.; THENCE NORTH $89^{\circ}30'51''$ EAST, ALONG THE NORTH LINE OF THE NORTHWEST 1/4 OF SAID SECTION 18, A DISTANCE OF 2540.90 FEET TO THE NORTH 1/4 CORNER OF SAID SECTION 18; THENCE SOUTH $89^{\circ}51'18''$ EAST, ALONG THE NORTH LINE OF THE NORTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2631.47 FEET TO THE NORTHEAST CORNER OF SAID SECTION 18; THENCE SOUTH $03^{\circ}40'06''$ EAST, ALONG THE EAST LINE OF THE NORTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2667.75 FEET TO THE EAST 1/4 CORNER OF SAID SECTION 18; THENCE SOUTH $00^{\circ}57'52''$ EAST, ALONG THE EAST LINE OF THE SOUTHEAST 1/4 OF SAID SECTION 18, A DISTANCE OF 2588.84 FEET TO THE SOUTHEAST CORNER OF SAID SECTION 18; THENCE SOUTH $00^{\circ}24'42''$ EAST, ALONG THE EAST LINE OF LOT 1 OF SAID SECTION 19, TOWNSHIP 12 NORTH, RANGE 69 WEST OF THE 6TH P.M., A DISTANCE OF 1231.46 FEET TO THE COLORADO AND WYOMING STATE LINE; FROM WHICH MILE POST 56 BEARS SOUTH $89^{\circ}56'32''$ EAST, A DISTANCE OF 8505.72 FEET; THENCE NORTH $89^{\circ}56'32''$ WEST, ALONG THE COLORADO AND WYOMING STATE LINE, A DISTANCE OF 2769.20 FEET TO THE TRUE POINT OF BEGINNING.

COUNTY OF LARAMIE, STATE OF WYOMING. CONTAINING 884.18 ACRES, MORE OR LESS.

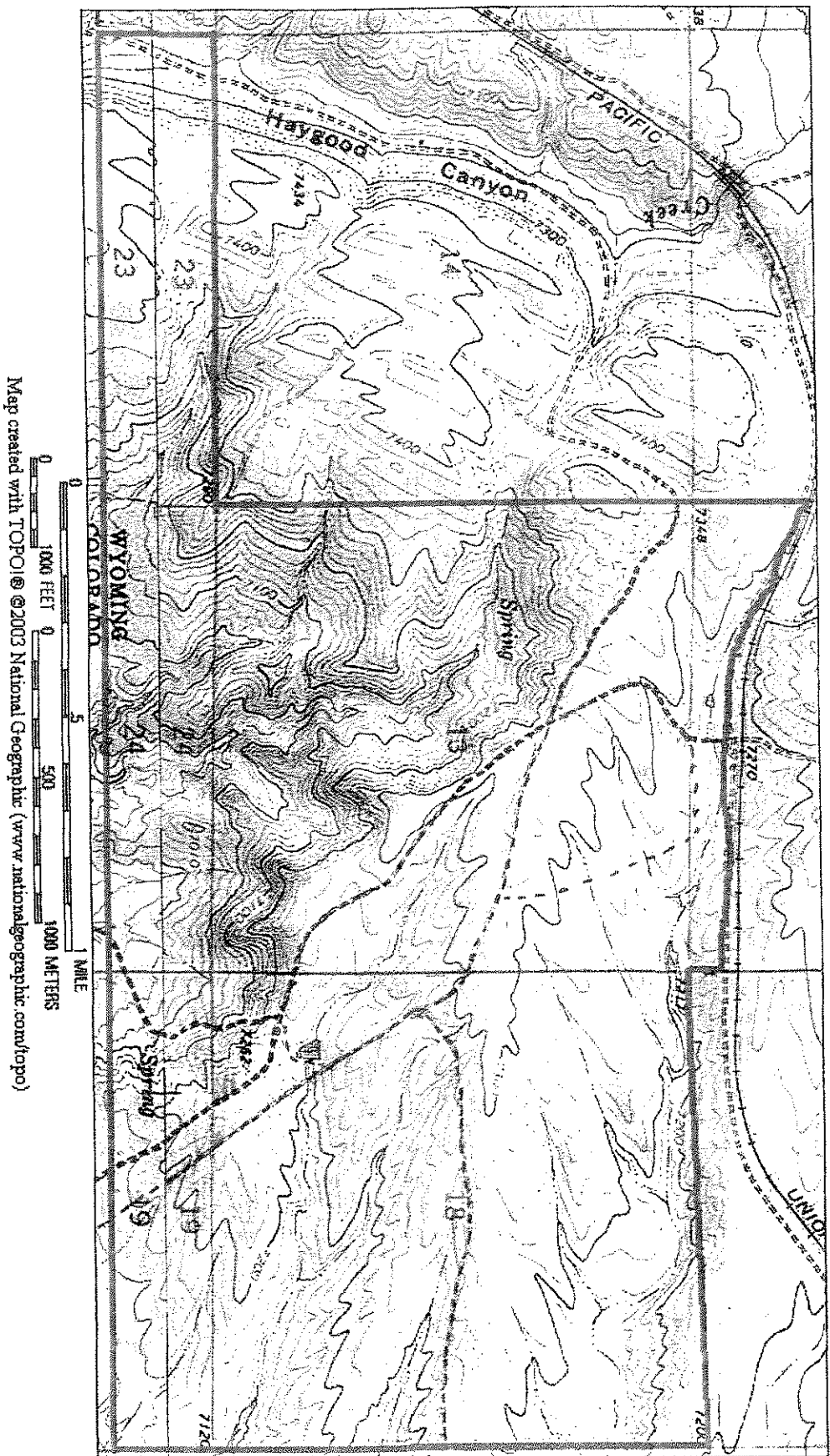
Exhibit B

Maps

Mar 2.
TNC ACCESS VIA COLORADO



MAP 3 : ROAD
Map of the Property

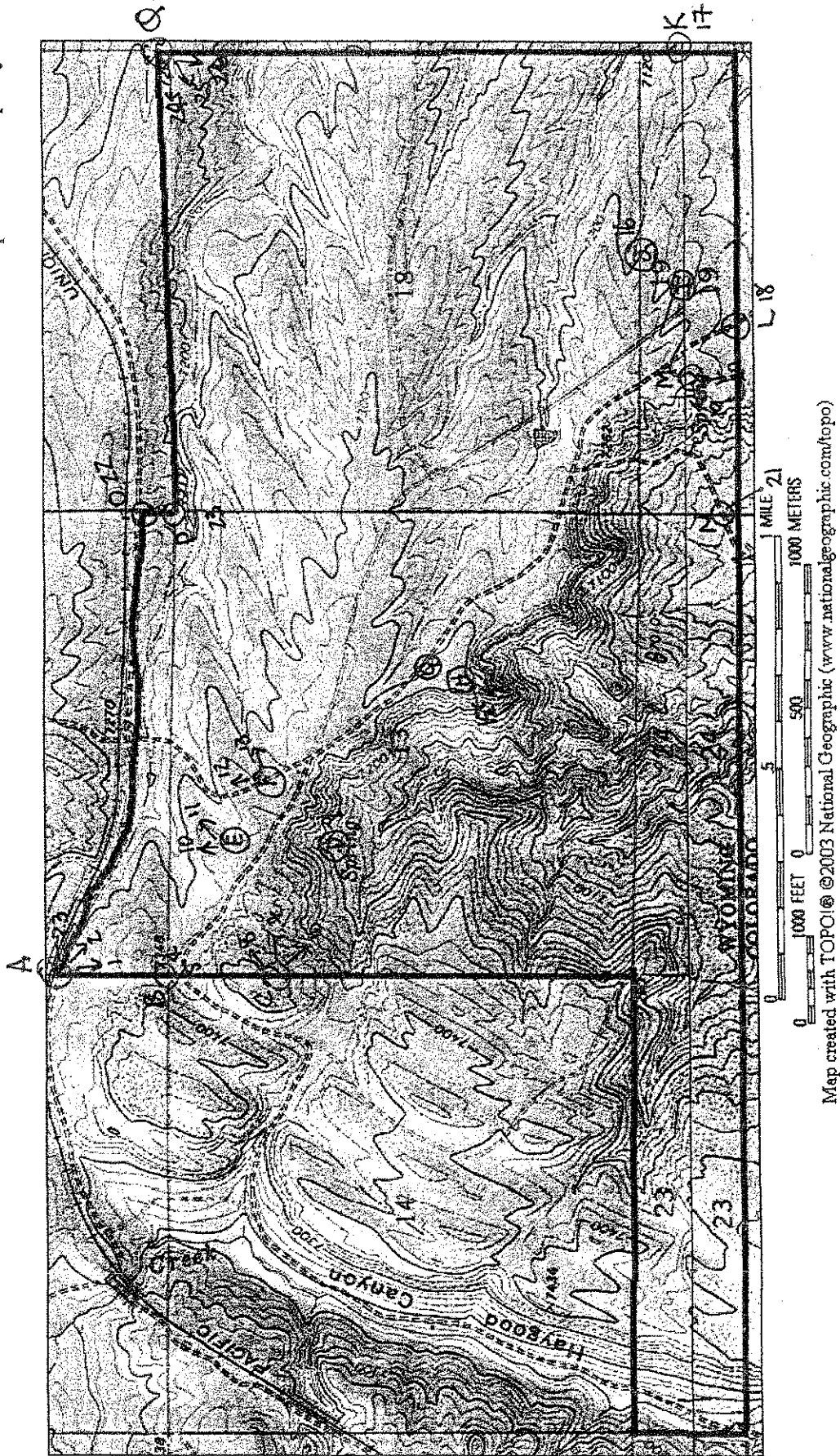


Map 4
Photo Points

A-Q: MAP/GPS POINT LOCATIONS

1-26: PHOTO POINT LOCATIONS

Exhibit C
Map of the Property



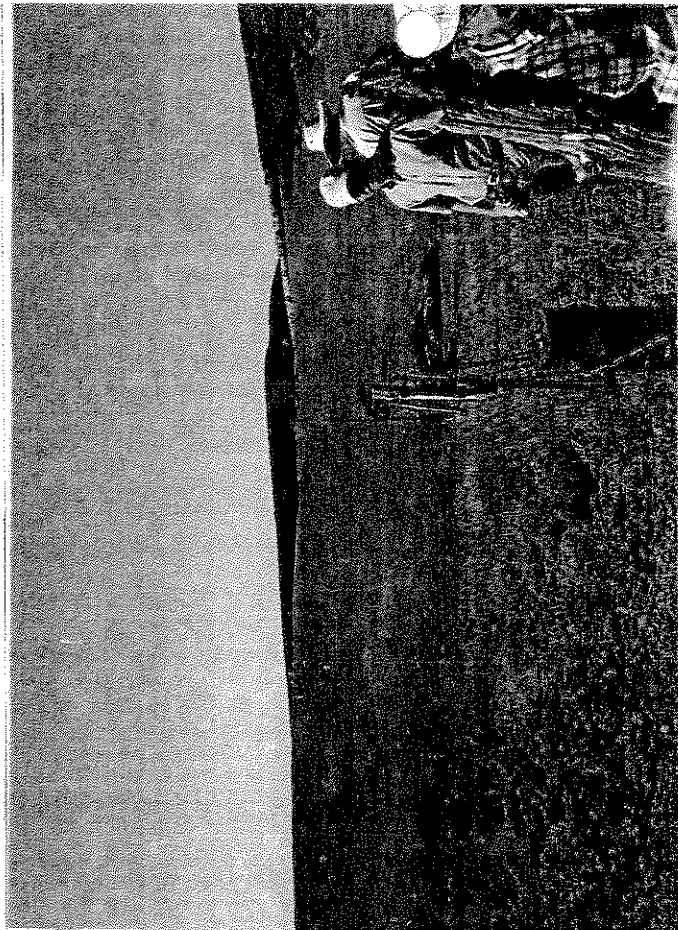
Map 4(a)
GPS+Photo Points

Exhibit C
Photographs

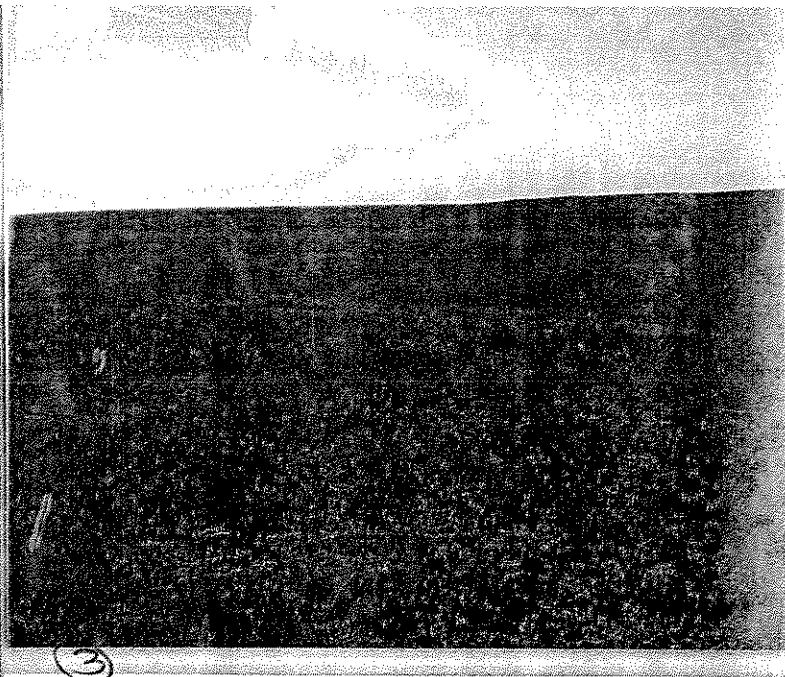
Red Mountain Ranch – Wyoming June 21st, 2005
EDR GPS Points and Photo Point Locations

Map Point #	GPS Point #	GPS Reading	Photo Point #s	Descriptor/Comment
A	001	N41° 01.167", W105° 11.483"	1-3	NW corner of property; including UP railroad ROW
B	002	N41° 00.981", W105° 11.484"	4	NW corner of section 13
			5	Gate on fence line at old two-track crossing looking NNE
C	003	N41° 00.767", W105° 11.485"	6-8	Example of shrublands
D	004	N41° 00.582", W105° 11.111"	9	Spring # 13
E	005	N41° 00.755", W105° 11.062"	10-11	Tipi rings on the rim above spring # 13
F	006	N41° 00.721", W105° 10.942"	12-13	Photo 12-potential stop on two-track for City Photo 13-looking NE toward windmill at junction of sections 13 and 18
G	007	N41° 00.458", W105° 10.765"		Gate in fence crossing two-track to rim
H	008	N41° 00.356", W105° 10.787"	14-15	Potential viewing point on rim for City
I	009	N40° 59.903", W105° 09.766"		Tee-post at half section mark on Colorado-Wyoming boundary
J	010	N40° 59.913", W105° 09.721"	16	Eastern most stock tank
K	011	N40° 59.902", W105° 09.162"	17	SE corner of property on Colorado-Wyoming line
L	012	N40° 59.900", W105° 10.003"	18	Looking SE towards SE corner of property-example of grasslands
M	013	N40° 59.940", W105° 10.064"	19-20	View from rim down onto spring # 19 and stock tank in Colorado
N	014	N40° 59.836", W105° 10.459"	21	View of sumac shrublands along drainage in Colorado adjacent to access road from Colorado
O	015	N41° 01.016", W105° 10.334"	22	Northern boundary, jog corner at windmill
P	016	N41° 00.946", W105° 10.334"	23	Northern boundary juncture of R69W & R70W
Q	017	N41° 00.964", W105° 09.211"	24-26	NE corner of property

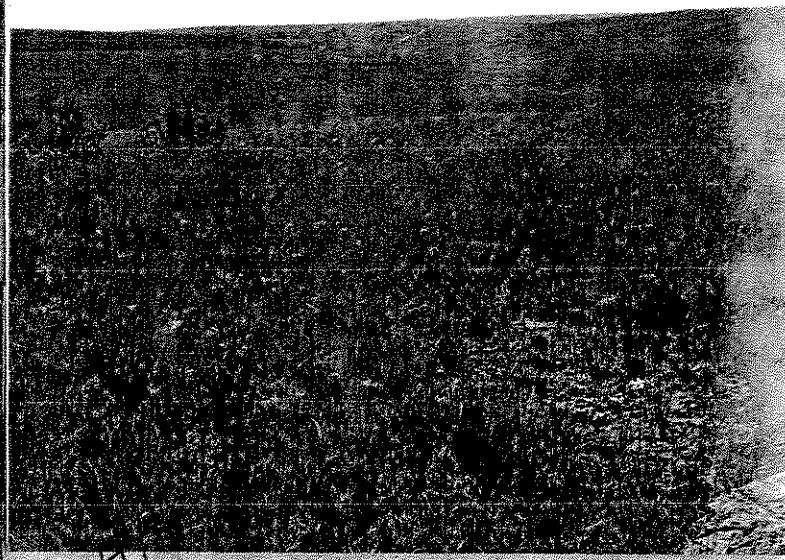
Garmin Venture Extrex, WGS 84



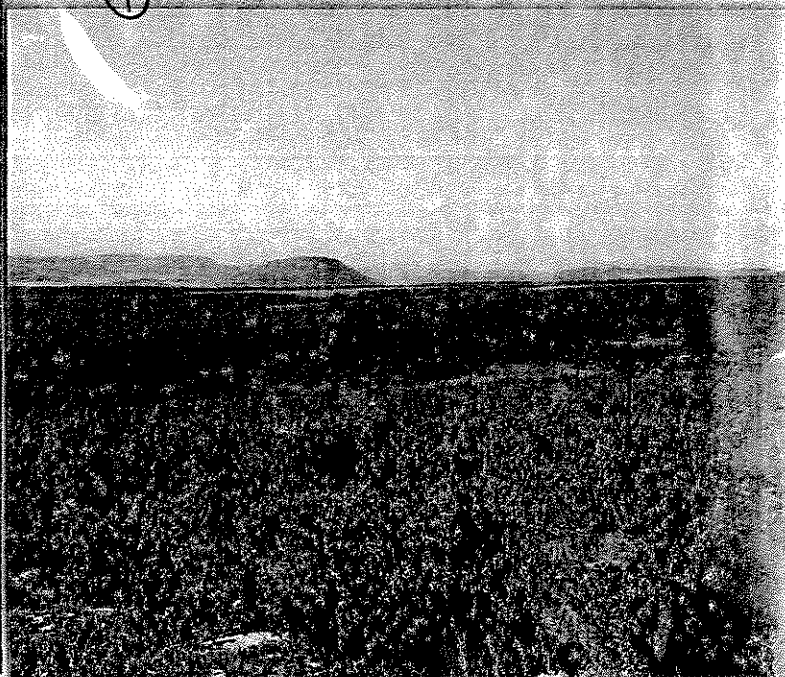
125
11

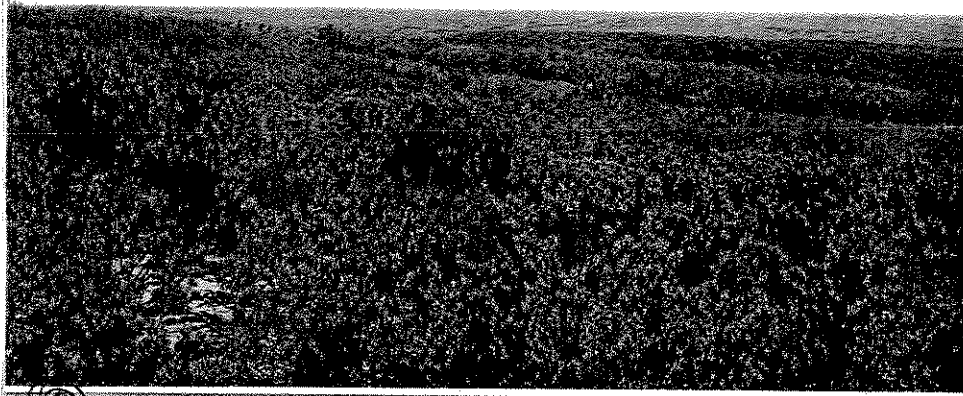


3

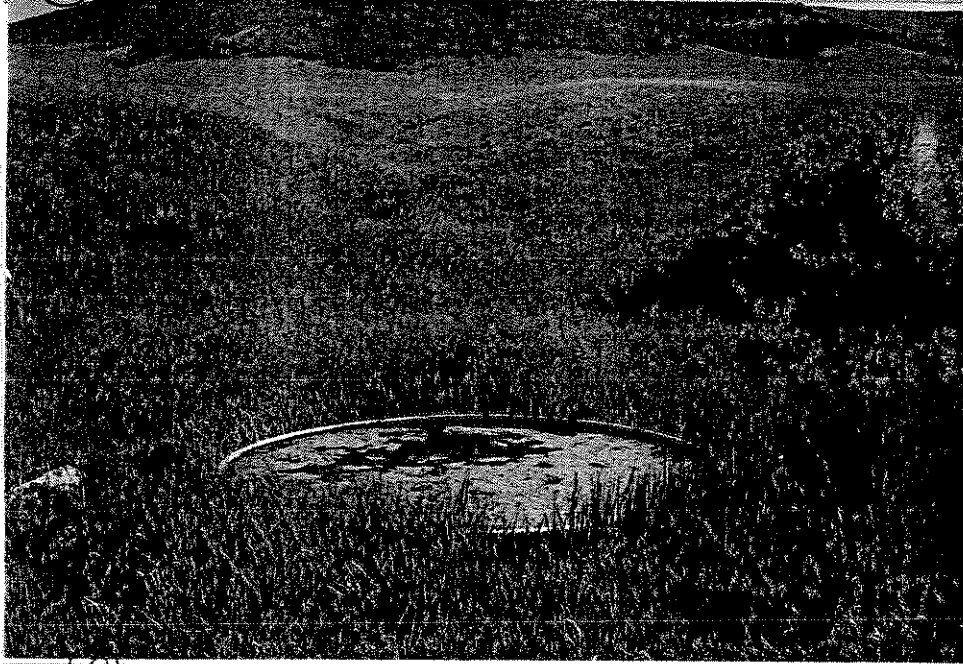


4

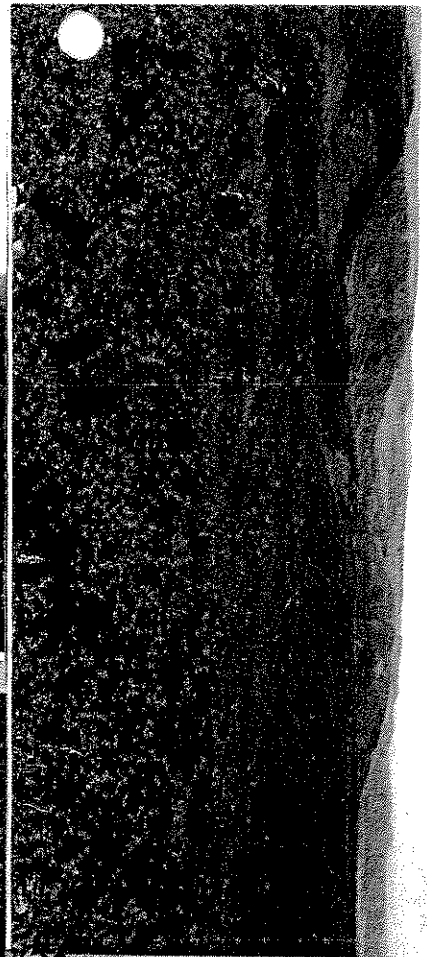
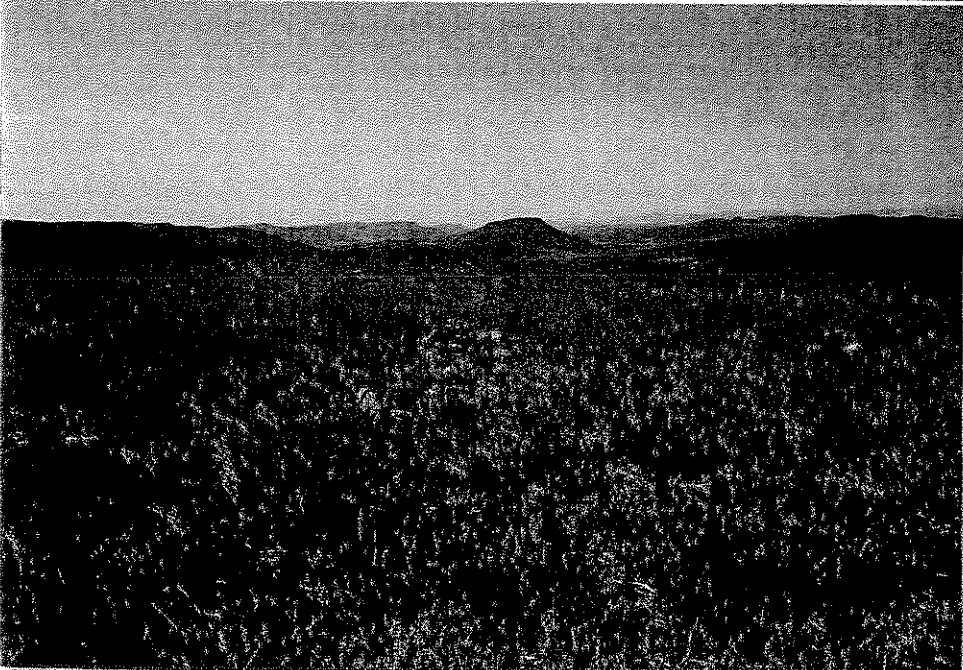




⑧

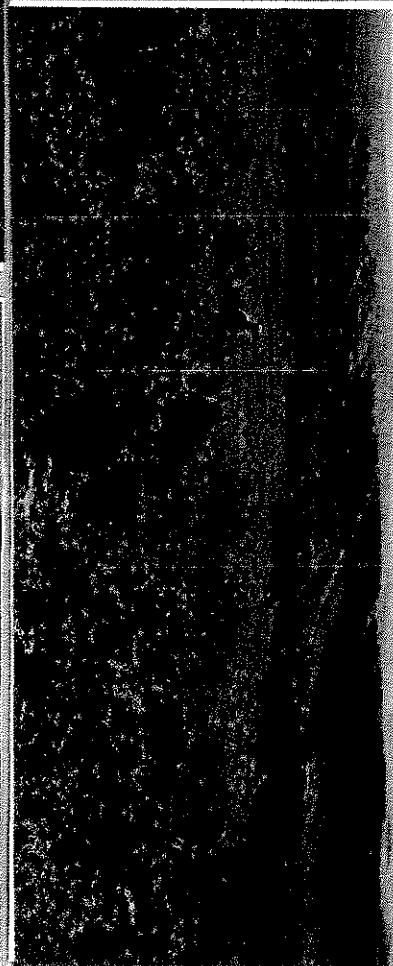


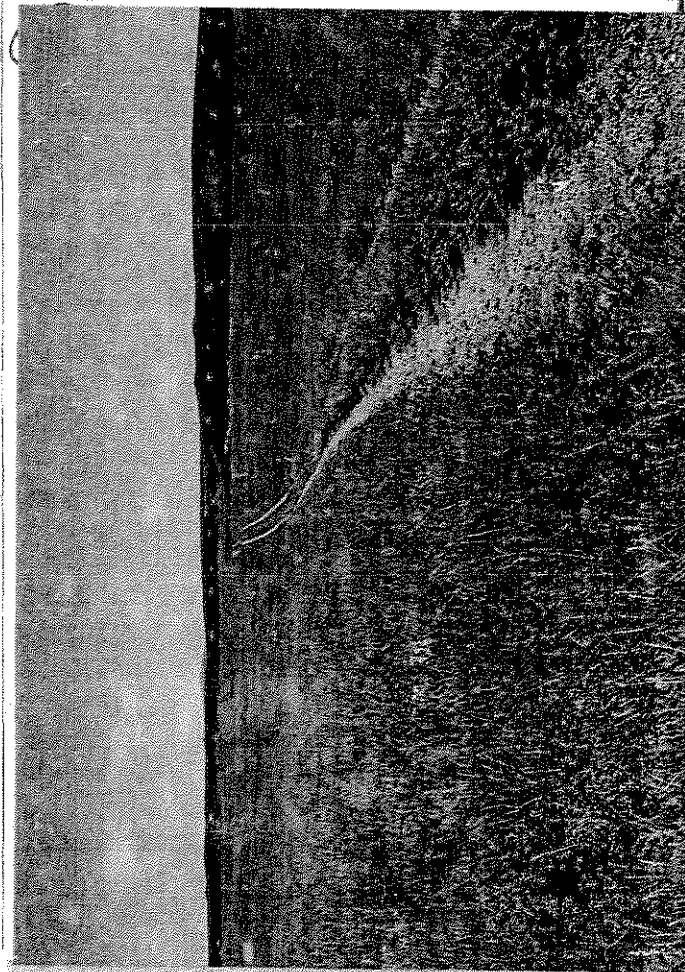
⑨



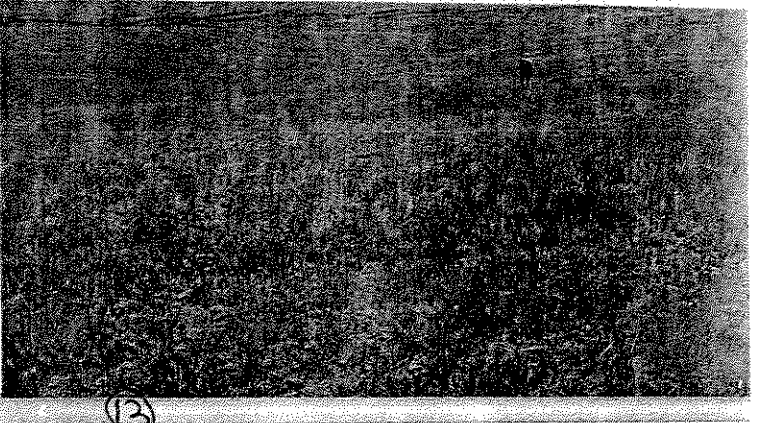
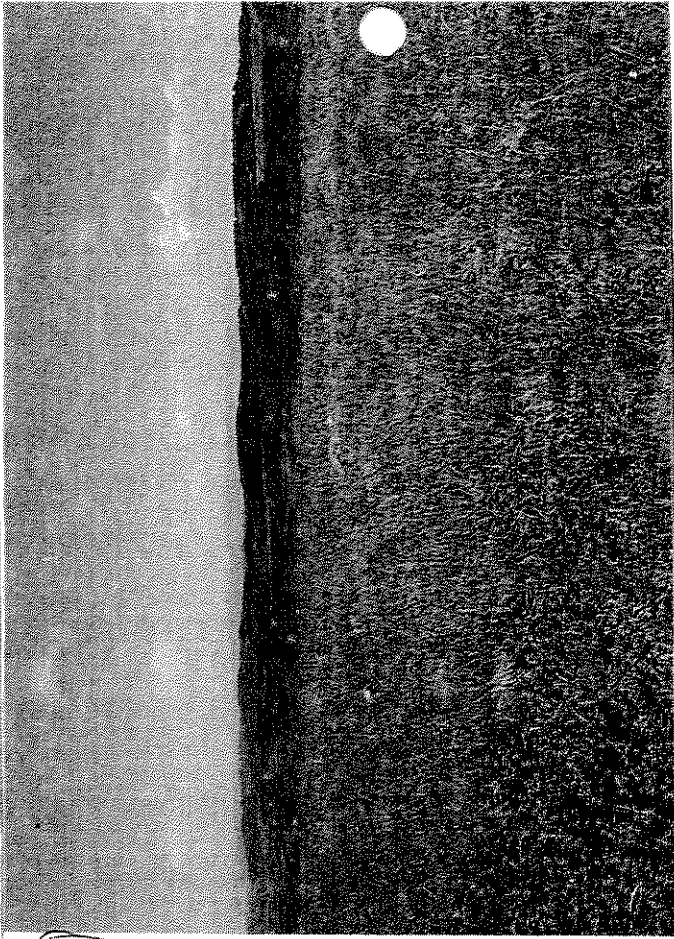
⑩

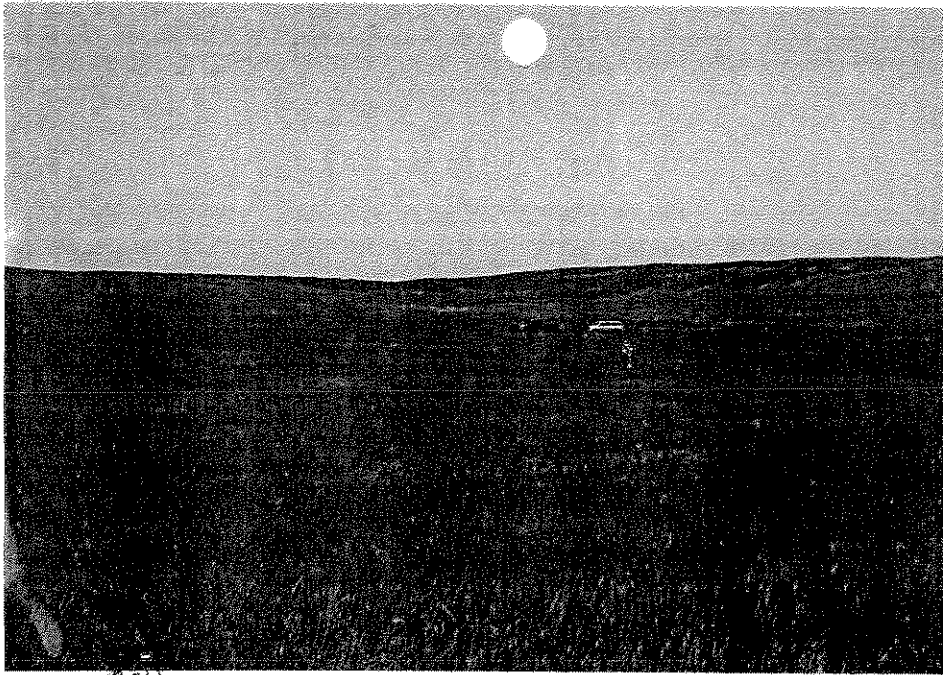
⑪



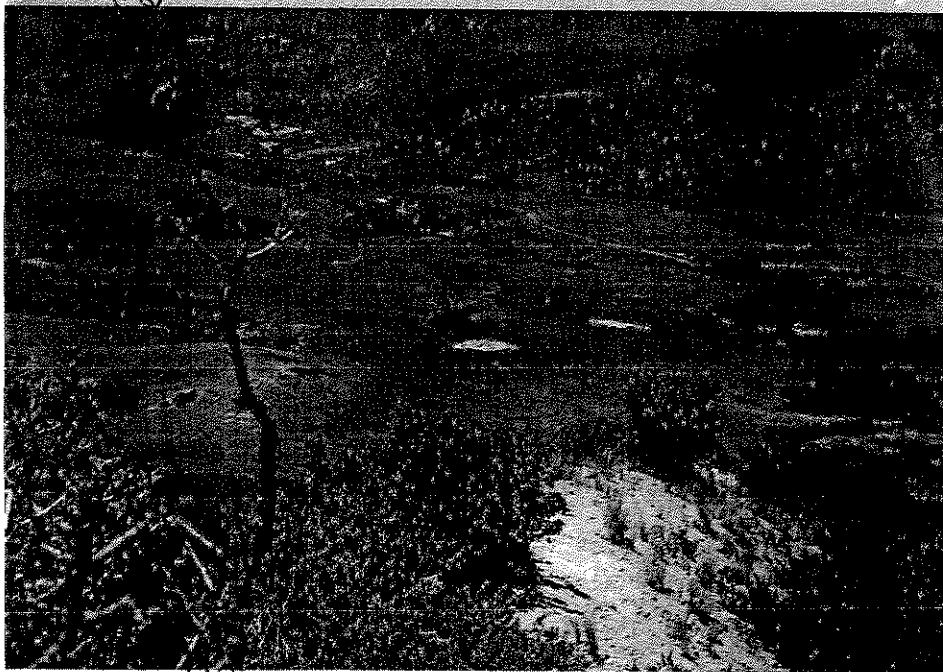


(11) ↑
(12) ↓

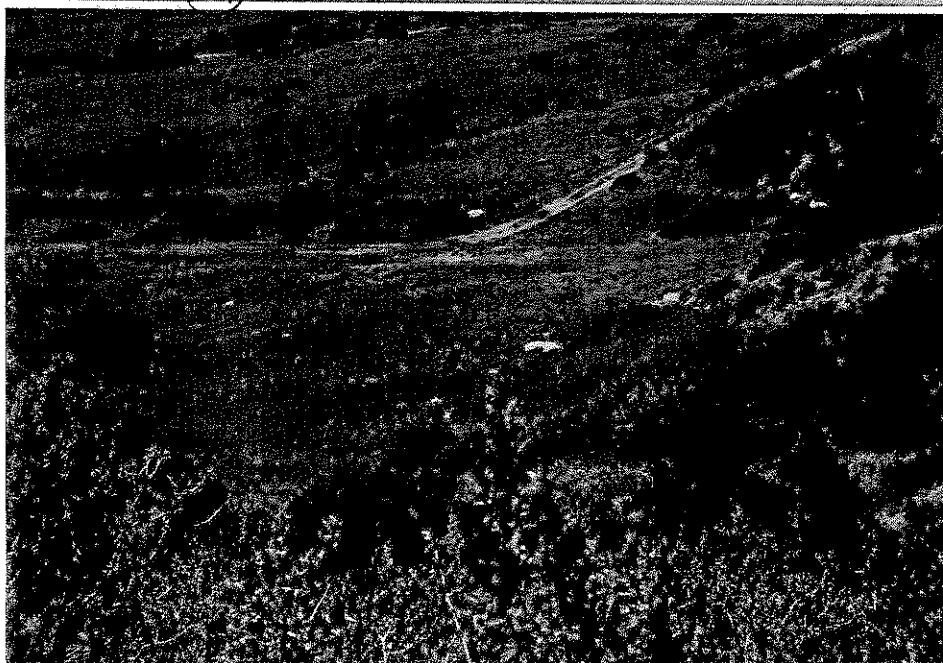




(18)

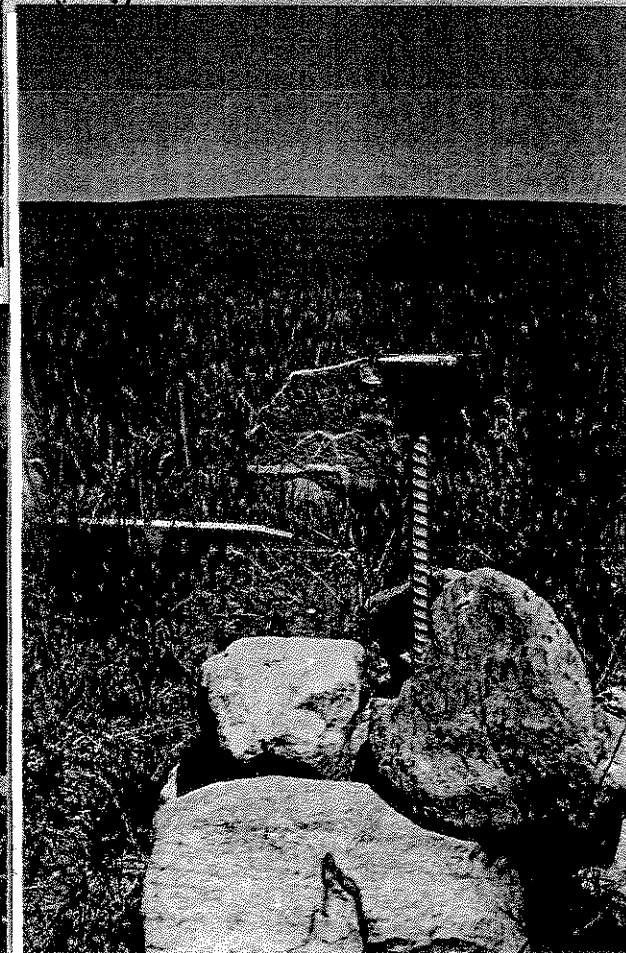


(19)

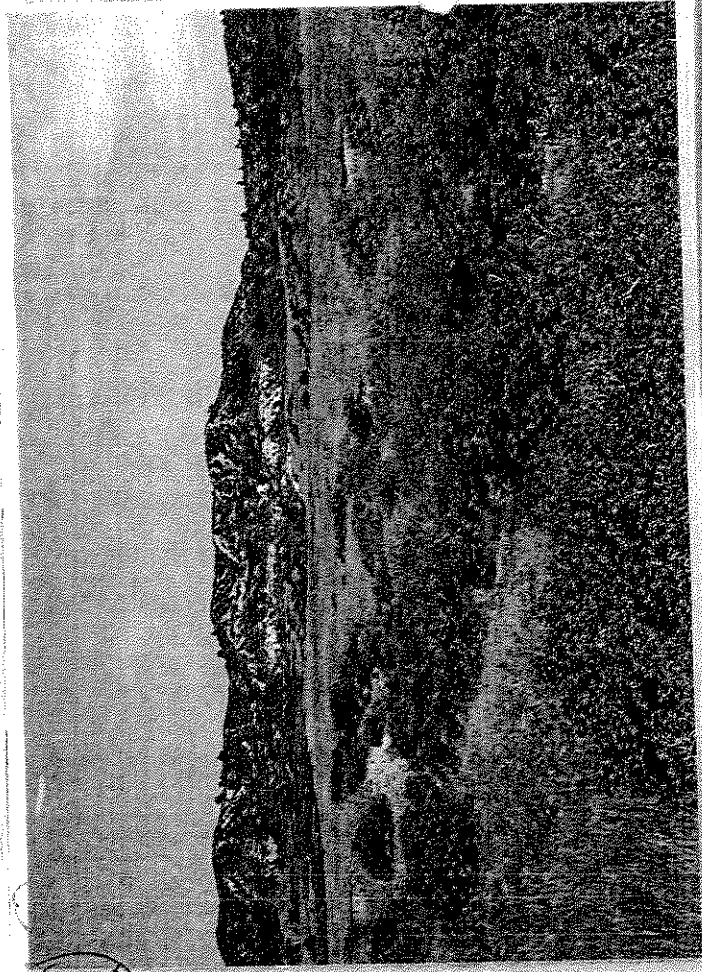


(16)

(17)

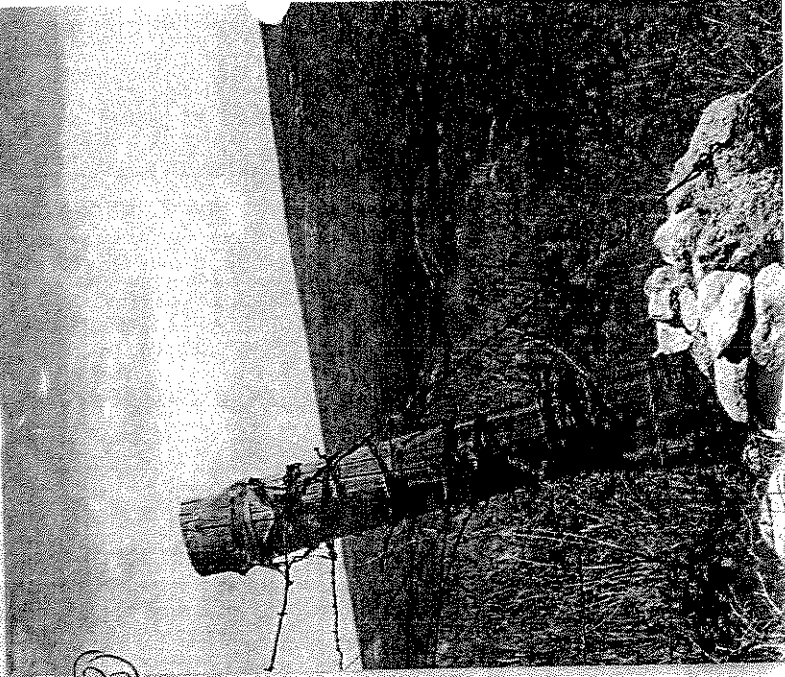


TYPE 2 07-2

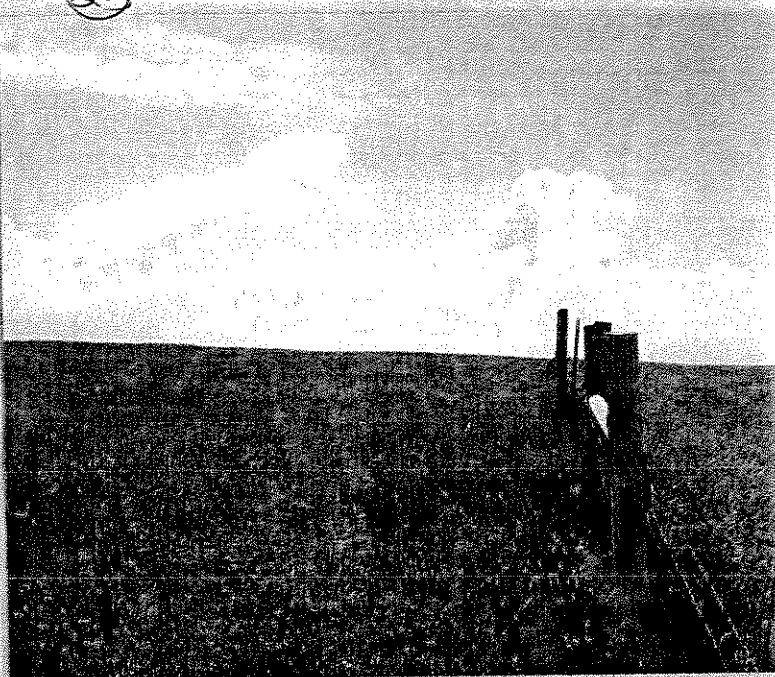


217

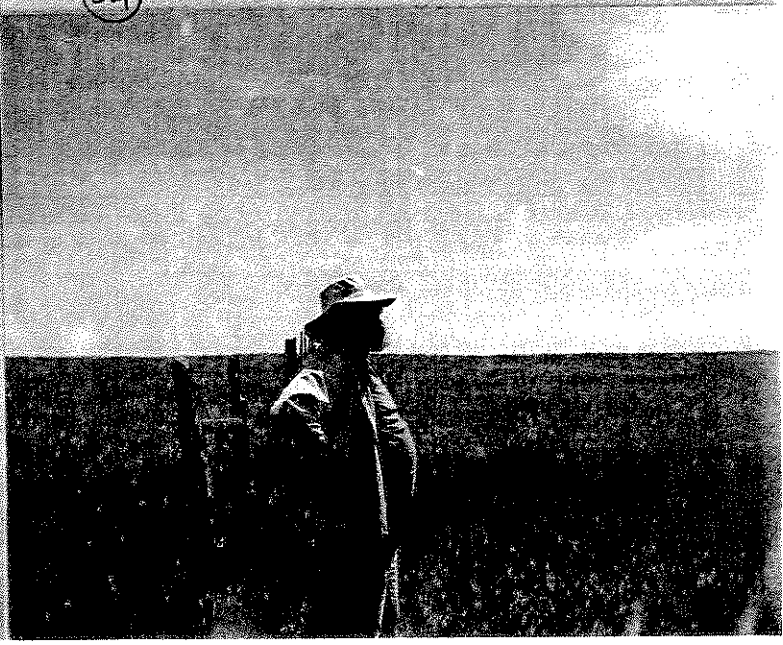
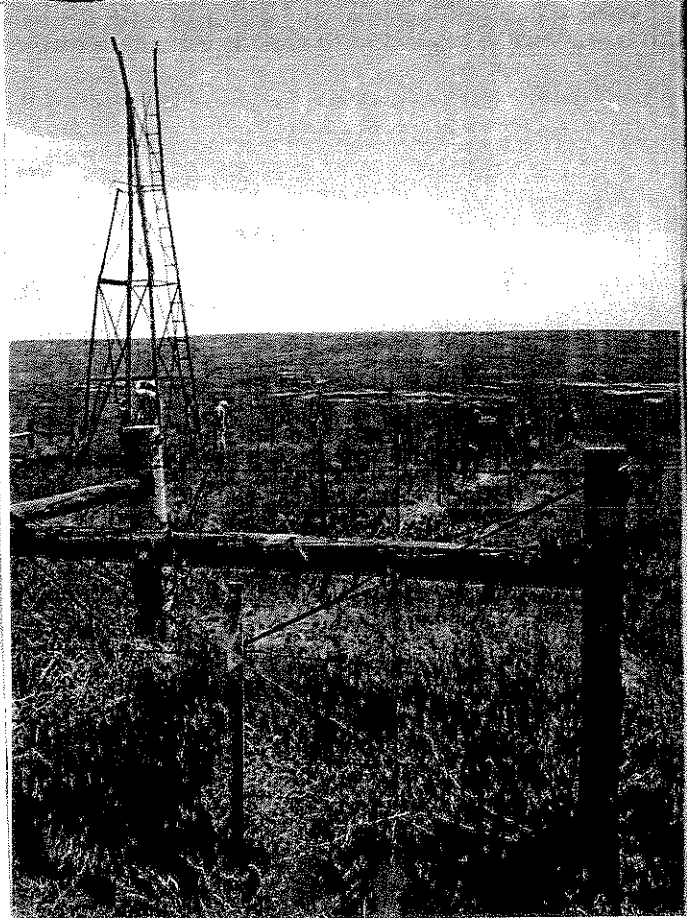
224



22



24

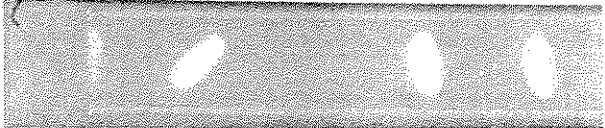


ARCHIVAL PRESERVERS

35



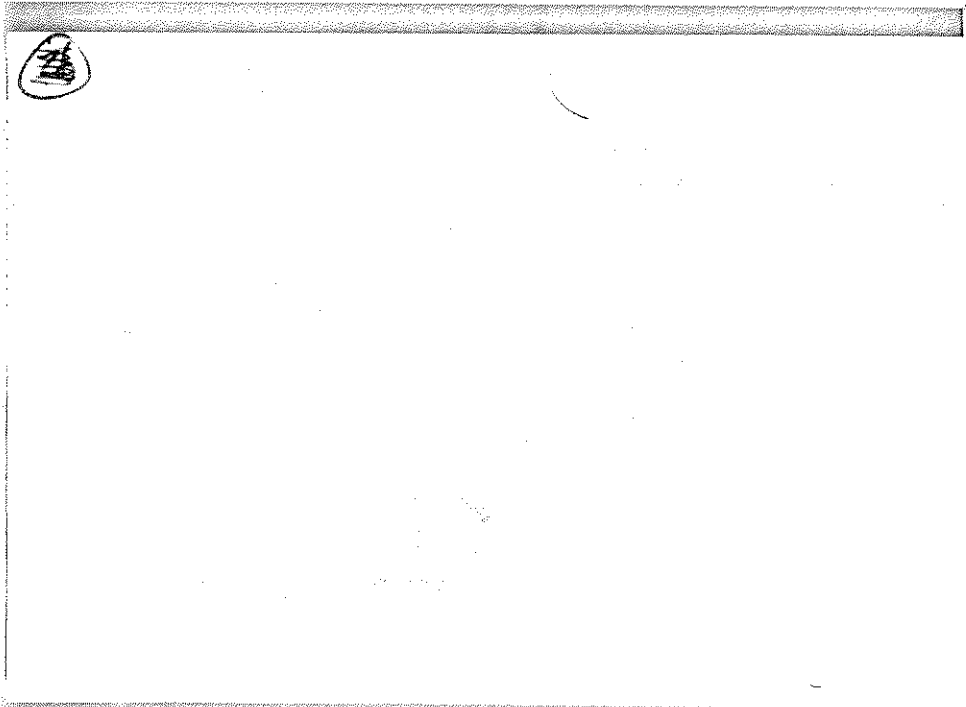
36



37



38



2022 Agreement - Exhibit 4

Cooperative Plan Map

[A copy of the Cooperative Plan Map is provided below]

**Cooperative Land Management Plan
Red Mountain Ranch -- The Big Hole**

Exhibit 4

